



Request for Proposal

Volume 1

Supply, Installation, Testing & Commissioning of Integrated CCTV surveillance system at Land Port Petrapole with DLP of One Year and 4 Years of Comprehensive Annual Maintenance Contract after completion of DLP Period



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DISCLAIMER

1. The information contained in this RFP or subsequently provided to the Bidders, whether verbally or in documentary or any other form, by or on behalf of Land Port Authority of India or any of their employees or advisers, is provided on the terms and conditions set out in this RFP, and such other terms and conditions subject to which, such information is provided.
2. This RFP is neither an agreement, nor an offer by LPAI to the Bidders or any other person. The purpose of this RFP is to provide the Bidders with the information that may be useful to them, in the formulation of their Proposals pursuant to this RFP. This RFP includes statements, which reflect various assumptions and assessments arrived at by LPAI in relation to the business. Such assumptions, assessments and statements do not purport to contain all the information that each interested party may require. This RFP may not be appropriate for all the persons, and it is not possible for LPAI, its employees or advisers to consider the objectives, technical expertise, and particular needs of each interested party, who reads or uses this RFP. The assumptions, assessments, statements, and information contained in this RFP, may not be complete, accurate, adequate, or correct. Each interested party should, therefore, conduct its own investigations and analysis, and should check the accuracy, adequacy, correctness, reliability and completeness of the assumptions, assessments and information contained in this RFP, and obtain independent advice from appropriate sources.
3. Information provided in this RFP to the Bidders is on a wide range of matters, some of which, depends upon interpretation of law. The information given, is not an exhaustive account of statutory requirements, and should not be regarded as a complete or authoritative statement of law. LPAI accepts no responsibility for the accuracy, or otherwise for any interpretation or opinion on the law expressed herein.
4. LPAI, its employees and advisers make no representation or warranty, and shall have no liability to any person including any Bidder under any law, statute, rules or regulations or tort, principles of restitution or unjust enrichment or otherwise for any loss, damages, cost or expense which may arise from or be incurred or suffered on account of anything contained in this RFP or otherwise, including the accuracy, adequacy, correctness, reliability or completeness of the RFP and any assessment, assumption, statement or information contained therein or deemed to form part of this RFP or arising in any way in this award process.
5. The RFP and the information contained therein are to be used only by the interested parties. It may not be copied or distributed by the recipient to third parties (other than in confidence to the recipient's professional advisors). If, the recipient does not continue with its involvement in the business in accordance with this RFP, this RFP must be kept confidential.



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6. LPAI also accepts no liability of any nature, whether resulting from negligence or otherwise, however caused, arising from reliance of any Bidder upon the statements contained in this RFP. It is the responsibility of the Bidders to make their own assessment regarding the extent of business opportunity in preparing their Proposals.
7. LPAI may, in its absolute discretion, but without being under any obligation to do so, update, amend or supplement the information, assessment or assumption contained in this RFP.
8. The interested party shall bear all its costs associated with or relating to the preparation and submission of its Proposal including, but not limited to preparation, copying, postage, delivery fees, expenses associated with any demonstration or presentation, which may be required by LPAI, or any other cost incurred in connection with or relating to its Proposal. All such costs and expenses will remain with the Bidder, and LPAI shall not be liable in any manner whatsoever, for the same, or, for any other cost, or, other expense, incurred by any Bidder, in preparation or submission of the Proposal, regardless of the conduct or outcome of the selection process.
9. LPAI reserves the right to accept or reject any or all Proposals; qualify or disqualify any or all Bidders without giving any reason and is not obliged to correspond with any Bidder in this regard. Further, LPAI reserves the right to relax, change, review, revise or / and cancel the eligibility criteria and the RFP process, at any time, without prior notice or without assigning any reason whatsoever. This invitation for RFP does not give rise to any right to remuneration and is not an offer or invitation to offer.
10. LPAI will not entertain any claim for expenses in relation to the preparation of any Proposal pursuant hereto.
11. LPAI at its absolute discretion, reserves the right, until the closure of the Proposal submission, to modify any proposed terms and conditions set-out in the RFP as necessary, including but not limited to cancelling / withdrawing the RFP, to meet its objectives and principles as set-out below.



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Glossary of Terms

S.no.	Term	Full Form
1.	ABG	Advance Bank Guarantee
2.	ACS	Access Control System
3.	AI	Artificial Intelligence
4.	BOM	Bill of Materials
5.	BoQ	Bill of Quantities
6.	CCC	Command & Control Centre
7.	CCN	Change Control Note
8.	CCTV	Closed Circuit Television
9.	CAD	Computer Aided Dispatch
10.	DC	Data Centre
11.	DG	Diesel Generator
12.	EMS	Enterprise Management System
13.	FRS	Facial Recognition System
14.	GCC	General Condition of the Contract
15.	IP	Internet Protocol
16.	LOI	Letter of Intent
17.	LOA	Letter of Award
18.	MPLS	Multi-Protocol Level Switching
19.	MSA	Master Service Agreement
20.	NDA	Non-Disclosure Agreement
21.	NFPA	National Fire Protection Association
22.	OEM	Original Equipment Manufacturer
23.	PBG	Performance Bank Guarantee
24.	PTZ	Pan Tilt Zoom
25.	QCBS	Quality Cost Based Selection
26.	RF	Radio Frequency
27.	RFP	Request for Proposal
28.	SCC	Special Conditions of the Contract
29.	SLA	Service Level Agreement
30.	SOR	Schedule of Rate
31.	TEC	Technical Evaluation Committee
32.	TS	Technical Score
33.	UPS	Uninterrupted Power Supply
34.	VMS	Video Management System



Section I - Invitation to Bidders

1.1 Introduction

About Land Port Authority of India

Land Port Authority of India (LPAI) is a statutory body established under Land Port Authority of India Act, 2010. The provisions of the Act came into force w.e.f., 1st March 2012. Section 11 of the Act gives powers to LPAI to develop, sanitize and manage the facilities for cross-border movement of passengers and goods at designated points along the international borders of India.

LPAI endeavours to provide safe, secure, and systematic facilities for movement of cargo as well passengers at its Land Port. Most of the services at the Land Port are free, except those meant for trade which are charged as per the prescribed rates of tariff. At present there is also no entry fee or usage fee for either passengers or trade. The Land Port brings various services like Customs, Immigration under one roof and provide parking, warehousing, banking as well as rest room facilities, in a state-of-the-art set up, to the people.

Following are the roles and responsibilities of LPAI under sub-section (2) of section 11 of the Act:

- I. To put in place systems, which address security imperatives at the integrated check posts on the border.
- II. To plan, construct and maintain roads, terminals, and ancillary buildings other than national highways, State highways and railways, at an integrated check post.
- III. To plan, procure, install, and maintain communication, security, goods handling and scanning equipment at an integrated check post.
- IV. To provide appropriate space and facilities for immigration, customs, security, taxation authorities, animal and plant quarantine, warehouses, cargo and baggage examination yards, parking zones, banks, post offices, communication facilities, tourist information centres, waiting halls, canteen, refreshment stalls, public conveniences, health services and such other services, as may be deemed necessary.
- V. To construct residential buildings for its employees as well as residential accommodation for staff deployed at integrated check posts.
- VI. To establish and maintain hotels, restaurants and restrooms.
- VII. To establish and maintain warehouses, container depots and cargo complexes for the storage or processing of goods.
- VIII. To arrange for postal, money exchange, insurance and telephone facilities for the use of passengers and other persons at integrated check posts.



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- IX. To make appropriate arrangements for the security of integrated check posts and provide for regulation and control of movement of vehicles, entry and exit of passengers and goods in accordance with the respective law concerning them.
- X. To ensure prevention and control of fire and other hazards and other facilities as deemed necessary.
- XI. To regulate and control the movement of vehicles, and the entry and exit of passengers, transportation workers, handling agents, clearing, and forwarding agents and goods at the integrated check post with due regard to the law, security and protocol of the Government of India;
- XII. To co-ordinate and facilitate the working of agencies who have been engaged to undertake various activities at the integrated check posts, in accordance with the respective law, for the time being in force;
- XIII. To develop and provide consultancy, construction, or management services, and undertake operations in India and abroad in relation to an integrated check post;
- XIV. To form one or more companies under the Companies, Act, 1956 or under any other law relating to companies for efficient discharge of the functions imposed on it by this Act;
- XV. To take all such steps as may be necessary or expedient for, or may be incidental to, the exercise of any power or the discharge of any function conferred or imposed on it by this Act: Provided that sovereign functions of the Authority shall not be assigned to any private entity;
- XVI. To set up joint ventures for the discharge of any of the functions assigned to the Authority; and
- XVII. To undertake any other activity at the integrated check post in the best commercial interests of the Authority. Sub-section (3) of section 11 provides that in the discharge of its functions the Authority may consult such Ministry or Department of the Government of India or of the State Government as it deems necessary and shall have due regard to the development of land port services and to the efficiency, economy and safety of such service.

1.2 Bid Data Sheet

Item	Description
RFP Submission Mode	Online
Nature of Project Work	Supply, Installation, Testing & Commissioning of Integrated CCTV surveillance system at Land Port Petrapole with DLP of One Year and 4 Years of



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Item	Description
	Comprehensive Annual Maintenance Contract after completion of DLP Period
Estimated Cost of the Project	INR 10.59 crore (inclusive of all taxes)
EMD & Tender Processing fee	As per GEM
RFP Inviting Authority	Land Port Authority of India
Contact details of client	Director Operations Land Port Authority of India 1 st floor, Lok Nayak Bhawan, Khan Market New Delhi-110511 Email: dir.opr-lpai@gov.in
Name and address for communication and seeking clarifications regarding this RFP	The Bidders are requested to submit their Pre-Bid queries in excel to Director, Operations at dir.opr-lpai@gov.in and to be uploaded at the GeM Portal as well before 11 th June 2024 No queries will be entertained after 11 th June 2024.
Pre-Bid Meeting	11 th June 2024 at 1500 Hrs at LPAI HQ Delhi. Venue Mentioned in contact details of client.
Last date of Bid Submission	As Per GEM
Method of Selection	QCBS

1.3 Notice Inviting Tender

Tenders are invited from eligible, reputed, qualified Bidders with sound technical and financial capabilities to participate for **“Supply, Installation, Testing & Commissioning of Integrated CCTV surveillance system at Land Port Petrapole with DLP of One Year and 4 Years of Comprehensive Annual Maintenance Contract after completion of DLP Period”** This invitation to bid is open to all System Integrators meeting the minimum eligibility criteria as mentioned in **Section 2.25 and 2.26** of this RFP document.

Tender Fee & EMD: Any Bid processing Fees and EMD if applicable, shall be paid by the bidder “online” as mentioned in the GeM Portal.

1.4 Structure of the RFP

This RFP document for the Selection Supply, Installation, Testing & Commissioning of CCTV Surveillance system at Land Port Petrapole, with DLP of 1 year and 4 years of Comprehensive Annual Maintenance Contract Project is divided into three Volumes.



i. Volume 1 of the RFP will cover the following sections.

- a. Invitation to Bidders
- b. Instruction to Bidders
- c. Bid Submission Formats
- d. Functional Requirement Specifications

ii. Volume 2 of the RFP will cover the following Sections.

- a. Introduction and Guiding Principles
- b. Existing and Proposed Processes at Land Port
- c. Detailed Scope of Work
- d. Implementation Schedule
- e. Manpower Requirements
- f. Exit and Transition Management
- g. Governance Structure

iii. Volume 3 of the RFP will cover the following Sections.

- a. General Contract Conditions
- b. Service Level Agreements
- c. Payment Milestones

The Bidders are expected to respond to the requirements in as much relevant detail as possible and focus on demonstrating its suitability to become the implementation partner of the Purchaser.

The Bidders are expected to examine all instructions, forms, terms, project requirements and other information in the RFP documents. Failure to furnish all information required as mentioned in the RFP document or submission of a proposal not substantially responsive to the RFP document in every respect will be at the System Integrators risk and may result in rejection of their bid response.



2 Section II-Instructions to Bidder

2.1 General

1. While every effort has been made to provide comprehensive and accurate background information and requirements and specifications. Bidders and recipients of this RFP may wish to consult their own legal advisors in relation to this RFP. In case of any doubts, Bidder should raise their query at the time of submission of pre-bid queries.
2. All information supplied by Bidders shall be treated as contractually binding on the Bidders, on successful award of the assignment by the Purchaser based on this RFP.
3. No commitment of any kind, contractual or otherwise shall exist unless and until a formal written contract has been executed by or on behalf of the Purchaser. Any notification of preferred Bidder status by the Purchaser shall not give rise to any enforceable rights by the Bidder. The Purchaser may cancel this public procurement at any time prior to a formal written contract being executed by or on behalf of the Purchaser.
4. This RFP supersedes and replaces any previous public documentation & communications (EoI, RFI, etc.) and Bidders should place no reliance on such communications.

2.2 Completeness of Response

1. Bidders are advised to study all instructions, forms, terms, requirements, and other information in the RFP document, pre bid clarifications, corrigenda, addenda, etc. carefully. Submission of the bid shall be deemed to have been done after careful study and examination of the RFP document with full understanding of its implications.
2. Failure to comply with the requirements of this section shall render the Proposal non-compliant and the Proposal shall be rejected. Bidders must:
 - a. Comply with all requirements as set out within this RFP.
 - b. Submit the forms as specified in this RFP and respond to each element in the order as set out in this RFP.
 - c. Include all supporting documentations specified in this RFP.

2.3 Code of Integrity

No official of a procuring entity or a Bidder shall act in contravention of the codes which includes.

2.3.1 Prohibition of

- i. making offer, solicitation or acceptance of bribe, reward or gift or any material benefit, either directly or indirectly, in exchange for an unfair advantage in the procurement process or to otherwise influence the procurement process.



- ii. Any omission, or misrepresentation that may mislead or attempt to mislead so that financial or other benefit may be obtained, or an obligation avoided.
- iii. any collusion bid rigging or anticompetitive behaviour that may impair the transparency, fairness, and the progress of the procurement process.
- iv. improper use of information provided by the procuring entity to the Bidder with an intent to gain unfair advantage in the procurement process or for personal.
- v. any financial or business transactions between the Bidder and any official of the procuring entity related to tender or execution process of contract; which can affect the decision of the procuring entity directly or indirectly.
- vi. any coercion or any threat to impair or harm, directly or indirectly, any party or its property to influence the procurement process.
- vii. obstruction of any investigation or auditing of a procurement process.
- viii. making false declaration or providing false information for participation in a tender process or to secure a contract.

2.3.2 Disclosure of conflict of interest.

1. Disclosure by the Bidder of any previous transgressions made with any entity in any country during the last three years or of being debarred by any other procuring entity.
2. In case of any reported violations, the procuring entity, after giving a reasonable opportunity of being heard, concludes that a Bidder or prospective Bidder has contravened the code of integrity, may take appropriate measures.

2.4 Proposal Preparation Cost

The Bidder shall be responsible for all costs incurred in connection with participation in the RFP process, including, but not limited to, costs incurred in conduct of informative and other diligence activities, participation in meetings/discussions/presentations, preparation of proposal, in providing any additional information required by Purchaser to facilitate the evaluation process, and in negotiating a definitive contract or all such activities related to the bid process. Purchaser will in no event be responsible or liable for those costs, regardless of the conduct or outcome of the bidding process.

2.5 Pre-bid meetings & Clarifications

1. A prospective Bidder requiring any clarification on the RFP Document may submit the queries as per schedule indicated in Section: I (Bid Data Sheet) of this RFP. The queries must be submitted in the following format in editable form (Excel format):



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S.no.	RFP Volume Reference	Page no.	Section Reference	Clause Reference	Points of Clarification

2. The Bidder's authorized representatives are invited to attend the Pre-bid meeting which would take place at the venue mentioned in the Bid Data sheet of this RFP.
3. The purpose of the meeting would be to clarify queries on any matter related to the RFP and the project.
4. The Bidders are requested to submit their Pre-Bid queries in excel (.xlsx or .xls) to dir.opr-lpai@gov.in on or before the date indicated in bid data sheet of the RFP in the format provided above. Any queries received after the indicated date and time or in any other format may not be entertained.
5. Only authorized representatives (maximum two persons) of the Bidders will be allowed to participate in the pre-bid meeting.
6. Not attending the pre-bid meeting will not be a cause for disqualification.
7. Purchaser shall not be responsible for ensuring that the Bidders' queries have been received by them. Any requests for clarifications post the indicated date and time may not be entertained by the Purchaser.

2.6 Response to Pre-Bid Queries and Issue of Corrigendum

1. At any time prior to the deadline for submission of Bids, LPAI may, for any reason, whether at its own initiative or in response to a clarification requested by a prospective Bidder, modify the Bid document by amendments. Such amendments shall be uploaded on the portal through corrigendum and shall form an integral part of Bid document. The relevant clauses of the Bid document shall be treated as amended accordingly.
2. It shall be the sole responsibility of the prospective Bidders to check the GEM portal from time to time for any amendment in this RFP. In case of failure to get the amendments, if any, the Purchaser shall not be responsible for it.
3. At any time prior to the last date for receipt of bids, Purchaser may, for any reason, whether at its own initiative or in response to a clarification requested by a prospective Bidder, modify the RFP Document by a corrigendum.
4. Any such corrigendum shall be deemed to be incorporated into this RFP.



5. To allow prospective Bidders a reasonable time to take the amendment into account in preparing their Bids, LPAI, at its discretion, may extend the deadline for the submission of Bids. Such extensions shall be uploaded on the GEM portal.

2.7 Language and Currency

1. The Bid and all related correspondence and documents shall be written in the English language. The currency for the purpose of the Bid shall be Indian Rupee (INR).
2. For any global projects wherein the contract value is mentioned other than Indian Rupees, the amount/ value shall be converted into INR as per conversion rate prevailing on the day of bid submission.

2.8 Procedure for Submission of bids

1. Bids must be correct and complete in all aspects. LPAI will evaluate the bid based on its clarity, correctness, and completeness of its response to the requirements of the project as outlined in this RFP. Bidder must keep in mind the below points for the regarding the bidding.
2. Each Bidder will be required to register itself on the GeM Portal for the participation in the bid process.
3. Only registered Bidders who meet the Qualification Criteria as specified in the RFP will be able to participate in the financial bid. A manual to facilitate in the registration process can be accessed on the GeM Portal.
4. Each of the Bidders shall safely keep the User ID and password issued to them upon registration on the GEM since these details are necessary for participating in the bid.
5. The Bidders shall be obligated not to disclose their User ID and password or other material information relating to the Bidding Process to each other or to any other Bidder or any third party or consultant and shall safeguard the secrecy of such details.
6. It would be sole responsibility of the Bidder to acquaint themselves with the working of the GeM portal for the timely submission of the bid documents.
7. The Bidder shall submit only one (1) bid in response to the RFP. If the Bidder submits more than one bid, it shall be subject to disqualification of Bidder and shall also cause the rejection of all the bids which such Bidder has submitted.
8. The response to the bid should be submitted along with legible, appropriately indexed, duly filled Information sheets and sufficient documentary evidence as per RFP. Responses with illegible, incomplete Information sheets or insufficient documentary evidence shall be rejected.
9. The Bidder must ensure that the bid is digitally signed by the Authorized Signatory of the bidding firm and has been duly submitted (freeze) within the submission timelines. LPAI will in no case be responsible if the bid is not submitted online within the specified timelines.



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10. All the pages of the Proposal document must be sequentially numbered and must contain the list of contents with page numbers. Any deficiency in the documentation may result in the rejection of the Bidder's Proposal
11. Bidders should submit their responses as per the procedure specified in the GeM portal being used for this purpose. Following items to be uploaded on the portal:

S.no	Annexure	Documents to be uploaded
1.	-	Acknowledge receipt of the online payment of the Tender Fee, If applicable.
2.	Annexure: 1	Earnest Money Deposit
3.	Annexure: 2	Bid Submission Letter
4.	Annexure: 3	Non-Disclosure Agreement
5.	Annexure: 4	Integrity Pact
6.	Annexure: 5	Blacklisting Certificate
7.	Annexure: 6	Notarized Power of Attorney executed by the Bidder in favour of the duly Authorized Representative, certifying him as an authorized signatory for the purpose of this RFP
8.	Annexure: 7	Bidder Profile
9.	Annexure: 8	Response to Qualification Criteria
10.	Annexure: 9	Letter of Declaration-Cum-Undertaking
11.	Annexure: 10	Financial Information of the Bidder
12.	Annexure: 11	Financial Bid Submission Letter
13.	Annexure: 12	Relevant Credentials
14.	Annexure: 13	Project Details
15.	Annexure: 14	Technical Bid Submission Letter
16.	Annexure: 15	Financial Bid Formats
17.	Annexure: 16	Unpriced BOQ with Make And model
18.	Annexure: 17	Nil Deviation Certificate



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19.	Annexure: 18	Manufactures Authorization Form
20.	Annexure: 19	Performance Bank Guarantee
21.	Annexure: 20	Change Control Note (CCN) Format
22.	Annexure: 21	Compliance to the Technical Requirements Specifications
23.	Annexure: 22	Bidders format to be submitted on letter for country of origin
24.	Annexure: 23	Format of affidavit for claiming benefits under Make in India Policy (OEM and Bidder) On letter head
25.	Annexure: 24	Format of affidavit for the Rule 144 (xi) under General Financial Rules (GFR) 2017 (OEM and Bidder) on letter head
26.	Annexure: 25	Self-Certification Under Preference to Make in India order Certificate
27.	Annexure: 26	Checklist for the RFP Response
28.	-	Duly signed and stamped copy of RFP document with all amendments / corrigendum/ Addendum

Each of the above documents must be uploaded in the format specified for this purpose and as per the specified folder structure in the GeM portal.

2.9 Bidder's Authorised signatory

The Proposal should be accompanied by an appropriate board resolution or power of attorney in the name of an authorised signatory of the Bidder stating that he is authorised to execute documents and to undertake any activity associated with the Bidder's Proposal. A copy of the same should be uploaded under the relevant section/folder on GeM portal. Furthermore, the bid must also be submitted online after being digitally signed by an authorized representative of the bidding entity.

2.10 Firm Prices

1. Prices quoted must be firm and final , Inclusive of All Taxes as per GoI policies, and shall remain constant throughout the period of the contract and shall not be subject to any upward modifications, on any account whatsoever. The Bidder shall, therefore, indicate the bid prices as per Annexure 15 of this RFP document. The Bid Prices shall be indicated in Indian Rupees (INR) only.



2. The Financial Bid should clearly indicate the price to be charged without any qualifications whatsoever and should include all taxes, duties, fees, levies, works contract tax and other charges as may be applicable in relation to the activities proposed to be carried out. It is mandatory that such charges wherever applicable or payable should be indicated separately in the Financial Format Annexure 15 of this RFP documents.
3. A financial bid submitted with an adjustable price quotation or conditional bid shall be treated as non-responsive and the bid shall be rejected summarily.
4. If there is any discrepancy in the Financial Bid, it will be dealt as per the following:
 - i. If, in the price structure quoted for the required goods/ services/ works, there is discrepancy between the unit price and total price (which is obtained by multiplying the unit price by the quantity), the unit price shall prevail, and the total price corrected accordingly.
 - ii. If there is an error in a total corresponding to the addition or subtraction of subtotals, the subtotals shall prevail, and the total shall be corrected.
 - iii. If there is a discrepancy between words and figures, the amount in words shall prevail.
5. If there is such discrepancy in an offer, the same shall be conveyed to the Bidder with target date up to which the Bidder has to send the acceptance on the above lines and if the Bidder does not agree to the decision of the Purchaser, the Bid is liable to be ignored.

2.11 Discount

The Bidder is advised not to indicate any separate discount. Discount, if any, should be merged with the quoted prices. Discount of any type, indicated separately, will not be considered for evaluation purpose.

2.12 Bidders Qualification

1. The "Bidder" as used in the RFP documents shall mean the Organization on whose behalf the RFP response has been submitted. The Bidder may be either the Principal Officer (MD or Company Secretary) or his or her duly Authorized Representative, in which case he or she shall submit a power of attorney along with the bid. All certificates and documents (including any clarifications sought and any subsequent correspondences) received hereby, shall be furnished, and signed by the representative or the principal.
2. The authorization shall be indicated by power-of-attorney or board resolution accompanying the bid.



2.13 Earnest Money Deposit

1. Bidders are required to submit Earnest Money Deposit (EMD) as per the details mentioned in the RFP and GeM portal.
2. Tender documents will be available online on GeM Portal which can be downloaded free of cost till the last date and time of submission of tender. However, to participate in the online bidding process as per GeM Portal, if applicable, towards the cost of one set of tender documents.
3. The Bidder shall furnish, as part of its bid, EMD of the amount as mentioned in section 1.2 (Bid Data Sheet) of this RFP document. The format of the EMD is provided as per GEM.
4. EMD is in favour of Land Port Authority of India of Delhi
5. The EMD is required to protect Land Port Authority of India against the risk of Bidder's conduct which would warrant the EMD's forfeiture, pursuant to clause 2.13 point no 8.
6. Unsuccessful Bidder's EMD will be discharged or returned after award of contract to the successful Bidder. No interest will be paid by the Land Port Authority of India on the EMD amount.
7. The successful Bidder's EMD shall be discharged upon the Bidder executing the Contract, pursuant to clause 2.32 (Performance Bank Guarantee) and after furnishing the performance security, pursuant to clause 2.33.
8. The EMD may be forfeited:
 - i. Bidder withdraws the Technical Bid or Financial Bid during the Bid validity period.
 - ii. Bidder does not respond to requests for clarification or fails to provide required information during the evaluation process of the Technical Bid and its supporting documents.
 - iii. Bidder resorts to unethical practices or any practice that may mar the chances of competing Bidders in the form of complaints / right to information applications/ newspaper reporting about competing Bidders post the phase when the Notice Inviting Tender has been published.
 - iv. Selected Bidder fails to sign documents comprising the Agreement or fails to fulfil the preconditions set out under the LOA.



2.14 Period of Validity of Bids

1. Bids shall remain valid for a period of as mentioned in “Bid Data Sheet” of this RFP document. A bid valid for a shorter period shall be rejected by the Purchaser as non-responsive and shall not be taken up for evaluation purposes.
2. The Purchaser may request the Bidder(s) for an extension of the period of validity. The re-request and the responses thereto shall be made in writing (or by fax or by e-mail). The validity of EMD provided under “Bid Data Sheet” of this RFP document shall also be accordingly extended.

2.15 Terms and Conditions for Bidders

1. Terms and conditions (General Conditions) of the Bidder will not be considered as forming part of their Bids. In case terms and conditions of the contract applicable to this Invitation of RFP are not acceptable to any Bidder, he or she should clearly specify deviation in his or her Technical Bid, as per the Annexure 21 of this RFP document. Similarly, in case the services being offered have deviations from the requirements or specifications laid down in this RFP, the Bidder shall describe in what respects and to what extent the Services being offered differ or deviate from the requirements, even though the deviations may not be very material. The Bidder must state categorically if his offer conforms to RFP requirements or specifications and indicate deviations (as per format provided in Annexure 21), if any, in his Technical Bid (Annexure 21 of this RFP document).
2. Any deviations or assumptions mentioned elsewhere in the Bid, other than the format (Annexure 21 of this RFP) will not be considered by the Land Port Authority of India.
3. All deviations should be closed before the financial opening by mutual discussion between Land Port Authority of India and Bidder. Financial bid would be opened only after closure of all deviations by the technically successful Bidders.

2.16 Local Conditions

1. It will be incumbent upon each Bidder to fully acquaint himself with the local conditions and factors at all respective locations, sites and offices which would have any effect on the performance of the contract and or the cost.
2. The Bidder is expected to obtain for himself on his own responsibility all information that may be necessary for preparing the bid and entering into contract. Obtaining such information shall be at Bidder's own cost.
3. Failure to obtain the information necessary for preparing the bid and or failure to perform activities that may be necessary for project will in no way relieve the successful Bidder from performing any work in accordance with the contract entered.



4. It will be imperative for each Bidder to fully inform themselves of all local and legal conditions and factors which may have any effect on the execution of the contract as described in the RFP documents.
5. It is the responsibility of the Bidder that such factors have properly been investigated and considered while submitting the bid response and that no claim whatsoever including those for financial adjustment to the contract awarded under the bidding documents will be entertained by the Purchaser and that neither any change in the time schedule of the contract nor any financial adjustments arising thereof shall be permitted by the Purchaser on account of failure of the Bidder to appraise themselves of local laws and conditions.
6. LPAI shall permit the Bidders for a site inspection at a time fixed by LPAI which will be limited to the extent of such locations and its surroundings of the Land Port that may be required for the Bidder to evaluate and understand the requirement and obtain for itself on its own responsibility and cost, all information that may be necessary for preparing the Proposal. Further, it shall be deemed that, the Bidder has made itself aware of the working conditions and other requirements of the respective locations, and the Land Port and is aware of the facts, prior to submission of the Proposal. Bidder shall at all times during such visit or inspection strictly follow and adhere to LPAI's safety and security policies.

2.17 Last Date for Receipts of Bids

Bids will be received by the Purchaser as specified under "Bid Data sheet" of this RFP not later than the time and date specified in "Important Dates" through GeM Portal. In the event of the specified date for the receipt of Bids being declared a holiday for the purchaser, the EMDs of the said Bid will be received up to the appointed time on the next working day. However, the online bid submission date and time will remain un-changed.

2.18 Late Bids

1. The server time indicated in the bid management window on the GeM portal, as specified in "Bid Data Sheet", will be the date and time by which the online submission activity will be allowed.
2. Once the bid submission date and time is over, the Bidder cannot submit its bid. Bidder must start the bid submission well in advance so that the submission process passes off smoothly. The Bidder will only be held responsible if its bid is not submitted in time due to any of its problems/faults, for whatsoever reason, during the submission process.



2.19 Contacting the Purchaser

1. No Bidder shall contact the Purchaser on any matter relating to its bid, from the time of the bid opening to the time the Contract is awarded.
2. Any effort by a Bidder to influence the Purchaser bid evaluation, bid comparison, or contract award decisions shall result in the rejection of the Bidder's bid.

2.20 Consortium

No Consortium or Joint Venture is allowed.

2.21 Sub-Contract

1. Sub-contracting is allowed for following jobs:
 - i. Provisioning of Hardware components at Land Port including Associated software.
 - ii. Civil Works for installation of hardware at Land Port
2. The Bidder shall provide list of all services which are planned to be sub-contracted, within 15 days of signing of contract agreement or issuance of LOI, whichever is earlier.
3. The Bidder shall be the principal employer for all claims arising from the liabilities statutory or otherwise, concerning the sub-contractors.
4. The Bidder shall not appoint any delegate/sub-contractor without the consent in writing of the Land Port Authority of India for the performance of Services under this contract. It is desirable that the number of sub-contractors engaged by the Bidder for this contract is kept to the minimum possible.
5. All the personnel proposed by the Bidder except sub-contracting services should necessarily be on the payroll of the Bidder.
6. The Bidder shall be responsible and shall ensure the proper performance of the sub-contractors and shall be liable for any non-performance or breach by such System Integrators. The Bidder indemnifies and shall keep indemnified Purchaser against any losses, damages, claims or such other implications arising from or out of the acts and omissions of such providers. The Bidder shall be responsible for making all payments to the sub-contractors as may be necessary, in respect of any services performed or task executed, and the Purchaser shall not be responsible for any part or full payment which is too due to such System Integrators.
7. All rights of use of any process, product, service, or facility developed or any other task performed by the sub-contractors for the Bidder, under this contract would lie exclusively with the Purchaser in perpetuity free from all liens, encumbrances and other third-party rights and the Bidder shall, wherever required, take all steps that may be necessary to ensure the transfer of such ownership in favour of the Purchaser.



8. Nothing in this Contract or any agreement hereunder shall relieve the Bidder from its liabilities or obligations under this Contract to provide the services in accordance with this Contract. The Purchaser reserves the right to hold the Bidder liable for any act/omission of sub-contractors.
9. The Bidder shall ensure that the Sub-Contractor appointed is competent, professional and possesses the requisite qualifications and experience appropriate to the tasks they will perform.
10. The terms of Bidder's contract / agreement with the sub-contractor (excluding the financial terms) for this assignment shall require the review and approval of the Purchaser and shall be in conformity with the terms of this Contract. Where the Purchaser deems necessary, it may refuse to consent to the delegation of services to the sub-contractor(s). The Bidder shall not amend or modify the terms of contract / agreement with the sub-contractor(s) without the prior written consent of the Purchaser.
11. Where the Purchaser deems necessary, it shall have the right to require replacement of any sub-contractor with another system Integrator and the Bidder shall in such case terminate forthwith all agreements / contracts other arrangements with such system integrator and find suitable replacement for such system integrator to the satisfaction of the Purchaser at no additional charge. Failure on the part of the Bidder to find a suitable replacement and/or terminate all agreements / contracts with such member, shall amount to a breach of the terms hereof and the Purchaser in addition to all other rights, have the right to claim damages and recover from the Bidder all losses/ or other damages that may have resulted from such failure.
12. The Bidder shall not terminate the contract / agreement with the sub-contractor(s) without prior written consent of the Purchaser. Further, in case the Bidder terminates any contract/arrangement or agreement with a sub-contractor for any reason whatsoever, the Bidder shall ensure the smooth continuation of services by providing forthwith, a suitable replacement which is acceptable to the Purchaser at no additional cost to the Purchaser.

2.22 Qualification and Selection Criteria for the Bidders

1. LPAI intends to select only serious and committed Bidders for entering into the definitive agreement with LPAI. Accordingly, the Bidders shall ensure that, sufficient information is provided to enable LPAI to make judgments about their suitability. In assessing the Proposals submitted, LPAI shall have regard to the quality and level of information provided by the Bidders.
2. The bids will be opened in two sessions - one each for Technical (includes Pre-qualification) and Commercial bids.
3. The bids will be opened at each stage from the GeM portal, by the evaluation committee to be setup by the LPAI.



4. In the event of the specified date of bid opening being declared a holiday for LPAI, the Bids shall be opened at the same time and location on the next working day or as specified by LPAI.
5. During each session of bid opening, preliminary scrutiny of the bid documents will be made to determine whether they are complete, whether required bid security has been furnished, whether the documents have been properly signed, and whether the bids are generally in order. Bids not conforming to such preliminary requirements will be prima facie rejected at the discretion of LPAI.
6. There will be two bid-opening events:
 - Pre-Qualification and Technical Qualification.
 - Commercial bids opening.
7. The Commercial Bids of only those Bidders will be opened who Qualify in Pre-Qualifications, Technical Qualification and Proof of Concept.
8. The bidder shall ensure that the commercial bids are not submitted as part of the technical bid. Revelation of commercial bids in technical bids will lead to rejection of the bid.

2.23 Proposal evaluation

1. Each of the responses shall be evaluated as per the criteria and requirements specified in this RFP.
2. Initial Proposal scrutiny will be held to confirm that Proposals do not suffer from the infirmities detailed below. Proposals may be treated as non-responsive if a Proposal is found to have been:
 - i. Submitted in manner not conforming with the manner specified in the RFP document.
 - ii. Submitted without appropriate EMD as prescribed herein.
 - iii. Containing subjective/incomplete information.
 - iv. Non-compliant with any of the clauses stipulated in the RFP.
 - v. Having lesser than the prescribed validity period.

2.24 Evaluation Process

1. The LPAI will constitute a committee to evaluate the responses of the Bidders (Technical Evaluation Committee).
2. The Technical Evaluation Committee constituted by the LPAI shall evaluate the responses to the RFP and all supporting documents / documentary evidence. Inability of a Bidder to submit requisite supporting documents / documentary evidence within a reasonable time provided to it, may lead to the Bidder's Proposal being declared non-responsive.



3. The decision of the Technical Evaluation Committee in the evaluation of responses to the RFP shall be final. No correspondence will be entertained outside the process of negotiation/ discussion with the Technical Evaluation Committee.
4. The Technical Evaluation Committee reserves the right to reject any or all Proposals based on any deviations contained in them.
5. Each of the responses shall be evaluated as per the criteria and requirements specified in this RFP. The evaluation stages are as follows: -

2.25 Stage 1: Pre – Qualification

The evaluation committee shall open Pre-Qualification Bid.

1. If the response to “pre-qualification” is received as per requirements and prescribed format, then the LPAI shall evaluate the response to the Pre-Qualification requirements in accordance with the Pre-qualification requirements specified in this RFP.
2. The Pre-Qualification bid must contain all the documents mentioned for Submission. Each of the Pre-Qualification condition mentioned is mandatory. In case the Bidder does not meet any one of the conditions, the Bidder may be disqualified.
3. A checklist has to be created by the Bidder and submitted along with the proposal with proper page-wise indexing of all supporting documents.
4. Only bidders that fulfil the pre-qualification conditions shall be eligible for the next stage of evaluation:

S no.	Criteria	Pre-qualification Criteria description	Required Documentary Evidence
1.	Incorporation of the Firm, Legal Entity	The Bidder could be. • A company incorporated in India under the Companies Act, 1956 or Companies Act 2013 (as amended till date), and subsequent amendments thereto. Or • An entity registered under LLP Act 2008 and subsequent amendments thereto. Or	• Copy of Certificate of Incorporation • Proof of Registration (applicable to Foreign Companies)



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S no.	Criteria	Pre-qualification Criteria description	Required Documentary Evidence
		- Partnership firm registered under Indian Partnership Act, 1932 AND - The firm should have been operational in India or abroad for the last 5 years and should have registered office in India at the time of submission of the bid.	
2.	Annual Turnover	The Bidder should have average annual turnover of minimum INR 5 Cr. from ICT (Information Communication & Technology) business in the LAST three financial years FY (2020-21, 2021-22, 2022-23).	Certificate from Statutory Auditor/CA for the same effect shall be attached by the Bidder.
3.	Positive Net Worth	The Bidder must have positive net worth as of March 31, 2023. For the purpose of this criterion, net-worth of only the bidding entity will be considered. Net-Worth of any parent, subsidiary, associated or other related entity will not be considered. Net Worth shall mean (Subscribed and Paid-up capital + Reserves) less (Revaluation reserves +	Duly certified statement from the statutory auditor for the year 2022-23 as per format given in Annexure 10



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S no.	Criteria	Pre-qualification Criteria description	Required Documentary Evidence
		miscellaneous expenditure not written off + reserves not available for distribution to equity shareholders).	
4.	Non-Blacklisting	The Bidder should not be blacklisted/ debarred by LPAI or across all ministries/ departments as per Order No. F. 1/20/2018-PPD, Department of Expenditure, Ministry of Finance, Procurement Policy Division.	An undertaking from Authorized Signatory
5.	Relevant Technical Experience	Prequalification condition: The Bidder should have implemented projects of CCTV Surveillance System in the last 10 (Ten) years with any State/Central Govt/PSUs/SEZs/Logistics Parks in India as on bid submission date as per the following: One (1) project of minimum value INR 8 Cr Two (2) projects with minimum project value 6 Cr Three (3) projects with minimum value INR 4 Cr.	- Work Order or engagement letter and Completion Certificate from the client mentioning Project value. - Or - Work Order or engagement letter + Phase Completion Certificate from the client with value - Or - Work Order or engagement letter + Certificate from CA stating work



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S no.	Criteria	Pre-qualification Criteria description	Required Documentary Evidence
			delivered and value of work (Please note that any proof submitted against this criterion shall list the scope of work)
6.	Criteria related to certification.	The Bidder should be: ISO 9001 certified organisation The certifications should be valid on the date of bid submission.	Copy of valid certificate issued to the Bidding Organization by respective agencies
7.	Local Support office	The bidder should have or establish a local support office within 30 days of issue of LOI . Local support office should be within 100 KM of site mentioned in RFP.	Address proof or Undertaking (whichever applicable)

OEM Minimum Qualification :

S.no.	Pre-qualification condition	Documents required
OEM for proposed CCTV		
1.	The OEM of Camera should have presence in India for the past 3 years as on date of submission of Bid.	Certificate of Incorporation Registration or Copy of GST registration
2.	The Intellectual Property Rights (IPR) of all manufactured final product and source code of all software including	Undertaking from OEM



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	camera firmware should not reside in countries sharing land borders with India, until unless specifically allowed by the Government of India and is registered with the Competent Authority of Government of India.	
3.	The Equipment supplied should not be manufactured by an entity in which the majority shareholding of the entity is from a country sharing land border with India. OEM should ensure that any component required to execute said work in RFP or its subcomponent (chipset, SOC etc.) should not be manufactured in a country restricted by GoI guidelines.	Undertaking from OEM
4.	Any of the proposed cameras should not contain any "HiSilicon" make chipset / SoC / Sensor / Any other Low end chip manufacturer with Security issues /parts.	Undertaking from OEM
5.	All cameras offered by the OEM should have embedded cybersecurity features.	Undertaking from OEM along with copy of certificate (if any)
6.	Bidder has to compulsorily quote a single make & model of each line item of the BoQ. The bid with multiple OEM & Models for single item is liable to be treated as non-compliant subject to discretion of technical committee & that bid is liable for rejection.	Unpriced BOQ (with Make and Model)
7.	OEM should have a fully equipped repair and maintenance centre in India as on date of submission of the Bid.	Details of Address.
8.	ONVIF Compliance: All Cameras should be inter-portability compliant ONVIF G and S standard and should support for all necessary profiles to meet the requirements specified in the RFP	Online ONVIF site verification docs as available on ONVIF Conformance site must be enclosed.
9.	As per the guidelines published under No. F. 1/20/2018-PPD, Department of Expenditure, Ministry of Finance,	Self-declaration on the letter head by the OEM, duly signed by the authorized signatory as per annexure



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	Procurement Policy Division, the OEM shall not be debarred: •By LPAI as on date of bid submission And •Across all ministries/ departments	
For Video Management System (VMS)		
10	The Proposed Video Management System should be well proven and implemented for Government (Centre or State) (at least one project) Video Management system should be interoperability compliant ONVIF G & S standard and should support for all necessary profiles to meet the requirements specified in the RFP. The VMS Software/OEM must have at least one Cyber Security Certification – STQC/CERT-IN/VAPT or ISO 27001 or equivalent.	• OEM shall provide copy of work order / contract agreement/ Purchase Order providing details confirming the compliance to the required criteria. • For Interoperability Compliance: Self-declaration on the letter head of the OEM signed by Authorized signatory mentioning the proposed product wise interoperability protocol(s) and relevant profiles. • Copy of relevant certification to be enclosed.
11	The OEM of Perimeter Protection Analytics solution should have implemented 01 project of Perimeter Protection Analytics Via Camera.	• Notarized Affidavit on stamp paper from OEM mentioning the Project name, project scope, email address and contact details of client. LPAI may check authenticity of details with client for the given project.
12	The OEM of Automatics Number Plate Recognition System solution should have implemented 01 project of Automatics Number Plate Recognition Analytics Via Camera.	• OEM shall provide copy of work order / contract agreement/ Purchase Order providing details confirming the compliance to the required criteria. • For Interoperability Compliance: Self-declaration on the letter head of the OEM signed by Authorized signatory mentioning the proposed product wise interoperability protocol(s) and relevant profiles. • Copy of relevant certification to be enclosed.



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12	The OEM of Facial Recognition System solution should have implemented 01 project of Facial Recognition System.	• OEM shall provide copy of work order / contract agreement/ Purchase Order providing details confirming the compliance to the required criteria. • For Interoperability Compliance: Self-declaration on the letter head of the OEM signed by Authorized signatory mentioning the proposed product wise interoperability protocol(s) and relevant profiles. • Copy of relevant certification to be enclosed.
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2.26 Stage 2: Technical Evaluation

1. Technical Bid will be evaluated only for Bidders who are declared successful in Pre-Qualification.
2. The evaluation committee will review the technical bids of the short-listed Bidders to determine whether the technical bids are substantially responsive. Bids that are not substantially responsive are liable to be disqualified at the LPAI's discretion.
3. Evaluation committee will require for the qualified bidders to conduct a demonstration of solution.
4. Date and Venue and mode (online or Physical) of Demonstration will be communicated to qualified Bidders .
5. The Bidder shall primarily be evaluated on their technical competency and experience. The technical evaluation criteria are as follows:

S.no.	Technical Evaluation Parameter	Marks	Document Required
A	Project Prior Experience	70	
A1	Average annual turnover in the last three financial years (FY 2020-21, 2021-22, 2022-23)	10	Certificate from Statutory Auditor/CA for the same effect shall be attached by the Service Provider
	> INR 5 Cr - =<INR 15 Cr	5	
	> INR 15 Cr - =<INR 25 Cr	8	
	> INR 25 Cr	10	
A2	The Bidder should have implemented projects of CCTV Surveillance System in the last 10 years with any State/Central Govt/PSUs/SEZs/Logistics Parks or	10	• Work Order or engagement letter and Completion



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S.no.	Technical Evaluation Parameter	Marks	Document Required
	similar in India as on bid submission date as per the following:		Certificate from the client mentioning Project value. Or
	One project with value not less than 5 crores	5	• Work Order or engagement letter + Phase Completion Certificate from the client with value
	One project with value not less than 8 crores	8	Or
	One project with value not less than 10 crores	10	• Work Order or engagement letter + Certificate from CA stating criterion
A3	The Bidder should have implemented Single project of CCTV Surveillance System in the last 10 years with any State/Central Govt/PSUs/SEZs/Logistics Parks or similar in India as on bid submission date as per the with	10	• Work Order or engagement letter and Completion Certificate from the client mentioning Project value. Or
	> 50 Camera - =< 100 camera	5	• Work Order or engagement letter + Phase Completion Certificate from the client with number of cameras commissioned.
	> 100 camera- =<150 Camera	8	Or
	> 150 Camera	10	• Work Order or engagement letter + Certificate from CA mentioning criterion
A4	The bidder having a local support office with in:-	10	• Address proof Rent agreement/Active GST with address/COI/Electricity bill.
	150 Km of Land Port Petrapole	5	
	100 Km of Land Port Petrapole	10	
A5	The OEM of Perimeter Protection Analytics should have implemented projects of Perimeter Protection Analytics Via camera in the last 10 years as on bid submission date	10	• Work Order or engagement letter and Completion Certificate from the client mentioning criterion. Or
	One Project	5	• Work Order or engagement letter + Phase Completion Certificate from the client mentioning criterion.
	Two Projects	8	Or
	Three Projects	10	



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S.no.	Technical Evaluation Parameter	Marks	Document Required
			• Work Order or engagement letter + Certificate from CA mentioning criterion
A6	The OEM of FRS solution should have implemented projects of Facial Recognition System in the last 10 years as on bid submission date	10	• Work Order or engagement letter and Completion Certificate from the client mentioning criterion. - Or • Work Order or engagement letter + Phase Completion Certificate from the client mentioning criterion - Or • Work Order or engagement letter + Certificate from CA mentioning criterion
	One Project	5	
	Two Projects	8	
	Three Projects	10	
A7	The OEM of VMS should have implemented projects of Video Management System in the last 10 years as on bid submission date.	10	• Completion Certificate or Undertaking from the client mentioning Number of FRS camera or licence. - Or • Work Order or engagement letter + Completion Certificate from the client - Or • Work Order or engagement letter + CA certificate for completion of the work.
	One Project	2	
	Two Projects	3	
	Three Projects	5	
B	Presentation and Proof of concept	30	
B1	Presentation: • Project Plan with timelines (5 marks) additional weightage will be given to bidders who propose earlier timelines against timelines proposed in RFP. • Detailed Approach and methodology for Implementation (5 Marks) • Details of each solution/feature as per technical proposal (5 Marks)	20	NA



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S.no.	Technical Evaluation Parameter	Marks	Document Required
	Project O&M methodology (5 Marks)		
B2	Demonstration of solution (10)	10	NA
	Total Marks (A+B)	100	

2.27 Stage 3: Commercial Evaluation

1. The Financial Bids of bidder who score a minimum of 70 marks in technical Evaluation shall be considered for financial opening as per GeM portal conditions.
2. The Successful Bidder shall be selected based on highest score (Quality cum Cost Based Selection (QCBS) as per the calculation and formula in GeM portal.
3. Weightage of 70% will be awarded for Technical Evaluation and 30% weightage will be awarded for Financial Evaluation.

The individual bidder's technical scores will be normalized as per the formula below:

$T_n = T_b / T_{max} \times 100$, where,

- T_n = normalized technical score for the bidder under consideration
- T_b = absolute technical score for the bidder under consideration
- T_{max} = maximum absolute technical score obtained by any bidder

The lowest evaluated Financial Proposal (F_{min}) will be given the maximum financial score (F_n) of 100 points. The financial scores (F_n) of the other Financial Proposals will be computed as per formula for determining the financial scores given below:

$F_n = 100 \times F_{min} / F_b$, where,

- F_n = normalized finance score for the bidder under consideration
- F_b = absolute financial score for the bidder under consideration
- F_{min} = minimum absolute financial score obtained by any bidder

The Final Composite Score (S) shall be computed for each firm by assigning 70% weightage to the Technical Score (T_n) and 30% weightage to Financial Score (F_n) using the formula given below:

$S = T_n \times 0.7 + F_n \times 0.3$ (rounded off to 2 decimal places)



4. Proposal with the lowest cost may be given a financial score of 100 (Hundred) and other proposals given financial scores that are inversely proportional to their prices w.r.t. the lowest offer.
5. Proposal with the highest technical marks (as allotted by the committee) shall be given a score of 100 (Hundred) and other proposals be given technical score that are proportional to their marks w.r.t. the highest technical marks.
6. The total score, both technical and financial, shall be obtained by weighing the quality and cost scores and adding them up. On the basis of the combined weighted score for quality and cost, the Bidder shall be ranked in terms of the total score obtained. The proposal obtaining the highest total combined score in evaluation of quality and cost will be ranked as H-1 followed by the proposals securing lesser marks as H-2, H-3 etc.
7. The proposal securing the highest combined marks and ranked H1 will be invited for negotiations, if required and shall be recommended for award of contract. In the event two or more bids have the same score in final ranking, the terms and conditions of the GeM shall be followed.
8. The bid price will include all taxes and levies and shall be in Indian Rupees. Taxes are to mention separately apart from the quoted base price of the proposed components.
9. Any conditional bid is liable for rejection.
10. If there is any discrepancy in the Financial Bid, it will be dealt as per the following:
 - a) If, in the price structure quoted for the required goods/ services/ works, there is discrepancy between the unit price and total price (which is obtained by multiplying the unit price by the quantity), the unit price shall prevail, and the total price corrected accordingly.
 - b) If there is an error in a total corresponding to the addition or subtraction of subtotals, the subtotals shall prevail, and the total shall be corrected.
 - c) If there is a discrepancy between words and figures, the amount in words shall prevail.
 - d) If there is such discrepancy in an offer, the same shall be conveyed to the Service Provider with target date up to which the Service Provider has to send the acceptance on the above lines and if the Service Provider does not agree to the decision of Authority, the Bid is liable to be ignored.

2.28 Post Qualification and Award Criteria

1. This determination will consider the Bidder's financial, technical, implementation and post-implementation strengths and capabilities. It will also include examination of the documentary evidence submitted by the Bidder as part of the bid as well as such other information as the Purchaser deems necessary and appropriate.
2. An affirmative determination will be a prerequisite for award of the Contract to the Bidder. A negative determination will result in rejection of the Bidder's bid, in which event; the Purchaser will proceed to the next best evaluated bid to make a similar



determination of that Bidder's capabilities to perform satisfactorily and award of contract.

3. The Purchaser is not bound to accept the best evaluated bid or any bid and reserves the right to accept any bid, wholly or in part.

2.29 Purchaser Right to Accept Any Bid and to Reject Any or All Bids

Purchaser reserves the right to accept or reject any proposal, and to annul the tendering process / public procurement process and reject all proposals at any time prior to award of contract, without thereby incurring any liability to the affected Bidder or Bidders or any obligation to inform the affected Bidder or Bidders of the grounds for Purchaser action.

2.30 Notification of Award

1. Prior to the expiration of the validity period, LPAI will notify the successful Bidder in writing or by fax or email, that its proposal has been accepted. The bidder shall provide his acceptance within a week of such notification. In case the tendering process / public procurement process has not been completed within the stipulated period, LPAI, may like to request the Bidders to extend the validity period of the bid.
2. The notification of award will constitute the formation of the contract. Upon the successful Bidder's furnishing of Performance Bank Guarantee, Purchaser will notify each unsuccessful Bidder and return their EMD.

2.31 Contract Finalization and Award

The Purchaser shall reserve the right to negotiate with the Bidder(s) whose proposal has been ranked best value bid on the basis of Technical and Commercial Evaluation to the proposed Project, as per the guidance provided by CVC. On this basis the draft contract agreement would be finalized for award & signing.

2.32 Performance Bank Guarantee

1. Within 15 days of the receipt of notification of award or Letter of Intent (LOI) from the Land Port Authority of India, the successful Bidder shall furnish the performance bank guarantee of 3% of total contract value in accordance with the Conditions of Contract, in the Performance Bank Guarantee format prescribed in Annexure 19 of this RFP document given by any nationalized/ scheduled bank.
2. Failure of the successful Bidders to comply with the requirement of Clause 2.33 (Signing of Contract) of this section shall constitute sufficient grounds for the annulment of the award and forfeiture of the EMD, in which event the Purchaser may award the Contract to the next best-evaluated bid or call for new bids.



3. All incidental charges whatsoever such as premium, commission etc. with respect to the Performance Bank Guarantee shall be borne by the Bidder. The successful Bidder shall ensure that the Performance Guarantee is valid always during the Term of the contract (including any renewal) and for a period of 180 (one hundred eighty) days beyond all the contractual obligations/ completion of contract period/ tenure of the appointment.
4. In the event of the Bidder being unable to service the contract for whatever reason, Purchaser will encash the PBG. Notwithstanding and without prejudice to any rights whatsoever of Purchaser under the contract in the matter, the proceeds of the PBG shall be in favour of Chairman, Land Port Authority of India, payable at New Delhi as compensation for the Bidder's failure to perform/comply with its obligations under the contract. Purchaser shall notify the Bidder in writing of the exercise of its right to receive such compensation within 14 (four-teen) days.
5. Before encashing the PBG, the vendor will be given an opportunity to represent before Purchaser. The decision of Purchaser on the representation given by the vendor shall be final and binding. If circumstances so warrant, the matter may be referred to an arbitrator(s) as appointed under section on Arbitration and Legal Jurisdiction of this RFP in Volume III.
6. The PBG is required to protect purchaser against the risk of selected Bidder's conduct, which would warrant the PBGs forfeiture.

2.33 Signing of Contract

1. After the LPAI notifies the successful Bidder that its proposal has been accepted, Purchaser shall enter into a contract, incorporating all clauses, pre-bid clarifications and the proposal of the Bidder between Purchaser and the successful Bidder.
2. The successful bidder shall sign the contract within 15 days from the date of notification of award.
3. Post awarding of contract, if the System Integrator refuses to sign the contract, then LPAI reserves the right to blacklist and forfeit the EMD of that System Integrator.

2.34 Failure to Agree with the Terms and Conditions of the RFP

Failure of the successful Bidder to agree with the Legal Agreement and Terms & Conditions of the RFP shall constitute sufficient grounds for the annulment of the award, in which event Purchaser may award the contract to the next best value Bidder or call for new proposals from the interested Bidders. In such a case, the LPAI shall invoke the PBG of the most responsive Bidder.

2.35 Purchaser's right to accept or reject any or all bids



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The Purchaser reserves the right to accept or reject any bid and to annul the bidding process and reject all bids at any time prior to award of contract, without thereby incurring any liability to the affected Bidder or Bidders or any obligation to inform the affected Bidder or Bidders of the grounds for the Purchaser's action.



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3 Section III- Annexures of Bid Submission Formats

3.1 Annexure 1: Bank Guarantee for Earnest Money Deposit

As per GeM Portal



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Contract after completion of DLP Period

3.2 Annexure 2: Pre-qualification Covering Bid Letter

<This shall be on Bidder's letter head>

To

The Chairman, Land Port Authority of India
1st floor, Lok Nayak Bhawan, Khan Market
New Delhi-110511

Reference: Supply, Installation, Testing & Commissioning of Integrated CCTV surveillance system at Land Port Petrapole with DLP of One Years and 4 Years of Comprehensive Annual Maintenance Contract after completion of DLP Period

This is to notify you that our company intends to submit a proposal in response to the above cited RFP reference.

1. Primary and Secondary contacts for our company are:

	Bidder
Name:	
Title:	
Company Name:	
Address:	
Phone:	
Mobile:	
Fax:	
E-Mail	

2. We confirm that the information contained in this response or any part thereof, including its exhibits, and other documents and instruments delivered or to be delivered are true, accurate, verifiable, and complete. The response includes all information necessary to ensure that the statements therein do not in whole or in part mislead Purchaser in its short-listing process.



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3. We fully understand and agree to comply that verification, if any of the information provided here is found to be misleading the short-listing process or unduly favours our company in the shortlisting process, we are liable to be dismissed from the selection process.
4. It is hereby confirmed that I/We are entitled to act on behalf of our corporation / company / firm / organization and empowered to sign this document as well as such other documents, which may be required in this connection.
5. This response to RFP is valid for 180 days i.e. until XX/XX/XXXX. This validity of the bid is unconditional in full compliance to the terms and conditions specified in the RFP.
6. The proposal contains ____ number of pages duly numbered and signed by the authorized signatory.

Duly authorized to sign the RFP response for and on behalf of XX

Yours sincerely,

(Signature)

Name:

Title/Appointment:

Name of the Company:

Address:

Date:

(Seal/Stamp of Bidder)



3.3 Annexure 3: Non-Disclosure Agreement

NON-DISCLOSURE AGREEMENT

WHEREAS, we the undersigned Bidder, _____, having our principal place of business/ registered office at _____, are desirous of bidding for RFP No. **XX** dated MM-DD-2021 covering **“Supply, Installation, Testing & Commissioning of Integrated CCTV surveillance system at Land Port Petrapole with DLP of One Years and 4 Years of Comprehensive Annual Maintenance Contract after completion of DLP Period”** (hereinafter called the said 'RFP') Land Port Authority of India (LPAI), 1st floor, Lok Nayak Bhawan, Khan Market, New Delhi-110511 hereinafter referred to as 'Purchaser' and,

WHEREAS, the Bidder is aware and confirms that the Purchaser's business/ operations, information, Application/software, hardware, business data, architecture schematics, designs, storage media and other information / documents made available by the Purchaser in the RFP documents during the bidding process and thereafter, or otherwise (confidential information for short) is privileged and strictly confidential and/or proprietary to the Purchaser,

NOW THEREFORE, in consideration of disclosure of confidential information, and in order to ensure the Purchaser's grant to the Bidder of specific access to Purchaser's confidential information, property, information systems, network, databases and other data, the Bidder agrees to all of the following conditions.

It is hereby agreed as under:

1. The confidential information to be disclosed by the Purchaser under this Agreement ("Confidential Information") shall include without limitation, any and all information in written, representational, electronic, verbal ("to be confirmed in writing within fifteen days of such verbal disclosure.") or other form relating directly or indirectly to processes, methodologies, algorithms, risk matrices, thresholds, parameters, reports, deliverables, work products, specifications, architecture, project information, money laundering typologies, related computer programs, systems, trend analysis, risk plans, strategies and information communicated or obtained through meetings, documents, correspondence or inspection of tangible items, facilities or inspection at any site to which access is permitted by the Purchaser.
2. Confidential Information does not include information which:
 - a. the Bidder knew or had in its possession, prior to disclosure, without limitation on its confidentiality;



- b. information in the public domain as a matter of law;
- c. is obtained by the Bidder from a third party without any obligation of confidentiality;
- d. the Bidder is required to disclose by order of a competent court or regulatory authority;
- e. is released from confidentiality with the written consent of the Purchaser.

The Bidder shall have the burden of proving hereinabove are applicable to the information in the possession of the Bidder.

3. The Bidder agrees to hold in trust any Confidential Information received by the Bidder, as part of the Bidding process or otherwise, and the Bidder shall maintain strict confidentiality in respect of such Confidential Information, and in no event a degree of confidentiality less than the Bidder uses to protect its own confidential and proprietary information. The Bidder also agrees:
 - a. to maintain and use the Confidential Information only for the purposes of bidding for this RFP and thereafter only as expressly permitted herein;
 - b. to only make copies as specifically authorized by the prior written consent of the Purchaser and with the same confidential or proprietary notices as may be printed or displayed on the original;
 - c. to restrict access and disclosure of Confidential Information to their employees, agents, and representatives strictly on a "need to know" basis, to maintain confidentiality of the Confidential Information disclosed to them in accordance with this clause; and
 - d. to treat Confidential Information as confidential unless and until Purchaser expressly notifies the Bidder of release of its obligations in relation to the said Confidential Information.
4. Notwithstanding the foregoing, the Bidder acknowledges that the nature of activities to be performed as part of the Bidding process or thereafter may require the Bidder's personnel to be present on premises of the Purchaser or may require the Bidder's personnel to have access to software, hardware, computer networks, databases, documents and storage media of the Purchaser while on or off premises of the Purchaser. It is understood that it would be impractical for the Purchaser to monitor all information made available to the Bidder's personnel under such circumstances and to provide notice to the Bidder of the confidentiality of all such information.
5. Therefore, the Bidder shall disclose or allow access to the Confidential Information only to those personnel of the Bidder who need to know it for the proper performance of their duties in relation to this project, and then only to the extent reasonably necessary. The Bidder will take appropriate steps to ensure that all personnel to whom access to the Confidential Information is given are aware of the Bidder's confidentiality obligation. Further, the Bidder



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shall procure that all personnel of the Bidder are bound by confidentiality obligation in relation to all proprietary and Confidential Information received by them which is no less onerous than the confidentiality obligation under this agreement.

6. The Bidder shall establish and maintain appropriate security measures to provide for the safe custody of the Confidential Information and to prevent unauthorised access to it.
7. The Bidder agrees that upon termination/expiry of this Agreement or at any time during its currency, at the request of the Purchaser, the Bidder shall promptly deliver to the Purchaser the Confidential Information and copies thereof in its possession or under its direct or indirect control, and shall destroy all memoranda, notes and other writings prepared by the Bidder or its Affiliates or directors, officers, employees or advisors based on the Confidential Information and promptly certify such destruction.
8. Confidential Information shall at all times remain the sole and exclusive property of the Purchaser. Upon completion of the Bidding process and/or termination of the contract or at any time during its currency, at the request of the Purchaser, the Bidder shall promptly deliver to the Purchaser the Confidential Information and copies thereof in its possession or under its direct or indirect control, and shall destroy all memoranda, notes and other writings prepared by the Bidder or its Affiliates or directors, officers, employees or advisors based on the Confidential Information within a period of sixty days from the date of receipt of notice, or destroyed, if incapable of return. The destruction shall be witnessed and so recorded, in writing, by an authorized representative of the Purchaser. Without prejudice to the above the Bidder shall promptly certify to the Purchaser, due and complete destruction and return. Nothing contained herein shall in any manner impair rights of the Purchaser in respect of the Confidential Information.
9. In the event that the Bidder hereto becomes legally compelled to disclose any Confidential Information, the Bidder shall give sufficient notice and render best effort assistance to the Purchaser to enable the Purchaser to prevent or minimize to the extent possible, such disclosure. Bidder shall not disclose to a third party any Confidential Information or the contents of this RFP without the prior written consent of the Purchaser. The obligations of this Clause shall be satisfied by handling Confidential Information with the same degree of care, which the Bidder applies to its own similar Confidential Information but in no event less than reasonable care.

For and on behalf of:

(BIDDER)

Authorised Signatory

Office Seal:



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Name:

Place:

Designation:

Date :

Note: The Bidder and shall execute a **Non-Disclosure Agreement (NDA)** as per above format, in favour of the Purchaser before signing of the contract



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3.4 Annexure 4: Integrity Pact

Between

Land Port Authority of India (LPAI) hereinafter referred to as "The Principal",

And

(Bidder's Name) hereinafter referred to as "The Bidder/Contractor".

Preamble

The Principal intends to award, under laid down organizational procedures, contract/s for Selection of System Integrator for Supply, Installation, Testing & Commissioning of Integrated CCTV surveillance system at Land Port Petrapole with DLP of One Years and 4 Years of Comprehensive Annual Maintenance Contract after completion of DLP Period The Principal values full compliance with all relevant laws of the land, rules, regulations, economic use of resources and of fairness / transparency in its relations with its Bidder(s) and / or Contractor(s).

In order to achieve these goals, the principal will appoint Independent External Monitors (IEMs) who will monitor the tender process and the execution of the contract for compliance with the principles mentioned above.

Section 1 - Commitments of the Principal

1. The Principal commits itself to take all measures necessary to prevent corruption and to observe the following principles: -
 - a. No employee of the Principal, personally or through family members, will in connection with the tender for, or the execution of a contract, demand; take a promise for or accept, for self or third person, any material or immaterial benefit which the person is not legally entitled to.
 - b. The principal will, during the tender process treat all Bidder(s) with equity and reason. The principal will in particular, before and during the tender process, provide to all Bidder(s) the same information and will not provide to any Bidder(s) confidential/additional information through which the Bidder(s) could obtain an advantage in relation to the tender process or the contract execution.
 - c. The principal will exclude from the process all known prejudiced persons.
2. If the Principal obtains information on the conduct of any of its employees which is a criminal offence under the IPC/PC Act, or if there be a substantive suspicion in this regard, the principal will inform the Chief Vigilance Officer and in addition can initiate disciplinary actions.

Section 2 - Commitments of the Bidder(s)/ Contractor(s)



1. The Bidder(s) / Contractor(s) commits themselves to take all measures necessary to prevent corruption. The Bidder(s)/ Contractor(s) commits themselves to observe the following principles during participation in the tender process and during the contract execution.
 - a) The Bidder(s)/ Contractor(s) will not, directly or through any other person or firm, offer, promise or give to any of the Principal's employees involved in the tender process or the execution of the contract or to any third person any material or other benefit which he/she is not legally entitled to, in order to obtain in exchange any advantage of any kind whatsoever during the tender process or during the execution of the contract.
 - b) The Bidder(s)/ Contractor(s) will not enter with other Bidders into any undisclosed agreement or understanding, whether formal or informal. This applies in particular to prices, specifications, certifications, subsidiary contracts, submission or non-submission of bids or any other actions to restrict competitiveness or to introduce cartelisation in the bidding process.
 - c) The Bidder(s)/ Contractor(s) will not commit any offence under the relevant IPC/PC Act; further the Bidder(s)/ Contractor(s) will not use improperly, for purposes of competition or personal gain, or pass on to others, any information or document provided by the principal as part of the business relationship, regarding plans, technical proposals, and business details, including information contained or transmitted electronically.
 - d) The Bidder(s)/Contractors(s) of foreign origin shall disclose the name and address of the Agents / representatives in India, if any, Similarly the Bidder(s)/Contractors(s) of Indian Nationality shall furnish the name and address of the foreign principals, if any. Further details as mentioned in the "Guidelines on Indian Agents of Foreign Suppliers" shall be disclosed by the Bidder(s)/Contractor(s). Further, as mentioned in the Guidelines all the payments made to the Indian agent/representative have to be in Indian Rupees only. Copy of the "Guidelines on Indian Agents of Foreign Suppliers" is placed at (page nos. 6-7).
 - e) The Bidder(s)/ Contractor(s) will, when presenting their bid, disclose any and all payments made, is committed to or intends to make to agents, brokers or any other intermediaries in connection with the award of the contract.
 - f) Bidder(s) /Contractor(s) who have signed the Integrity Pact shall not approach the Courts while representing the matter to IEMs and shall wait for their decision in the matter.
2. The Bidder(s) / Contractor(s) will not instigate third persons to commit offences outlined above or be an accessory to such offences.

Section 3 - Disqualification from tender process and exclusion from future contracts

If the Bidder(s)/Contractor(s), before award or during execution has committed a transgression through a violation of Section 2, above or in any other form such as to put their



reliability or credibility in question, the principal is entitled to disqualify the Bidder(s)/Contractor(s) from the tender process or take action as

per the procedure mentioned in the "Guidelines on Banning of business dealings". Copy of the "Guidelines on Banning of business dealings" is placed at (page nos. 8-17).

Section 4 - Compensation for Damages

1. If the Principal has disqualified the Bidder(s) from the tender process prior to the award according to Section 3, the principal is entitled to demand and recover the damages equivalent to Earnest Money Deposit/ Bid Security.
2. If the Principal has terminated the contract according to Section 3, or if the Principal is entitled to terminate the contract according to Section 3, the Principal shall be entitled to demand and recover from the Contractor liquidated damages of the Contract value or the amount equivalent to Performance Bank Guarantee.

Section 5 - Previous transgression

1. The Bidder declares that no previous transgressions occurred in the last three years with any other Company in any country conforming to the anti-corruption approach or with any Public Sector Enterprise in India that could justify his exclusion from the tender process.
2. If the Bidder makes incorrect statement on this subject, he can be disqualified from the tender process or action can be taken as per the procedure mentioned in "Guidelines on Banning of business dealings".

Section 6 - Equal treatment of all Bidders I Contractors I Subcontractors

1. In case of Sub-contracting, the Principal Contractor shall take the responsibility of the adoption of Integrity Pact by the Sub-contractor.
2. The Principal will enter into agreements with identical conditions as this one with all Bidders and Contractors.
3. The Principal will disqualify from the tender process all Bidders who do not sign this Pact or violate its provisions.

Section 7 - Criminal charges against Violating Bidder(s) / Contractor(s) /Subcontractor(s)

1. If the Principal obtains knowledge of conduct of a Bidder, Contractor or Subcontractor, or of an employee or a representative or an associate of a Bidder, Contractor or Subcontractor which constitutes corruption, or if the Principal has substantive suspicion in this regard, the Principal will inform the same to the Chief Vigilance Officer.

Section 8 - Independent External Monitor



1. The principal appoints competent and credible Independent External Monitor for this Pact after approval by Central Vigilance Commission. The task of the Monitor is to review independently and objectively, whether and to what extent the parties comply with the obligations under this agreement.
2. The Monitor is not subject to instructions by the representatives of the parties and performs his/her functions neutrally and independently. The Monitor would have access to all Contract documents, whenever required. It will be obligatory for him / her to treat the information and documents of the Bidders/Contractors as confidential. He/ she reports to the Chairman, LPAI.
3. The Bidder(s)/Contractor(s) accepts that the Monitor has the right to access without restriction to all Project documentation of the Principal including that provided by the Contractor. The Contractor will also grant the Monitor, upon his/her request and demonstration of a valid interest, unrestricted and unconditional access to their project documentation. The same is applicable to Sub-contractors.
4. The Monitor is under contractual obligation to treat the information and documents of the Bidder(s)/ Contractor(s)/ Sub-contractor(s) with confidentiality. The Monitor has also signed declarations on 'Non-Disclosure of Confidential Information' and of 'Absence of Conflict of Interest'. In case of any conflict of interest arising at a later date, the IEM shall inform Chairman, LPAI and recuse himself / herself from that case.
5. The principal will provide to the Monitor sufficient information about all meetings among the parties related to the Project provided such meetings could have an impact on the contractual relations between the Principal and the Contractor. The parties offer to the Monitor the option to participate in such meetings.
6. As soon as the Monitor notices, or believes to notice, a violation of this agreement, he/ she will so inform the Management of the Principal and request the Management to discontinue or take corrective action, or to take other relevant action. The monitor can in this regard submit non-binding recommendations. Beyond this, the Monitor has no right to demand from the parties that they act in a specific manner, refrain from action or tolerate action.
7. The Monitor will submit a written report to the Chairman, LPAI within 8 to 10 weeks from the date of reference or intimation to him by the Principal and, should the occasion arise, submit proposals for correcting problematic situations.
8. If the Monitor has reported to the Chairman LPAI , a substantiated suspicion of an offence under relevant IPC/ PC Act, and the Chairman LPAI has not, within the reasonable time taken visible action to proceed against such offence or reported it to the Chief Vigilance Officer, the Monitor may also transmit this information directly to the Central Vigilance Commissioner.
9. The word 'Monitor' would include both singular and plural.

Section 9 - Pact Duration



1. This Pact begins when both parties have legally signed it. It expires for the Contractor 12 months after the last payment under the contract, and for all other Bidders 6 months after the contract has been awarded. Any violation of the same would entail disqualification of the Bidders and exclusion from future business dealings.
2. If any claim is made / lodged during this time, the same shall be binding and continue to be valid despite the lapse of this pact as specified above, unless it is discharged / determined by Chairman of LPAI.

Section 10 - Other provisions

1. This agreement is subject to Indian Law. Place of performance and jurisdiction is the Registered Office of the Principal, i.e. New Delhi.
2. Changes and supplements as well as termination notices need to be made in writing. Side agreements have not been made.
3. If the Contractor is a partnership or a consortium, this agreement must be signed by all partners or consortium members.
4. Should one or several provisions of this agreement turn out to be invalid, the remainder of this agreement remains valid. In this case, the parties will strive to come to an agreement to their original intentions.
5. Issues like Warranty / Guarantee etc. shall be outside the purview of IEMs.
6. In the event of any contradiction between the Integrity Pact and its Annexure, the Clause in the Integrity Pact will prevail.



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For & On behalf of the principal)

(Office Seal)

(For & On behalf of Bidder /Contractor)

(Office Seal)

Place:

Date:

BUYER		BIDDER	
Name of the Officer			
Designation			
Organization			
Witness		Witness	
1		1	
2		2	



3.5 Annexure 5: Undertaking on Blacklisting

(Company letterhead) [Date]

To,

The Chairman, Land Port Authority of India
1st floor, Lok Nayak Bhawan, Khan Market
New Delhi-110511

Ref : Selection of System Integrator for Supply, Installation, Testing & Commissioning of Integrated CCTV surveillance system at Land Port Petrapole with DLP of One Years and 4 Years of Comprehensive Annual Maintenance Contract after completion of DLP Period, GEM Bid No

Subject: Self-Declaration of System Integrator shall not be blacklisted / banned / debarred as per Order No. F. 1/20/2018-PPD, Department of Expenditure, Ministry of Finance, Procurement Policy Division for selection of “Supply, Installation, Testing & Commissioning of Integrated CCTV surveillance system at Land Port Petrapole with DLP of One Years and 4 Years of Comprehensive Annual Maintenance Contract after completion of DLP Period”

Dear Sir,

We confirm that our company _____ as on date of submission of the proposal is not blacklisted/ debarred by LPPI or across all ministries/ departments as per Order No. F. 1/20/2018-PPD, Department of Expenditure, Ministry of Finance, Procurement Policy Division.

We also declare that we have been blacklisted (if applicable) by the following departments:

S.no.	Department Name	Date of Contract Award	Date of Blacklisting	Reason for blacklisting

Yours faithfully,

Authorized Signatory Designation



3.6 Annexure 6: Format for Power of Attorney to Authorize Signatory

<To be executed in favor of the Authorized Signatory>

It is clarified that the Bidder may submit the Power of Attorney in their own format clearly stating that the person is authorized to sign on behalf of the bidder. It is also clarified that the "Letter of Authorization" is to be read as "Power of Attorney".

(To be executed by Bidder on Non – judicial stamp paper of INR 100/-or such equivalent amount and document duly attested by notary public)

Know all men by these presents, We, *[Insert full legal name of the bidding entity]*, having registered office at *[Insert registered office address]* (hereinafter referred to as the "Principal") do hereby constitute, nominate, appoint and authorize *[Insert full name of authorized signatory]* son of *[Insert father's name]* presently residing at *[Insert address of authorized signatory]* who is presently employed with us and holding the position of *[Insert position/designation of the authorized signatory]* as our true and lawful attorney (hereinafter referred to as the "Authorized Attorney") to do in our name and on our behalf, all such acts, deeds and things as are necessary or required in connection with or incidental to the submission of our proposal in response to the RFP bearing number _____ for '<RFP Name>' dated _____, including but not limited to signing and submission of all applications, proposals and other documents and writings, participating in pre-Bid and other conferences and providing information/ responses to the Land Port Authority of India (hereinafter referred to as the "LPAI"), representing us in all matters before the LPAI, signing and execution of all contracts and undertakings/declarations consequent to acceptance of our Proposal and generally dealing with the LPAI in all matters in connection with or relating to or arising out of our Proposal for the said assignment and/or upon award thereof to us till the execution of appropriate Agreement/s with the LPAI.

AND, we do hereby agree to ratify and confirm all acts, deeds and things lawfully done or caused to be done by our said Authorized Attorney pursuant to and in exercise of the powers conferred by this deed of Power of Attorney and that all acts, deeds and things done by our said Authorized Attorney in exercise of the powers hereby conferred shall always be deemed to have been done by us.

IN WITNESS THEREOF WE, _____ THE ABOVE-NAMED
PRINCIPAL HAVE EXECUTED THIS POWER OF ATTORNEY ON THIS DAY OF, 2021

For _____



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(Signature Authority of Company)
name, designation and address)
[Please put company seal if required]
[Notarize the signatures]

(Signature Authority For tender)
name, designation, and address)
[Please put company seal if required]
[Notarize the signatures]

Witness 1:

Witness 2:

Name:	Name:
Designation:	Designation:
Address:	Address:
Signature:	Signature:



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3.7 Annexure 7: Bidder Profile

Bidder				
S. No.	Particulars	Description/Details	Reference Documents	Page No.
A.	Name of Bidder		-	-
B.	Contact Details		-	-
	Address			
	Telephone No.			
	Fax			
	Email			
	Website			
C.	Incorporation Details		Certified copy of incorporation under Indian Companies Act, 1956 Or Equivalent Copy of Certificate of Incorporation	
	Incorporation Number			
	Date of Incorporation			
	Authority			
D.	Sales / Trade Tax Regn. Details		Certified copy of valid Sales/Trade Tax Registration	
	Sales / Trade Tax No.			
	Date			
	Registration Authority			
E.	GST Regn Details		Certified copy of valid	



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Bidder				
S. No.	Particulars	Description/Details	Reference Documents	Page No.
	GST No.		GST Registration in India	
	Date			
	Registration Authority			
F.	Legal Status of Company			
G.	Name of Authorized Signatory		Special Power of Attorney, duly authorizing the person signing the bid documents to sign on behalf of the Bidder and thereby binding the Bidder	
	Position			
	Telephone			
	Fax			
	Mobile			
	Email			
H	Number & Address of Offices			
	a) In India			
Full Name and Signature of the Authorized Representative:				

Bidder:

Signature -----

Name -----

Designation -----

Company -----

Date -----



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3.8 Annexure 8: Response to Qualification Criteria

Pre Qualification Criteria

S no.	Criteria	Pre-qualification Criteria description	Required Documentary Evidence	Bidder response
1.	Incorporation of the Firm, Legal Entity	The Bidder could be. • A company incorporated in India under the Companies Act, 1956 or Companies Act 2013 (as amended till date), and subsequent amendments thereto. Or • An entity registered under LLP Act 2008 and subsequent amendments thereto. Or • Partnership firm registered under Indian Partnership Act, 1932 AND • The firm should have been operational in India or abroad for the last 5 years and should have registered office in India at the time of submission of the bid.	• Copy of Certificate of Incorporation • Proof of Registration (applicable to Foreign Companies)	•
2.	Annual Turnover	The Bidder should have average annual turnover of minimum INR 5 Cr. from ICT (Information Communication & Technology) business in	• Certificate from Statutory Auditor/CA for the same effect shall be	•



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S no.	Criteria	Pre-qualification Criteria description	Required Documentary Evidence	Bidder response
		the LAST three financial years FY (2020-21, 2021-22, 2022-23).	attached by the Bidder.	
3.	Positive Net Worth	The Bidder must have positive net worth as of March 31, 2023. For the purpose of this criterion, net-worth of only the bidding entity will be considered. Net-Worth of any parent, subsidiary, associated or other related entity will not be considered. Net Worth shall mean (Subscribed and Paid-up capital + Reserves) less (Revaluation reserves + miscellaneous expenditure not written off + reserves not available for distribution to equity shareholders).	Duly certified statement from the statutory auditor for the year 2022-23 as per format given in Annexure 10	
4.	Non-Blacklisting	The Bidder should not be blacklisted/debarred by LPAI or across all ministries/departments as per Order No. F. 1/20/2018-PPD, Department of Expenditure, Ministry of Finance,	An undertaking from Authorized Signatory	



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S no.	Criteria	Pre-qualification Criteria description	Required Documentary Evidence	Bidder response
		Procurement Policy Division.		
5.	Relevant Technical Experience	Prequalification condition: The Bidder should have implemented projects of CCTV Surveillance System in the last 10 (Ten) years with any State/Central Govt/PSUs/SEZs/Logistics Parks in India as on bid submission date as per the following: One (1) project of minimum value INR 8 Cr Two (2) projects with minimum project value 6 Cr Three (3) projects with minimum value INR 4 Cr.	• Work Order or engagement letter and Completion Certificate from the client mentioning Project value. Or • Work Order or engagement letter + Phase Completion Certificate from the client with value Or • Work Order or engagement letter + Certificate from CA stating work delivered and value of work (Please note that any proof submitted against	•



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S no.	Criteria	Pre-qualification Criteria description	Required Documentary Evidence	Bidder response
			this criterion shall list the scope of work)	
6.	Criteria related to Application Development/ Implementation	The Bidder should be: ISO 9001 certificated organisation The certifications should be valid on the date of bid submission.	Copy of valid certificate issued to the Bidding Organization by respective agencies	
7.	Local Support office	The bidder should have or establish a local support office within 30 days of issue of LOI . Local support office should be within 200 KM of site mentioned in RFP.	Address proof or Undertaking (whichever applicable)	

OEM Minimum Qualification :

S.no.	Pre-qualification condition	Documents required	Bidder response
OEM for proposed CCTV			
1.	The OEM of Camera should have presence in India for the past 3 years as on date of submission of Bid.	Certificate of Incorporation Registration or Copy of GST registration	
2.	The Intellectual Property Rights (IPR) of all manufactured final product and source code of all software including camera firmware should	Undertaking from OEM	



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	not reside in countries sharing land borders with India, until unless specifically allowed by the Government of India and is registered with the Competent Authority of Government of India.		
3.	The Equipment supplied should not be manufactured by an entity in which the majority shareholding of the entity is from a country sharing land border with India. OEM should ensure that any component required to execute said work in RFP or its subcomponent (chipset, SOC etc.) should not be manufactured in a country restricted by GoI guidelines.	• Undertaking from OEM	•
4.	Any of the proposed cameras should not contain any "HiSilicon" make chipset / SoC / Sensor / Any other Low end chip manufacturer with Security issues /parts.	• Undertaking from OEM	•
5.	All cameras offered by the OEM should have embedded cybersecurity features.	• Undertaking from OEM along with copy of certificate (if any)	•
6.	Bidder has to compulsorily quote a single make & model of each line item of the BoQ. The bid with multiple OEM & Models for single item is liable to be treated as non-	Unpriced BOQ (with Make and Model)	



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	compliant subject to discretion of technical committee & that bid is liable for rejection.		
7.	OEM should have a fully equipped repair and maintenance centre in India as on date of submission of the Bid.	Details of Address.	•
8.	ONVIF Compliance: All Cameras should be inter-portability compliant ONVIF G and S standard and should support for all necessary profiles to meet the requirements specified in the RFP	Online ONVIF site verification docs as available on ONVIF Conformance site must be enclosed.	•
9.	As per the guidelines published under No. F. 1/20/2018-PPD, Department of Expenditure, Ministry of Finance, Procurement Policy Division, the OEM shall not be debarred: - By LPAI as on date of bid submission And - Across all ministries/ departments	Self-declaration on the letter head by the OEM, duly signed by the authorized signatory as per annexure	•
For Video Management System (VMS)			
10	The Proposed Video Management System should be well proven and implemented for Government (Centre or State) (at least one project) Video Management system should be interoperability compliant ONVIF G & S standard and	- OEM shall provide copy of work order / contract agreement/ Purchase Order providing details confirming the compliance to the required criteria. - For Interoperability Compliance: Self-declaration on the letter head of the OEM	•



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	should support for all necessary profiles to meet the requirements specified in the RFP. The VMS Software/OEM must have at least one Cyber Security Certification – STQC/CERT-IN/VAPT or ISO 27001 or equivalent.	signed by Authorized signatory mentioning the proposed product wise interoperability protocol(s) and relevant profiles. • Copy of relevant certification to be enclosed.	
11	The OEM of Perimeter Protection Analytics solution should have implemented 01 project of Perimeter Protection Analytics Via Camera.	• Notarized Affidavit on stamp paper from OEM mentioning the Project name, project scope, email address and contact details of client. LPAI may check authenticity of details with client for the given project.	•

Technical Qualification

S.no	Technical Evaluation Parameter	Marks	Document Required	Bidder response
A	Project Prior Experience	70		
A1	Average annual turnover in the last three financial years (FY 2020-21, 2021-22, 2022-23)	10	Certificate from Statutory Auditor/CA for the same effect shall be attached by the Service Provider	
	> INR 5 Cr - =<INR 15 Cr	5		
	> INR 15 Cr - =<INR 25 Cr	8		
	> INR 25 Cr	10		
A2	The Bidder should have implemented projects of CCTV Surveillance System in the last 10 years with any State/Central Govt/PSUs/SEZs/Logistics Parks or similar in India as on bid submission date as per the following:	10	• Work Order or engagement letter and Completion Certificate from the client mentioning Project value. - Or	•
	One project with value not less than 5 crores	5		



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	One project with value not less than 8 crores	8	• Work Order or engagement letter + Phase Completion Certificate from the client with value	
	One project with value not less than 10 crores	10	Or • Work Order or engagement letter + Certificate from CA stating criterion	
A3	The Bidder should have implemented Single project of CCTV Surveillance System in the last 10 years with any State/Central Govt/PSUs/SEZs/Logistics Parks or similar in India as on bid submission date as per the with	10	• Work Order or engagement letter and Completion Certificate from the client mentioning Project value. Or	•
	> 50 Camera - =< 100 camera	5	• Work Order or engagement letter + Phase Completion Certificate from the client with number of cameras commissioned. Or	
	> 100 camera- =<150 Camera	8	• Work Order or engagement letter + Certificate from CA mentioning criterion	
	> 150 Camera	10		
A4	The bidder having a local support office with in:-	10	• Address proof Rent agreement/Active GST with address/COI/Electricity bill.	•
	150 Km of Land Port Petrapole	5		
	100 Km of Land Port Petrapole	10		
A5	The OEM of Perimeter Protection Analytics should have implemented projects of Perimeter Protection Analytics Via camera in the last 10 years as on bid submission date	10	• Work Order or engagement letter and Completion Certificate from the client mentioning criterion. Or	•
	One Project	5		
	Two Projects	8		



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	Three Projects	10	• Work Order or engagement letter + Phase Completion Certificate from the client mentioning criterion. - Or • Work Order or engagement letter + Certificate from CA mentioning criterion	
A6	The OEM of FRS solution should have implemented projects of Facial Recognition System in the last 10 years as on bid submission date	10	• Work Order or engagement letter and Completion Certificate from the client mentioning criterion. - Or • Work Order or engagement letter + Phase Completion Certificate from the client mentioning criterion - Or • Work Order or engagement letter + Certificate from CA mentioning criterion	•
	One Project	5		
	Two Projects	8		
	Three Projects	10		
A7	The OEM of VMS should have implemented projects of Video Management System in the last 10 years as on bid submission date.	10	• Completion Certificate or Undertaking from the client mentioning Number of FRS camera or licence. - Or • Work Order or engagement letter + Completion Certificate from the client - Or	•
	One Project	2		
	Two Projects	3		
	Three Projects	5		



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			• Work Order or engagement letter + CA certificate for completion of the work.	
B	Presentation and Proof of concept	30		



Annexure 9: Acceptance Format

To

The Chairman, Land Port Authority of India
1st floor, Lok Nayak Bhawan, Khan Market
New Delhi-110511

Sub:

Name of Work: Selection of System Integrator for Supply, Installation, Testing & Commissioning of Integrated CCTV surveillance system at Land Port Petrapole with DLP of One Years and 4 Years of Comprehensive Annual Maintenance Contract after completion of DLP Period

GEM Bid No :

Dear Sir,

Having examined the conditions of contract and specifications including addenda, I/we, the undersigned, offer to undertake **the Selection of System Integrator for Supply, Installation, Testing & Commissioning of Integrated CCTV surveillance system at Land Port Petrapole with DLP of One Years and 4 Years of Comprehensive Annual Maintenance Contract after completion of DLP Period** in conformity with the specifications, terms & conditions of Tender.

1. I/We agree to abide by the terms and provisions of the said conditions of the contract and provisions contained in the notice inviting tender and Price Bid. I/We hereby unconditionally accept the tender conditions of LPAI's tender documents in its entirety for the above work. It is certified that I/we have not stipulated any condition(s) in our Price offer. In case any condition(s) are found in our tender offer, the same may be treated as withdrawn.
2. E- Bid response submitted by us is prepared as per the tender document and submitted on e-tendering portal.
3. It is clarified that after unconditionally accepting the tender conditions in its entirety, it is not permissible to put any remarks / conditions (except unconditional rebates on quoted rates if any) in the tender enclosed in envelope "A", "B"& "C" and the same has been followed in the present case. In case any provisions of this tender are found violated after opening envelope "A", "B"& "C". I / we agree that the tender shall be rejected and LPAI shall without prejudice to any other right or remedy be at liberty to forfeit the full said earnest money absolutely.
4. We understand that LPAI is not bound to accept the lowest or any bid. LPAI may change, at its discretion tendered quantities maximum by ± 30 percent.



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5. I/We hereby submit the Earnest Money of Rs. for the tender for the above-mentioned work.
6. That, I/We declare that I/We have not paid and shall not pay bribe to any officer of LPAI for awarding this contract at any stage during its execution or at the time of payment of bills, and further if any officer of LPAI asks for bribe/gratification, I shall immediately report it to the Appropriate Authority in LPAI.
7. That, I/We undertake that LPAI's tender document shall form part of contract agreement.
8. We understand that only the Prices quotes available to LPAI on opening of Price Bid at GEM (without conditions and options) shall only be taken for Price Comparison.
9. We also undertake that we are offering only make and model of Hardware & Software solution in conformity to function requirement of RFP, for which compliance statement is submitted for perusal and have quoted Prices on GEM
10. Bid submitted on e-tendering portal are as per the instructions contained in the RFP and we also understand that if it is found to be contrary our Bid offer stands summarily rejected by LPAI.
11. I /We declare that I/we have received and read through all tender documents, corrigendum and clarifications uploaded by LPAI on the e-tendering portal for the project.

Yours Faithfully,

(Signature of the Bidder)

with rubber stamp

Date: _____



3.9 Annexure 9: Letter of Declaration-Cum-Undertaking

[On the letterhead of the Bidder]

Date: [Please insert]

We, [____Name of the Bidder____], hereby declare that, we have carefully read and understood the terms and conditions set-out under the RFP For Selection of System Integrator for Supply, Installation, Testing & Commissioning of Integrated CCTV surveillance system at Land Port Petrapole with DLP of One Years and 4 Years of Comprehensive Annual Maintenance Contract after completion of DLP Period GEM Bid No document and its Annexures and Addendum/Corrigendum issued by Land Port Authority of India (LPAI).

The terms and conditions therein are acceptable to us.

We declare that, there is no pending/previous litigation against us, which would prevent us from fulfilling the terms and conditions of the Agreement, in the event LPAI enters into the Agreement with us. We also declare that, none of our promoters, Directors or officers is convicted, nor detained in custody or is undergoing imprisonment, and there is no criminal charge, prosecution or proceedings instituted, carried on or pending against any of our promoter, Director or officer for any offence, punishable with imprisonment.

We further declare and confirm that, we have never been debarred or blacklisted by anybody, pursuant to any business activity undertaken with them or, in relation to any participation by us, in any tender called by them.

We hereby certify and declare that, the information given above, are true and correct, and binding on us, if successful in the tender.

We agree that, in case the documents submitted by us along with the Proposal are found inadequate, false or/and incorrect, our Proposal will be liable to be rejected by LPAI without assigning any reason therefor. In addition, LPAI reserves its right to debar us from participation in any further tender process of LPAI.

We understand, LPAI reserves itself, the right to reject the conditional offer without assigning any reason thereto. LPAI does not bind itself to accept the highest or any Proposal and reserves the right of accepting the whole or any part of the Proposal.

We further declare and confirm that, we are aware of the required Licenses & Permits and clearances to be obtained for undertaking our obligations pursuant to the Agreement, under the applicable laws.



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LPAI is at liberty to forthwith terminate the Agreement at any time during the term of the contract, in the event any material representation or information given by us is fake, fabricated, deceptive, wrong or/and incorrect.

We also undertake that, from the time the Proposal is submitted/opened, to the time the contract is awarded, we will not contact LPAI or any of its officers, agents, employees, representatives or consultants, on any matter related to our commercial, technical or/and financial offer. Any effort by us to influence LPAI in the examination, evaluation, ranking of the Proposal, and recommendation for award of the contract shall result in the rejection/disqualification of our Proposal.

Capitalized terms used herein, shall have the meaning ascribed to them in the RFP document.

Authorized Signatory of the Bidder

Stamp



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3.10 Annexure 10: Financial Information of the Bidder

<<To be completed by the Bidder, by each partner as appropriate to demonstrate that they meet the requirements>>

<<On the letterhead of the Chartered Accountant >>

<<To be submitted along with Audited Financial Statements>>

Date:

To

The Chairman, Land Port Authority of India
1st floor, Lok Nayak Bhawan, Khan Market
New Delhi-110511

Dear Sir,

We have examined the books of accounts and other relevant records of <<Bidder Name along with registered address>>. On the basis of such examination and according to the information and explanation given to us, and to the best of our knowledge & belief, we hereby certify that the annual turnover for the three years i.e. from FY 2019-2020 to FY 2021-22 was as per details given below:

	2019-20	2021-22	2022-23
Annual Turnover			
Net worth			

(Signature of the Chartered Accountant)

Name :

Designation :

Membership Number :

Date :

Company Seal :

Business Address :



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3.11 Annexure 11: Financial Bid Submission Letter

To

<<Date>>

The Chairman, Land Port Authority of India
1st floor, Lok Nayak Bhawan, Khan Market
New Delhi-110511

Sub: Response to the Selection of System Integrator for Supply, Installation, Testing & Commissioning of Integrated CCTV surveillance system at Land Port Petrapole with DLP of One Years and 4 Years of Comprehensive Annual Maintenance Contract after completion of DLP Period

Ref: GEM Bid No. _____ dated _____

Dear Sir / Madam,

We, the undersigned Bidders, having read and examined in detail all the RFP/ bidding documents in respect of do hereby propose to provide services as specified in the RFP document number

_____ dated _____.

1. PRICE AND VALIDITY

- All the prices mentioned in our Tender are in accordance with the terms as specified in the RFP documents. All the prices and other terms and conditions of this Bid are valid for a period of **180 Days** calendar days from the date of opening of the Bid.
- We hereby confirm that our prices include all taxes. However, all the taxes are quoted separately under relevant sections.
- We understand that the actual payment would be made as per the existing tax rates during the time of payment.

2. UNIT RATES

We have indicated in the relevant forms enclosed, the unit rates for the purpose of on account of payment as well as for price adjustment in case of any increase to / decrease from the scope of work under the contract.

3. TENDER PRICING

We further confirm that the prices stated in our bid are in accordance with your Instruction to Bidders included in Tender documents.



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4. QUALIFYING DATA

We confirm having submitted the information as required by you in your Instruction to Bidders. In case you require any other further information/documentary proof in this regard before evaluation of our Tender, we agree to furnish the same in time to your satisfaction.

5. BID PRICE

- a) We declare that our Bid Price is for the entire scope of the work as specified in Volume II. These prices are indicated Commercial Bid attached with our Tender as part of the Tender.

6. PERFORMANCE BANK GUARANTEE

We hereby declare that in case the contract is awarded .to us, we shall submit the Performance Bank Guarantee as specified in Volume I of this RFP document.

Our Financial Proposal shall be binding upon us subject to the modifications resulting from Contract negotiations, up to expiration of the validity period of the Proposal, i.e., [Date].

We understand you are not bound to accept any Proposal you receive.

We hereby declare that our Tender is made in good faith, without collusion or fraud and the information contained in the Tender is true and correct to the best of our knowledge and belief.

We understand that our Tender is binding on us and that you are not bound to accept a Tender you receive.

Yours sincerely,

Authorized Signature:

Name and Title of Signatory:

Name of Firm:

Address:



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3.12 Annexure 12: Relevant Credentials

S. No.	Name of project	Client name	Role of the Bidder	Cost of assignment	Date of commencement of the project	Date of Go – Live of the project

For each of the project listed above the Bidder needs to provide documentary evidence. For each of the projects in the list, the Bidder needs to provide details in the format provided in Annexure 13

Bidder:

Signature -----

Name -----

Designation -----

Company -----

Date -----



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3.13 Annexure 13: Project Details

For Bidder (please specify) _____	
Name of the project: Selection of System Integrator for Supply, Installation, Testing & Commissioning of Integrated CCTV surveillance system at Land Port Petrapole with DLP of One Years and 4 Years of Comprehensive Annual Maintenance Contract after completion of DLP Period	Location:
Project Value: (in INR Crores):	
Status: (Complete / Ongoing / Phase Completed)	
Client Name:	Client Address:
Brief description of the project:	
Actual Services provided in the project:	
Work Order/Engagement Letter No. (Copy to be enclosed):	
Completion Certificate (Copy to be enclosed):	
Phase Certificate (copy to be enclosed): (in case of ongoing project)	

Bidder:

Signature -----

Name -----

Designation -----

Company -----

Date -----



3.14 Annexure 14: Technical Bid Submission Letter

(To be submitted on the Letterhead of the responding firm)

To

The Chairman, Land Port Authority of India
1st floor, Lok Nayak Bhawan, Khan Market
New Delhi-110511
Sir,

Sub: Response to the **Selection of System Integrator for Supply, Installation, Testing & Commissioning of Integrated CCTV surveillance system at Land Port Petrapole with DLP of One Years and 4 Years of Comprehensive Annual Maintenance Contract after completion of DLP Period**

Ref: **GEM Bid No. <<>> dated << 2020>>**

We, the undersigned Bidders, having read and examined in detail all the RFP/ bidding documents in respect of “**Selection of System Integrator for Supply, Installation, Testing & Commissioning of Integrated CCTV surveillance system at Land Port Petrapole with DLP of One Years and 4 Years of Comprehensive Annual Maintenance Contract after completion of DLP Period**”, do hereby propose to provide our services as specified in the bidding proposal submitted by us.

1. NO DEVIATIONS

We declare that all the services shall be performed strictly in accordance with the RFP documents and we agree to all the terms and conditions in the RFP. We have not taken any deviations in the Scope of work, Terms and Conditions, Functional Requirement Specifications and Technical Specifications.

Further, we confirm that we have not mentioned any additional conditions, assumptions and if any, found in the Proposal documents shall not be given effect to.

2. QUALIFYING DATA

We confirm having submitted the information as required by you as Qualification Criteria. In case you require any other further information / documentary proof in this regard before evaluation of our bid, we agree to furnish the same in time to your satisfaction.

3. PERFORMANCE BANK GUARANTEE



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We hereby declare that in case the contract is awarded to us, we shall submit the contract Performance bank guarantee in the form prescribed in Annexure 27 of **Section III of this document.**

4. We hereby declare that our bid is made in good faith, without collusion or fraud. All the information and statements made in this Proposal are true and accept that any misinterpretation contained in it may lead to our disqualification.

5. We understand that our bid is binding on us and that you are not bound to accept any Bid you receive.

Thanking you,

Yours faithfully,

(Signature of the Single Bidder/ Prime Bidder (in case of Sub-Contractor))

Printed Name

Designation

Seal

Date:

Place:

Business Address:



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3.16 Annexure 15: Financial Bid Formats

The Bidder shall submit the financial bid in the format provided in this section.

The bid value shall include all taxes and shall be in Indian Rupees (₹).

The bid value shall be mentioned in words and figures. If there is a discrepancy between words and figures, the amount in words will prevail.

Total Bid Value

SR No	Item Description	Total Cost (Inclusive of All Applicable TAX) in Figure	Total Cost (Inclusive of All Applicable TAX) In words
1	CAPEX		
2	OPEX		
Total Project Value		0	



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Detailed BOQ

SR No	Item Description	Quantity	UOM	Unit Price	Unit Price (inclusive of All Applicable TAX)	Total Price (Inclusive of All Applicable TAX)
A: Capex Cost						
CCTV and Access Control Systems						
1	Supply and Installation 5 MP Varifocal Dome Camera	24	Nos			
2	Supply and Installation 5 MP Varifocal Box Bullet Camera	200	Nos			
3	Supply and Installation PTZ camera	25	Nos			
4	Supply and installation Fisheye 360 Degree	1	Nos			
5	Supply, Installation, Testing & Commissioning of Crash Rated (K4) Electrohydraulic bollard including Controller & all other Accessories required for operations and integration of same with LPMS system.	4	Nos			
6	Supply and Installation Retractable Dual Lane Flap Barrier with Facial Recognition Device , Fingerprint sensor , Control Box, Controller with safety sensors, Trigger Controller, Outdoor Enclosure, Push Button with enclosure IP67 rated, UPS with 2 hours backup and all other Accessories required for Operation	1	Set			
7	Supply and Installation Field Ups With 60 Min Back Up for CCTV	125	Nos			
8	Supply and Installation 5m Pole for Bullet camera	100	Nos			



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9	Supply and Installation 5m Pole for PTZ Camera	25	Nos			
10	Supply and Installation Outdoor waterproof Junction Box with PDU and 2 FAN (9U Rack) size as per design of Bidder	125	Nos			
11	Supply and Installation of any other Equipment required as per RFP or design of solution	1	Lot			

Fire Alarm System for Warehouses (4 Nos) and Power Station

12	Supply and Installation Fire Alarm Control Panel	4	Nos			
13	Supply and Installation Analogue Beam detector	20	Nos			
14	Supply and Installation Call Point Flush Mounting + MCP Back Box	10	Nos			
15	Supply and Installation Intelligent Wall Mounted Sounder + Base	10	Nos			
16	Supply and Installation 2 Core 1.5Sq.mm FRLS Red Armoured cable per meter	2000	Nos			
17	Supply and Installation Brackets for Beam Detectors	15	Nos			
18	Supply and Installation 12-volt 7AH battery	6	Nos			
19	Supply and Installation 24 V10 A SMPS with Junction Box	10	Nos			
20	Supply and Installation 6 AMP Switch Socket with Boxes	10	Nos			

Field Active Networking Components

21	Supply and Installation 8 Port POE switch with SFP module	125	Nos			
22	Supply and Installation of any other Equipment required as per RFP or design of solution	1	Lot			

Passive Networking Components



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23	Supply and Installation UTP Cable CAT 6 with Conduit Pipe (40MM) and Laying	10000	Mrt			
24	Supply and Installation Fiber Optic Outdoor Armored 12 Core with HDPE 2"	4000	Mrt			
25	Supply and Installation Digging iof Hard and soft surface (as per Condition)	4000	Mrt			
26	Supply and Installation LIU, 12 Fiber, Rack Mount	151	Nos			
27	Supply and Installation Wire Manager, Optical Fiber Patch Cord, SM, SC to LC, UTP Cable CAT 6 Patch Cord , Reinforced flexible pipe , SC Pigtails (SM) etc	1	Lot			
28	Supply and Installation Power cable 2.5mm	2000	Mrt			
29	Supply and Installation of any other Equipment required as per RFP or design of solution	1	LS			

Control Room

30	Supply and Installation Video wall (5X3) with all accessories for operation.	1	lot			
31	Supply and Installation Online UPS 10KVA with Back up of 1 hour	1	Nos			
32	Supply and Installation Biometric and Facial recognition Based Access Control System For command control Centre FRS (One gate Entry Exit)	1	Lot			
33	Supply and Installation Server for VMS (Quantity as per bidder design)	1	Lot			
34	Supply and Installation Server for FRS (Quantity as per bidder design)	1	Lot			
35	Supply and Installation Server for Analytics(Quantity as per bidder design)	1	Lot			
36	Supply and Installation Server for DR (Quantity as per bidder design)	1	Lot			
37	Supply and Installation Storage of 60 days (Quantity as per bidder design)	1	Lot			
38	Supply and Installation Tape Drive for Storage of flag data for 365 days	1	Lot			



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39	Supply and Installation 24 Port managed Layers 3 Switch with SFP Module (Core Switch)	1	Nos			
40	Supply and Installation UTM	1	Nos			
41	Supply and Installation VMS software	1	Nos			
42	Supply and Installation VMS licence	310	Nos			
43	Supply and Installation FRS licence	10	Nos			
44	Supply and Installation Parameter Protection Analytics License	20	Nos			
45	Supply and Installation Analytics License	60	Nos			
46	Supply and Installation Health Monitoring system	1	Nos			
47	Supply and Installation Software Information and Management System	1	Nos			
48	Supply and Installation Access Control Application and Mobile App	1	Nos			
49	Supply and Installation Video Management Client Desktop with three 19-inch monitor	5	Nos			
50	Supply and Installation 42U Rack for Server size as per design of Bidder	1	Nos			
51	Supply and Installation of any other Equipment required as per RFP or design of solution	1	Lot			
52	Integration with Land Port Management system	1	Lot			
Total (Capex)						
(B) Opex						
DLP						
53	DLP For first Year	1	Lot			



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54	CAMC For Second Year	1	Lot			
55	CAMC For Third Year	1	Lot			
56	CAMC For Fourth Year	1	Lot			
57	CAMC For Fifth Year	1	Lot			
Total (Opex)						
Total Project Cost						

Note*: LPAI retains the option to extend the CAMC for an additional two years, with pricing remaining consistent with that quoted for the fifth year CAMC.



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3.17

Annexure 16: Unpriced BOQ with Make and Model

SR No	Item Description	Quantity	UOM	Make	Model	Country Of Origin
A: Capex Cost						
CCTV and Access Control Systems						
1	Supply and Installation 5 MP Varifocal Dome Camera	24	Nos			
2	Supply and Installation 5 MP Varifocal Box Bullet Camera	200	Nos			
3	Supply and Installation PTZ camera	25	Nos			
4	Supply and installation Fisheye 360 Degree	1	Nos			
5	Supply, Installation, Testing & Commissioning of Crash Rated (K4) Electrohydraulic bollard including Controller & all other Accessories required for operations and integration of same with LPMS system.	4	Nos			
6	Supply and Installation Retractable Dual Lane Flap Barrier with Facial Recognition Device , Fingerprint sensor , Control Box, Controller with safety sensors, Trigger Controller, Outdoor Enclosure, Push Button with enclosure IP67 rated, UPS with 2 hours backup and all other Accessories required for Operation	1	Set			
7	Supply and Installation Field Ups With 60 Min Back Up for CCTV	125	Nos			
8	Supply and Installation 5m Pole for Bullet camera	100	Nos			
9	Supply and Installation 5m Pole for PTZ Camera	25	Nos			
10	Supply and Installation Outdoor waterproof Junction Box with PDU and 2 FAN (9U Rack) size as per design of Bidder	125	Nos			
11	Supply and Installation of any other Equipment required as per RFP or design of solution	1	Lot			



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Fire Alarm System for Warehouses (4 Nos)						
12	Supply and Installation Fire Alarm Control Panel	4	Nos			
13	Supply and Installation Analogue Beam detector	20	Nos			
14	Supply and Installation Call Point Flush Mounting + MCP Back Box	10	Nos			
15	Supply and Installation Intelligent Wall Mounted Sounder + Base	10	Nos			
16	Supply and Installation 2 Core 1.5Sq.mm FRLS Red Armoured cable per meter	2000	Nos			
17	Supply and Installation Brackets for Beam Detectors	15	Nos			
18	Supply and Installation 12-volt 7AH battery	6	Nos			
19	Supply and Installation 24 V10 A SMPS with Junction Box	10	Nos			
20	Supply and Installation 6 AMP Switch Socket with Boxes	10	Nos			
Field Active Networking Components						
21	Supply and Installation 8 Port POE switch with SFP module	125	Nos			
22	Supply and Installation of any other Equipment required as per RFP or design of solution	1	Lot			
Passive Networking Components						
23	Supply and Installation UTP Cable CAT 6 with Conduit Pipe (40MM) and Laying	10000	Mrt			
24	Supply and Installation Fiber Optic Outdoor Armored 12 Core with HDPE 2"	4000	Mrt			
25	Supply and Installation Digging iof Hard and soft surface (as per Condition)	4000	Mrt			
26	Supply and Installation LIU, 12 Fiber, Rack Mount	151	Nos			
27	Supply and Installation Wire Manager, Optical Fiber Patch Cord, SM, SC to LC, UTP Cable CAT 6 Patch Cord , Reinforced flexible pipe , SC Pigtails (SM) etc	1	Lot			
28	Supply and Installation Power cable 2.5mm	2000	Mrt			



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29	Supply and Installation of any other Equipment required as per RFP or design of solution	1	Lot			
Control Room						
30	Supply and Installation Video wall (5X3) with all accessories for operation.	1	lot			
31	Supply and Installation Online UPS 10KVA with Back up of 1 hour	1	Nos			
32	Supply and Installation Biometric and Facial recognition Based Access Control System For command control Centre FRS (One gate Entry Exit)	1	Lot			
33	Supply and Installation Server for VMS (Quantity as per bidder design)	1	Lot			
34	Supply and Installation Server for FRS (Quantity as per bidder design)	1	Lot			
35	Supply and Installation Server for Analytics and ANPR (Quantity as per bidder design)	1	Lot			
36	Supply and Installation Server for DR (Quantity as per bidder design)	1	Lot			
37	Supply and Installation Storage of 60 days (Quantity as per bidder design)	1	Lot			
38	Supply and Installation Tape Drive for Storage of flag data for 365 days	1	Lot			
39	Supply and Installation 24 Port managed Layers 3 Switch with SFP Module (Core Switch)	1	Nos			
40	Supply and Installation UTM	1	Nos			
41	Supply and Installation VMS software	1	Nos			
42	Supply and Installation VMS licence	310	Nos			
43	Supply and Installation FRS licence	10	Nos			
44	Supply and Installation Parameter Protection Analytics License	20	Nos			



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45	Supply and Installation Analytics License	60	Nos			
46	Supply and Installation Health Monitoring system	1	Nos			
47	Supply and Installation Software Information and Management System	1	Nos			
48	Supply and Installation Access Control Application and Mobile App	1	Nos			
49	Supply and Installation Video Management Client Desktop with three 19-inch monitor	5	Nos			
50	Supply and Installation 42U Rack for Server size as per design of Bidder	1	Nos			
51	Supply and Installation of any other Equipment required as per RFP or design of solution	1	Lot			
51	Integration with Land Port Management system	1	Lot			



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3.18 Annexure 17: Nil Deviation Certificate

To
Chairman,
Land Port Authority of India

1. This is to certify that, the specifications mentioned in **Selection of System Integrator for Supply, Installation, Testing & Commissioning of Integrated CCTV surveillance system at Land Port Petrapole with DLP of One Years and 4 Years of Comprehensive Annual Maintenance Contract after completion of DLP Period** which I/ We have mentioned in the technical bid, and which I/ We shall supply if I/ We am/ are awarded with the work, are in conformity with the minimum specifications of the bidding document and that there are no deviations of any kind from the requirement specifications.
2. Also, I/ we have thoroughly read the tender and by signing this certificate, we hereby submit our token of unconditional acceptance to all the terms & conditions of the bidding document without any deviations.
3. I/ We also certify that the price I/ we have quoted is inclusive of all the cost factors involved in the end-to-end implementation and execution of the project, to meet the desired Standards set out in the bidding Document.

Thanking you,

Yours faithfully

(Signature of the Authorized signatory of the Bidding Organization)

Name :

Designation :

Date :

Company Seal :

Business Address :



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3.19 Annexure 18: Manufacturers Authorization Form

To

The Chairman, Land Port Authority of India
1st floor, Lok Nayak Bhawan, Khan Market
New Delhi-110511

Ref : **Selection of System Integrator for Supply, Installation, Testing & Commissioning of Integrated CCTV surveillance system at Land Port Petrapole with DLP of One Years and 4 Years of Comprehensive Annual Maintenance Contract after completion of DLP Period**

Sub: Authorization of <company name of Bidder> to Provide Services Based on Our Product(s)

Sir,

1. This is to certify that I/We am/are the Original Equipment Manufacturer in respect of the products listed below. I/We confirm that <name of Bidder> have due authorization from us to provide services, to LPAI, that are based on our product(s) listed below as per **Selection of System Integrator for Supply, Installation, Testing & Commissioning of Integrated CCTV surveillance system at Land Port Petrapole with DLP of One Years and 4 Years of Comprehensive Annual Maintenance Contract after completion of DLP Period** We further endorse the warranty and contracting terms provided by Bidder to LPAI.
2. I/We are the Original Equipment Manufacturer in respect of the products listed. I/We do hereby undertake that our products being installed by <Bidder Name >, pursuant to the Request for Proposal (tender) document relating to < Name of Work> to LPAI, will be inspected to ensure they are installed, commissioned and supported to the best of the operating characteristics of these applications' equipment.
3. I/We also undertake that we will provide support to in quality of deliverables and in ensuring that the solution is implemented in the best of ways by exploiting all the capabilities offered by the solution, to meet the requirements of LPAI.

<u>S. No.</u>	<u>Product Name</u>	<u>Remarks</u>

Yours faithfully,

Authorised Signatory

Designation



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OEM's company name

3.20 Annexure 19: Performance Bank Guarantee

Ref: _____

Date _____

Bank Guarantee No. _____

To

{Procurement Entity}

1. IN consideration of the Chairman, Land Port Authority of India, Ministry of Home Affairs, Department of Border Management, 1st Floor, Lok Nayak Bhawan, Khan Market, New Delhi-110511, _____ < indicate name and address of purchaser > (hereinafter called "the LPPI") having agreed; to exempt _____ (hereinafter called "Agency") from the demand, under the terms and conditions of an Agreement, dated _____ made between _____ and _____ for _____ (hereinafter called "the said Contract"), of security deposit for the due fulfilment by the said Agency of the terms and conditions contained in the said Agreement, on production of a bank Guarantee for Rs. _____ (Rupees _____ only) we, _____ < indicate name of the Bank > (hereinafter referred to as "the Bank") at the request of _____ or Agency or , do hereby undertake to pay to the Land Port Authority of India an amount not exceeding Rs. _____ against any loss or damage caused to or suffered or would be caused to or suffered by the Government by reason of any breach by the said Agency of any of the terms or conditions contained in the said contract
2. We _____ < indicate name of the Bank > do hereby undertake to pay the amounts due and payable under this guarantee without any demur, merely on a demand from the Chairman, Land Port Authority of India, Ministry of Home Affairs, Department of Border Management, 1st Floor, Lok Nayak Bhawan, Khan Market, New Delhi-110511 stating that the amount claimed is due by way of loss or damage caused to or would be caused to or suffered by the Land Port Authority of India by reason of breach by the said Agency of any of the terms or conditions contained in the said Contract or by reason of the Agency failure to perform the said Contract. Any such demand made on the bank shall be conclusive as regards the amount due and payable by the Bank under this guarantee. However, our liability under this guarantee shall be restricted to an amount not exceeding Rs. _____



3. We undertake to pay to the Chairman, Land Port Authority of India, Ministry of Home Affairs, Department of Border Management, 1st Floor, Lok Nayak Bhawan, Khan Market, New Delhi-110511 any money so demanded notwithstanding any dispute or disputes raised by the contractor(s) supplier(s) in any suit or proceeding pending before any court or Tribunal relating thereto our liability under this present being absolute and unequivocal.
4. The payment so made by us under this bond shall be a valid discharge of our liability for payment there under and the contractor(s) supplier(s) shall have no claim against us for making such payment.
5. We, _____ <indicate name of the Bank> further agree that the guarantee herein contained shall remain in full force and effect during the period that would be taken for the performance of the said Contract and that it shall continue to be enforceable till all the dues of the Contract under or by virtue of the said Contract have been fully paid and its claims satisfied or discharged or filed _____ Office or Department _____ certifies that the terms and conditions of the said contract, have been fully and properly carried out by the said Agency and accordingly discharges this guarantee. Unless a demand or claim under this guarantee is made on us in writing on or before the _____ we shall be discharged from all liability under this guarantee thereafter.
6. We, _____ <indicate name of the Bank> further agree with the Land Port Authority of India that it shall have the fullest liberty without our consent and without affecting in any manner our obligations hereunder to vary any of the terms and conditions of the said Contract or to extend time of performance by the said Agency from time to time or to postpone for any time or from time to time any of the powers exercisable by the Land Port Authority of India against the said Land Port Authority of India and to for bear or enforce any of the terms and conditions relating to the said contract and we shall not be relieved from our liability by reason of any such variation or extension being granted to the said agency or for any forbearance, act or commission on the part of the Land Port Authority of India or any indulgence by the Land Port Authority of India to the said Agency or by any such matter or thing whatsoever which under the law relating to sureties would, but for this provision, have effect of so relieving us.
7. This guarantee will not be discharged due to the change in the constitution of the Bank or the agency.
8. We, _____ <indicate name of the Bank> lastly undertake not to revoke this guarantee during its currency except with the previous consent of the Land Port Authority of India in writing.



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NOTWITHSTANDING ANYTHING CONTAINED HEREIN:

- I. Our liability under this Bank Guarantee shall not exceed Rs. <<Amount in figures>> (Rupees
- II. <<Amount in words>> only)
- III. This Bank Guarantee shall be valid up to <<insert date>>)
- IV. It is condition of our liability for payment of the guaranteed amount or any part thereof arising under this Bank Guarantee that we receive a valid written claim or demand for payment under this Bank Guarantee on or before <<insert date>>) failing which our liability under the guarantee will automatically cease.

Date _____

Place _____

Signature _____

Witness _____

Name _____

(Bank's common seal)



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3.21 Annexure 20: Change Control Notice (CCN) Format

Change Control Note	CCN Number
Part A: Initiation	
Title:	
Originator:	
Sponsor:	
Date of Initiation:	
Details of Proposed Change	
(To include reason for change and appropriate details/specifications. Identify any attachments as A1, A2, and A3 etc.)	
Authorized by :	Date:
Name:	
Signature:	Date:
Received by the IP	
Name:	
Signature:	
Change Control Note	CCN Number:
Part B: Evaluation	
(Identify any attachments as B1, B2, and B3 etc.) Changes to Services, charging structure, payment profile, documentation, training, service levels and component working arrangements and any other contractual issue.	
Brief Description of Solution:	
Impact:	
Deliverables:	
Timetable:	
Charges for Implementation: (Including a schedule of payments)	
Other Relevant Information: (Including value-added and acceptance criteria)	
Authorized by the Implementation Partner	Date:
Name:	
Signature:	



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3.22 Annexure 21: Compliance to Technical Specifications for CCTV System

3.22.1 5 MP Varifocal Dome Camera

S No	Parameter	Technical Descriptions.	Compliance (Yes or No)	Remarks
Proposed Make: Proposed Model:				
1.	Imaging Device	1/2.8" Progressive CMOS		
2.	Maximum Resolution	5MP or better		
3.	Angle of View	Wide :100° ~ 30° (Horizontal), 72° ~ 23° (Vertical) 135°~ 38° (Diagonal		
4.	Minimum Illumination	0.08 Lux (color) 0.008 Lux (B/W)		
5.	IR Range	40 m inbuilt		
6.	Day/Night Method	Auto/Light on/Light Off/Day/Night/Light Sensor/Smart		
7.	Signal-to-Noise Ratio	55 db minimum		
8.	Iris Lens Type	P-IRIS or better		
9.	Electronic Shutter Range	1/5 s- 1/10,000 s		
10.	Wide Dynamic Range	120dB or better		
11.	Back light compensation	BLC, HLC, Defog, AWB, AGC, Anti-flicker, Corridor Mode, Deblur.		
12.	Digital Noise Reduction	3D		



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13.	Privacy Masking	4 adjustable masking zones (8 colours, rectangles, free scalable)		
14.	Motion Detection	Off/ On / By Schedule, Yes		
15.	Image Settings	Compression, 3D digital noise reduction (ON/OFF) colour, brightness, sharpness, contrast, white balance, exposure control, exposure zones, backlight compensation, fine tuning of behaviour at low light, rotation, and all other Image Settings in Web UI		
16.	Network	RJ-45 (10/100Base-T)		
17.	Power Input	12 VDC/24 VAC and PoE (IEEE 802.3af class 0 compatible)		
19.	Local Storage	Support microSD/SDHC/SDXC Card Local Storage, up to 128GB Class 10		
20.	Alarm Input	1 in		
21.	Alarm Output	1 out		
22.	Lens	f = 2.7 mm to 12 mm (motor-varifocal)		
23.	Focus	Auto Focus		
24.	Video Compression	H.264 or better		
25.	Video Streams	3 video streams configurable up to 8 profiles		
26.	Resolution	30 fps @ full resolution		
27.	Onvif Compatible	Profile S,G		
28.	Supported Protocols	HTTP, HTTPS, TCP, FTP, RTSP, RTP, UDP, SMTP, SNMP, ICMP,		



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		IGMP, DHCP, UPnP, PPPoE, QoS, NTP, DDNS, ARP, IPv4/v6		
29.	Audio Input	1 channel Line in		
30.	Audio Output	1 channel Line out		
31.	Audio Encoding	Line-in, Line-out, G.711, G.726		
32.	Audio Streaming	Dual-Channel		
33.	Network Security and Cyber security	User Authentication, IP-Filter, HTTPS (TSL 1.2/1.3), IEEE802.1X (SHA-2)		
34.	Operating Temperature	0 °C to + 55 °		
36.	Operating Humidity	0% to 90%, non-condensing		
37.	Ingress Protection and Impact Resistance	IP 66 , IK10		
38.	Regulatory Certification (On Name of OEM)	BIS , CE, FCC, UL/EN		
39.	Edge Recording	Min 128 GB on board SD card should be provided to store data in case of network failure		
40.	Bundled Smart Feature (On Edge)	Loitering, Intrusion Detection, Line Crossing Detection, People Counting, Stationary Object Detection, Heat Map, Queue Length Detection, Motion Detection, Facial Detection, Smoke and Fire Detection.		

3.22.2 5 MP Varifocal Box Bullet Camera

S No	Parameter	Technical Descriptions.	Compliance (Yes or No)	Remarks
Proposed Make: Proposed Model:				



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1.	Imaging Device	1/2.8" Progressive CMOS		
2.	Maximum Resolution	5MP or better		
3.	Angle of View	Wide :100° ~ 30° (Horizontal), 72° ~ 23° (Vertical) 135°~ 38° (Diagonal		
4.	Minimum Illumination	0.08 Lux (color) 0.008 Lux (B/W)		
5.	IR Range	40 m inbuilt		
6.	Day/Night Method	Auto/Light on/Light Off/Day/Night/Light Sensor/Smart		
7.	Signal-to-Noise Ratio	55 db minimum		
8.	Iris Lens Type	P-IRIS or better		
9.	Electronic Shutter Range	1/5 s- 1/10,000 s		
10.	Wide Dynamic Range	120dB or better		
11.	Back light compensation	BLC, HLC, Defog, AWB, AGC, Anti-flicker, Corridor Mode, Deblur.		
12.	Digital Noise Reduction	3D		
13.	Privacy Masking	4 adjustable masking zones (8 colours, rectangles, free scalable)		
14.	Motion Detection	Off/ On / By Schedule, yes		
15.	Image Settings	Compression, 3D digital noise reduction (ON/OFF) colour, brightness, sharpness, contrast, white balance, exposure control, exposure zones, backlight compensation, fine tuning of behaviour at low light,		



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		rotation, and all other Image Settings in Web UI		
16.	Network	RJ-45 (10/100Base-T)		
17.	Power Input	12 VDC/24 VAC and PoE (IEEE 802.3af class 0 compatible)		
18.	Local Storage	Support micro-SD/SDHC/SDXC Card Local Storage, up to 128GB Class 10		
19.	Alarm Input	1 in		
20.	Alarm Output	1 out		
21.	Lens	f = 2.7 mm to 12 mm (motor-varifocal)		
22.	Focus	Auto Focus		
23.	Video Compression	H.264 or better		
24.	Video Streams	3 video streams configurable up to 8 profiles		
25.	Resolution	30 fps @ Full resolution		
26.	Onvif Compatible	Profile S,G		
27.	Supported Protocols	HTTP, HTTPS, TCP, FTP, RTSP, RTP, UDP, SMTP, SNMP, ICMP, IGMP, DHCP, UPnP, PPPoE, QoS, NTP,DDNS, ARP, IPv4/v6		
28.	Audio Input	1 channel Line in		
29.	Audio Output	1 channel Line out		
30.	Audio Encoding	Line-in, Line-out, G.711, G.726		
31.	Audio Streaming	Dual-Channel		
32.	Network Security	User Authentication, IP-Filter, HTTPS,TSL 1.2/1.3, IEEE802.1X (SHA-2)		



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33.	Operating Temperature	0 °C to + 55 °		
34.	Operating Humidity	0% to 90%, non-condensing		
35.	Ingress Protection and Impact Resistance	IP 66 , IK10		
36.	Regulatory Certification (On Name of OEM)	BIS, CE, FCC,UL/EN		
37.	Edge Recording	Min 128 GB on board SD card should be provided to store data in case of network failure		
38.	Bundled Smart Feature (On Edge)	Loitering, Intrusion Detection, Line Crossing Detection, People Counting, Stationary Object Detection, Heat Map, Queue Length Detection, Motion Detection, Facial Detection, Smoke and Fire Detection.		

12 MP Fisheye Camera

S No	Parameter	Technical Descriptions.	Compliance (Yes or No)	Remarks
Proposed Make: Proposed Model:				
1	Mega pixel	12 MP Fisheye		
2	Image sensor	1/2.3" Progressive CMOS		
3	Resolution	2944x2944		
4	Picture Format	16:9		
5	Lens	f = 1.22mm (Fisheye)		
6	Lens mounting	CS-Mount		
7	F-Stop	F2.0		



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8	Minimum sensitivity	0.1 Lux (color), 0.01 Lux (B/W)		
9	Day/Night function Sensor/Smart	Auto/Light on/Light Off/Day/Night/Light		
10	IR-LED	20 m or better		
11	Wide Dynamic Range	120db or better		
12	White balance	One Push, Manual, AWB, Smart, Smart Touch		
13	Exposure	Automatic / Manual		
14	Shutter	1/5 - 1/10,000 s		
15	Backlight Compensation	Yes		
16	Digital Noise Reduction	3D		
17	Text overlay	Yes		
18	Automatic gain control (AGC)	Automatic, Manual		
19	Interface	RJ-45 (10/100Base-T)		
20	Colour / B/W switching	Auto/manual		
21	Image rotation	180°		
22	Picture rate (full resolution)	20fps @ full Resolution		
23	Picture Rate	MJPEG: 1080p@30fps		
24	Video Streaming	3 video streams configurable up to 8 profiles or better		
25	Protocols	ARP, IPv4/v6; TCP/IP, UDP, RTP, RTPS, HTTP,HTTPS, ICMP, FTP, SMTP, DHCP, PPPoE, UPnP, IGMP, SNMP, QoS, ONVIF		



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26	Access levels protection	Multiple user access levels with password		
27	Network Security and Cyber security	User Authentication, IP-Filter, HTTPS, TLS 1.2/1.3, IEEE802.1X (SHA-2)		
28	User Account	10		
29	ONVIF compatible	Profile S,G & API		
30	Motion detection	4 Zones		
31	Privacy masking	4 adjustable masking zones (8 colors, rectangles, free scalable)		
32	Alarm In/Output	1 in & 1 Out		
33	Audio	Microphone In or Line In, Speaker Out or Line		
34	Picture memory	µSD slot (128 GB max.)		
35	Operating Temperature	0°C to + 55°C		
36	Humidity in operation	10 - 90 % rel. humidity (non-condensing)		
37	Connectors	RJ-45 for 1Gbps Ethernet		
38	Voltage supply	12 VDC or PoE (IEEE 802.3af class 0 compatible or similar class)		
39	Power Consumption	9,9W@12VDC / 9,12W@PoE IEEE802.3af		
40	Housing	Metal/Plastic		
41	Edge Recording	Min 128 GB on board SD card should be provided to store data in case of network failure		
42	IP class / vandalism proof	IP66,IK10		



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43	Certification (On name of OEM)	BIS, CE, FCC,UL/EN		
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3.22.4 PTZ Camera

S.no.	Parameter	Minimum Specification	Compliance (Yes/No)	Remarks
Make:				
Model:				
1	Image Sensor	1/3" CMOS / CCD or better		
2	Resolution	Min 50fps at 2 MP		
3	Minimum Illumination	Colour: 0.10 Lux B/W: 0.05 Lux or better Suitable for day / night operations		
4	Focal Length	5(+/-1)mm ~ 160(+/-20)mm, Motorized zoom lens		
5	Focus Control	Auto and Manual		
6	White Balance	Automatic		
7	Gain Control (AGC)	Automatic		
8	Optical Zoom	30x or higher		
9	Digital Zoom	16x		
10	WDR	120dB or better		
11	IR (Internal or external):	Minimum 150 Mtr(s) or better		
12	Time Task	Auto and Manual activation of Pre-set / Pan / Scan / Tour / Pattern by present Time		
13	Day / Night: IR Cut Filter	Auto		
14	Video Compression	H.264 or better		



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S.no.	Parameter	Minimum Specification	Compliance (Yes/No)	Remarks
15	Video Streaming	Min 3 Streams		
16	Protocol	HTTP, HTTPS, TCP, FTP, RTSP, RTP, UDP, SMTP, SNMP, ICMP, IGMP, DHCP, UPnP, PPPoE, QoS, NTP, DDNS, ARP, IPv4/v6		
17	ONVIF	S and G		
18	Edge recording	Min 128 GB on board SD card should be provided to store data in case of network failure		
19	Operating Temperature	-10° C to +55° C		
20	Protection Standard	IP66/IP67, IK10 Vandal proof housing		
21	Power Input	POE / POE+ or DC as per the proposed solution		
22	BLC, HLC	Auto		
23	Defog	Yes		
24	Certification (On Name of OEM)	UL/ EN, BIS, CE, FCC		
25	Network Security	User Authentication, IP-Filter, HTTPS, TLS 1.2/1.3, IEEE802.1X (SHA-2)		
26	Default Smart Feature (On Edge)	Loitering, Intrusion Detection, Line Crossing Detection,		



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S.no.	Parameter	Minimum Specification	Compliance (Yes/No)	Remarks
		People Counting, Stationary Object Detection, Heat Map, Queue Length Detection, Motion Detection, Facial Detection, Smoke and Fire Detection.		

3.22.5 Video Management/FRS Server/Analytics

S N o	Technical Descriptions & Parameter	Compliance (Yes or No)	Remarks
Proposed Make: Proposed Model:			
1	Operating System	Windows 2019 Server Essentials for Embedded Systems (64-bit) or better	
2	Processor	INTEL Quad Core XEON processor > 3 GHz inside or better	
3	GPU Acceleration	Required for High-speed Video Processing	
4	Video outputs	1 no. DVI-D, 2 nos. Display Port	
5	Audio outputs	1 x stereo (line out, phone jack, 3,5 mm)	
6	Control inputs	16 nos. internal floating input contacts, tamper-monitored (switchable)	
7	Relay outputs	8 nos. relay outputs internal, 24 V DC, 1 A	
9	USB Interface	4 nos. USB 2.0, 4 nos. USB 3.0 (rear) / 1 USB 3.0 (front)	
10	Ethernet interface	2 nos. Ethernet 10/100/1000 Base-TX interface	



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11	Internal memory	128 GB Dual SSD for the operating system and the SQL database; optional: 16 x 3.5" RAID HDD (SATA3).Expandable up to 200 TB or more	
12	Working memory	Minimum 16 GB DDR4 ECC SDRAM Expandable up to 128 GB	
13	RAID Support	RAID 0/1/5/6/10	
15	Redundant power supply	Redundant power supply unit: 100 - 240 V AC / 60 - 50 Hz $\pm 10\%$, 2 x 760 W (Hot-Swap)	
16	Power consumption	$\emptyset$ 340 W; Max. 410 W	
17	Mains input	IEC 320 C13 standard connector for cold appliances	
18	Working Temperature	0 °C to + 40 °C	
19	Humidity	10% to 90%	
20	Virtual Machine Support	Server Should be capable of configuring Multiple VMs	
21	Storage Slot	Internal 16 slot with 20 TB or more on each slot inbuilt in server and server should have storage handling capabilities up to 450 TB or better	
22	Certification	EN/UL,FCC,CE,BIS	

3.22.6 Security Information Management software

S No	Technical Descriptions & Parameter	Compliance (Yes or No)	Remarks
SIMS			
1	The system architecture is scalable and allows easy interaction of different users in the network or via remote access. This enables distributed and efficient control of the overall system from different workstations.		



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2	The information management software provides the qualification, sorting and preparation of information according to user-specific requirements - quickly, intuitively, and reliably. In addition, the software offers application- and user-specific configurable functions such as live and memory image display, site plan control, flexible alarm management, delegation and message tools for efficient operator deployment, complete documentation of all system and operating processes, and a well-thought-out redundancy concept.		
3	Data protection is fully guaranteed by flexible user rights management and a consistent audit trail. This also ensures that images and sequences can be used in court. Thanks to the diverse interfaces to third-party systems integrated in SIMS systems, security information from third-party trades can also be seamlessly processed and controlled. The supported number per function is limited in each case within the scope of the technical release.		
4	Highest flexibility and scalability for an unlimited number of distributed operator stations Intuitive operation based on individually designed, layout-based user interfaces Complete control over unlimited video streams for live and stored images		
5	Best possible overview through seamlessly integrated video wall solution's High reliability with the aid of sophisticated redundancy concepts		
6	Perfect data protection through flexible rights and group management and complete audit trail		
7	Intelligent configuration support with immediate plausibility checks Uncomplicated control and data management of third-party systems connected via interfaces.		
VMS Failover Function			



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1	The Failover Camera option activates the failover function of a VMS camera channel. If a VMS server fails, the camera channels are taken over by a failover server for which this option is enabled. This minimizes the possible downtime by restoring the system immediately.		
2	High reliability due to automatic function takeover of a VMS camera channel Minimization of possible downtime		
3	Simple installation and parameterization of failover server.		
Cam Checkup Function			
1	The Cam Check option immediately alerts if the live images of a camera are manipulated compared to a stored reference image, e.g. by turning the camera. The function works permanently in the background and orients itself independently of movements to fixed edges in the image and alerts as soon as these edges are shifted.		
2	Protection against mechanical manipulation of the camera.		
Centralized User Management			
1	Active Directory option enables the connection between the user groups from Windows with the user groups from SIMS. This facilitates the administration of users, groups and rights in SIMS. The user rights of the groups in SIMS can be defined in each case. Windows authentication is activated and a SIMS password is no longer necessary.		
2	Automatic authentication of users via the Windows password		
3	Easy linking of Windows Active Directory user groups with SIMS user groups Different definable rights for different Active Directory and SIMS groups		
4	SIMS groups can be linked to one or more Active Directory group(s) (group matching)		
5	Automatic synchronization of users and user groups.		
Alarm management			



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1	Any incoming alarm can be quickly and easily reviewed. Users can accept, edit or delegate and close the alarm. This enables a quick response		
Audit			
1	The use of the system as well as changes in settings are logged in a central database and can be retrieved in the Operator Console. Thus, image and video exports and system-critical actions can be assigned to a user name and device		
User interfaces			
1	The Operator Console (Op-Con) is the main user interface for individual control, viewing and monitoring of video streams, site plans and resources. It is equipped with the appropriate permissions for the respective user or location.		
2	The Remote Console (Re-Con) is the remotely controllable output console for use on monitor walls or external TV sets. It can be controlled by means of the Operator Console.		
IT Security			
1	All communication between SIMS servers and clients is protected by SSL encryption and own certificates can be used. SIMS thus adapts to a company's or client's own security standards		
Process data search			
1	The process data search to find the desired metadata, such FR or barcodes. The results can then be exported for further processing using various formats		
Web Browser Integration			
1	Web browser windows can be displayed in the viewers of the Operator Console. The bookmarkable websites of external systems allow a fast and individual function extension including authorization control by the user administration		
GIS/Map			
1	Should support GIS/CAD maps for navigation across sites, buildings, and floors with camera placement for live view (including PTZ actions), playback and alarm indication		
Servers/Device Support			



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1	SIMS should support upto 2000 Servers and 60000 cameras along with Process data of FR/Analytics		
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3.22.7 Video Management Software

S No	Technical Descriptions & Parameter	Compliance (Yes or No)	Remarks
Proposed Make: Proposed Model:			
1.	The Video Management Software shall be compatible with 64-bit Windows operating systems 8.1, 10 and Server 2016/2019 Essentials.		
2.	The VMS shall run unrestrictedly in virtual environments and use a Software Asset Manager (SAM).		
3.	A central user administration shall manage all user rights and accesses to the entire system		
4.	The VMS shall contain 10 client accesses to live streams or the media database of the respective VMS instance.		
5.	Video Server Software shall have full 64-Bit implementation and GPU acceleration for image processing and viewing functions		
6.	The VMS shall be ONVIF compliant and additionally support all common digital signal sources of IP cameras and encoders of different manufacturers		
7.	Each designated live video stream shall be independent from and not interfere with recording		
8.	VMS software shall have an extremely fast metadata search due to the SQL database (Dual Database)		
9.	VMS should have Temper proof format, which is globally approved from all legal bodies, Court-enforceable and with password protected encrypted File		



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10.	VMS should have Fast forwarding and back warding Speed of 1000 X for processing of high-Speed Video Data Processing.		
11.	VMS should have own licenses for analytics like Camera Tempering, View Block, Scene Validation, Critical area detection, Perimeter protection, Face recognition, Automatic number plate recognition to make the system process seamless.		
12.	VMS software should have at least 8 Archive levels and 16 ring Buffers and dual database so recording, and events data stored separately based on number of days recording easy for data search.		
13.	The VMS shall include encryption or other verification methods to guarantee the authenticity of recorded images so that they are admissible as evidence in a Court of Law		
14.	In addition to or instead of dedicated remote viewing client software, live and/or recorded images shall also be accessible from standard WEB-browsers via HTML5 without the use of plugins		
15.	The VMS shall have a multi-level password protection scheme including the definition of single users and user groups with individual access rights as well as a 4-eye-password-option (Two Man Rule).		
16.	A Software Development Kit (SDK) shall allow software developers to mainly achieve bidirectional event data communication, but also realize in depth integrations with even live and recorded video being embedded into 3rd party GUI's		
17.	The installed video recording engine shall use dual database architecture for fast data access, with separate databases for image and process data, whereas process data shall be written into a standardized SQL database		
18.	The VMS shall support the compression methods M-JPEG, H.264 and H.265		



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19.	Images and data shall be stored in a FIFO (First-in-first-out) principal to guarantee overwriting of old images or data		
20.	The VMS shall offer advanced automatic backup options for storage redundancy or long-term archiving.		
21.	The database shall be able to be expanded dynamically at any time without image loss (Dynamic Storage Expansion -DSX).		
22.	To progressively reduce the frame rate of recordings as the retention period increases, the software shall have a fading long-term memory (FLTM) method that minimizes the number of unnecessary recordings in the storage space.		
23.	The VMS shall be equipped with Dynamic Live Streaming (DLS), which adapts the resolution of the live channel per camera channel to the resolution of the respective viewing window of a camera in the user interface of the playback computer when transmitting in the network.		
24.	The system shall be capable to automatically adjust the parameters of any video stream (ASM) depending on time ranges (of day, week, month, year etc.) or event triggered by video analytics or other actions. Such stream adjustments shall include picture resolution as well as compression factor and frame rate (# of images per second). Any stream quality switching shall occur in real time with no latency when using CCTV optimized codecs		
25.	Latency of live video transmission shall be below 150ms (at D1 resolution) to allow smooth manual control of PTZ units.		
26.	Alarms shall be able to be assigned different priority levels, highest priority, medium priority, low priority, each with different display scenarios (image switching, acknowledgement dialog, playback of file) per user.		
27.	The VMS shall have an RTSP server (Real Time Streaming Protocol) which converts live streams (Motion JPEG,		



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	MPEG-2, H.264) into RTSP standard compliant streams for e.g., the VLC media player or modern monitor walls.		
28.	The VMS should optionally support an Edge Recording function for ONVIF-S and T compatible IP cameras, allowing for decentralized storage and retrieval of image material on the camera's internal SD card.		
29.	The VMS client applications are required to support any form of IP network connectivity, including LAN, WAN, VPN, Internet, and Wireless.		
30.	THE VMS software must have access level for admin/Customized user and Operator like camera block list, Viewing, Database, Export		
31.	The VMS software should have One Press Export and Import whole setup configuration in case of failure and easily import the system configuration within milli seconds.		
32.	The VMS Software have Minimum 10 Clients and Unlimited Web Based Clients for easy to access the system with user credentials		
33.	The Client Monitor application shall allow for live monitoring of video and audio.		
34.	The operator shall be able to define the amount of time he wishes to go back from a predefine list or through a custom setup period.		
35.	The operator shall be able to control the playback with play, pause, forward, and speed buttons.		
36.	The VMS Viewing application shall allow operators to add bookmarks to recorded clips of video or audio		
37.	The operator shall be able to choose and trigger an action from a list of available actions included but are not limited to:		
38.	View camera in a video Scenes 1/2/4/9/16/25/36		
39.	View cameras in Customized Scenes		



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40.	Starting/stopping PTZ pattern		
41.	Go to PTZ Preset		
42.	Alarms and Alerts comes in Form of Visual, SMS and Email form		
43.	The VMS Client Viewing application shall display all cameras attached to the system regardless of their physical location on the network.		
44.	The VMS Client Viewing application shall display all camera sequences created in the system with camera Global Number.		
45.	The VMS Client Viewing application shall allow for unlimited cameras Grouping, which can be run independently of each other on either Web Monitoring or mobile Application		
46.	The VMS Client Viewing application shall allow operators to control (Pause/Play, skip forwards, skip backwards) Camera Sequences, without affecting other operators' ability to view and control the same sequence.		
47.	The VMS Client Viewing application shall support digital zoom on a fixed camera's live and recorded video streams		
48.	The VMS Client Viewing application shall support digital zoom on a PTZ camera's live and recorded video streams		
49.	The VMS Monitor application shall provide management and control over the system using Joystick controller of any compatible make.		
50.	The VMS software must support all types of cameras including PTZ cameras with complete PTZ functionality from any client workstation GUI.		
51.	This application should provide the facility to create the incident reports for specific incidents. In .csv and pdf format		



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52.	It should be possible to access recorded video within the VMS system for playback and export from this application.		
53.	It should also allow the operator to write the text, attach the snapshots, video clip, audio clip or any other type of attachment which can be used in conjunction with this incident and form the entire incident report.		
54.	It should create the library of all the reports and options should be available to search the required report by time frame, subject, report number etc.		
55.	It should be possible to send these reports by email or archived on offline media.		

3.22.8 Health Monitoring Software

S No	Parameter	Technical Descriptions.	Compliance (Yes or No)	Remarks
Proposed Make: Proposed Model:				
1	Alarm evaluation	Evaluation in real time or delayed, depending on the set alarm priority		
2	Health information	Software version status		
		Database size monitoring		
		Camera configuration update		
		Data throughput status		
		Options / licenses status		
		Operating system status		
		Processors (CPU, cores, utilization) status		
		Network interfaces status		
		Controller (array) status		



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		HDD + SSD status		
		total / free memory status		
		utilization, temperature of devices		
		firmware SMART status		
3	Setting options	Adjustable reactions to health alarms Various notification channels E-mail (SMTP) and NVR Event Categorization and prioritization of health alarms Multiple sites management Management of multiple users and user groups Linking sites / servers with users / user groups		
4	Additional functions	Mobile management via web interface (responsive design) Export and transfer of setup files Export of detailed overviews (hardware information) Automatic updates		
5	Servers/Device Support	Health Monitoring Software should support 500 Servers/Devices for health monitoring		

3.22.9 Video Management Client Desktop

Proposed Make:
Proposed Model:

Sno	Parameter	Minimum Specifications	Compliance (Yes/No)	Remark
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1	Processor	Latest generation 64bit X86 Quad core processor(3Ghz) or better		
2	Chipset	Latest series 64bit Chipset		
3	Motherboard	OEM Motherboard		
4	RAM	Minimum 8 GB DDR3 ECC Memory @ 1600 Mhz. Slots should be free for future upgrade. Minimum 4 DIMM slots, supporting up to 32GB ECC		
5	Graphics card	Minimum Graphics card with 2 GB video memory (non- shared)		
6	HDD	1 TB SATA-3 Hard drive @7200 rpm with Flash Cache of 64GB SSD		
7	Media Drive	NO CD / DVD Drive		
8	Network interface	10/100/1000 Mbps autosensing on board integrated RJ-45 Ethernet port.		
9	Audio	Line/Mic IN, Line-out/Spr Out (3.5 mm)		
10	Ports	Minimum 6 USB ports (out of that 2 in front)		
11	Keyboard	104 keys minimum OEM keyboard		
12	Mouse	2 button optical scroll mouse (USB)		
14	Monitor	Three Monitors of 19" TFT LED monitor, Minimum 1920 x 1080 resolution, 5 ms or better response time, TCO 05 (or higher) certified.		
15	Certification	Energy star 5.0/BEE star certified		
16	Operating System	64-bit pre-loaded OS with recovery disc		
17	Security	BIOS controlled electro-mechanical internal chassis lock for the system.		
18	Antivirus feature	Advanced antivirus, antispware, desktop firewall, intrusion prevention (comprising of a single, deployable agent) which can be managed by a central server. (Support,		



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		updates, patches and errata for the entire contract/ project period		
19	Power supply	SMPS; Minimum 400-watt Continuous Power Supply with Full ranging input and APFC		

3.22.10 Functional Specification and Compliance of FRS

Make: Model:				
S.no.	Parameter	Minimum Specification	Compliance (Yes / No)	
1	Adding new faces for recognition	The FRS system should allow adding new faces for recognition by uploading images of the individual's face. A new face may also be added by selecting images of the individual's face from the list of faces detected by the system.		
2	Recognition of Full/ partial Face	- The system should be able to recognize Full / partial faces from varying angles despite age and facial grooming changes from at least 3 angles i.e. Right side, left side and partially covered - Should be able to identify and authenticate based on individual facial features.		
3	Matching faces from pre-recorded feeds/Database	- The system should be able to match suspected criminal face from pre- recorded feeds (from any private or public organizations source). Blacklisted face, lost person, track past movement. - Should be able to identify faces from stored video of any format.		
4	Multiple Face Recognition	The system should be able to identify multiple persons of interest in a single frame in real-time. The system shall be able to recognize subjects appearing simultaneously in multiple live video streams.		



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Make: Model:				
S.no.	Parameter	Minimum Specification	Compliance (Yes / No)	
5	Number of faces that may be added for recognition	The system should support up to 50,000 suspect face for live video stream Face recognition. It Should support at least 10,00,000 suspect face libraries		
6	Assigning Labels	- The system should allow for the assignment of labels to individual faces, such as 'employee', 'blacklisted', etc. - App parameters such as severity of alerts should be separately configurable for individual labels.		
7	Alert Generation	The system should generate alerts for blacklisted individuals.		
8	Continuous Improvement in detection and recognition accuracy	- The system should be a Deep Learning based solution and should show a continuous improvement in the detection as well as the recognition of faces. - The system should have a short processing time and high recognition rate		
9	Facial Recognition Capabilities	Facial Recognition: 1. Search the face picture in the capture library and blacklist library 2. Search by time-period 3. Search by structural information (age, gender) 4. Select cameras on the map and search the face pictures 5. View the search results: original pictures, picture details, and video playback 6. Export the face picture and structural information Search by face picture:		



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Make: Model:				
S.no.	Parameter	Minimum Specification	Compliance (Yes / No)	
		1. Compare and search the face picture by the picture uploaded from the local PC, into the capture library, or in the blacklist library and get the face pictures matching the similarity 2. Sort the search result from high similarity to low similarity 3. Compare the similarity between one or more specified pictures and the one in the blacklist library		
11	Integration	• The FRS Camera shall be integrated with Access Control Gate at Main Gate. On verifying the Face with the central database, the Access Control shall allow the entry of the vehicle.		
12	Registration	• The Software shall have the capability to register the Faces of the Officials, Truck Drivers etc. working in the ICP. • The software shall permanently store the registration details and FRS details of each registered person so that re registration of the same person is not required upon consecutive visits		

3.22.11 Access Control Application Functional requirements compliance

S.no	Requirement Description	Compliance (Yes/No)	
1.	System should have a web application for Access Control which shall be user friendly, informative, interactive and easily accessible.		



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S.no	Requirement Description	Compliance (Yes/No)	
2.	The system should follow GIGW guidelines		
3.	The web application should meet and compliant the web design and security guidelines of Govt. of India		
4.	The system should adhere to Best/Standard programming practices and OWASP-recommended security practices that can help authorized user to easily extend the functionality of the portal.		
5.	The system shall provide consistent look & feel, Themes, Navigation to the users and the standards defined for content, structure and presentation of the application shall be applied and followed throughout the application		
6.	All the sections of the web application should be of dynamic nature and must be supported with easy content management and administration of the same.		
7.	The system shall display the date and time of last login when the user administrator logs in.		
8.	System should allow following type of user logins: a) User Administrator		



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S.no	Requirement Description	Compliance (Yes/No)	
	B) ICP Manager		
9.	All stakeholders are required to have a unique User ID. The unique user ID should be created at the time of registration. The format for user ID shall be discussed with LPAI		
10.	All forms are required to be streamlined to remove redundancies in terms of seeking information. Wherever the information can be retrieved from the system will be pre-loaded on the relevant application forms. However, it is required that before submission of pre-populated data, stakeholder is provided an option to review the pre-populated data.		
11.	Application should allow people to report safety incidents that should be collated in organized manner.		
12.	The home page of the Access Control application is required to be personalized view for different set of stakeholders, wherein, all information and services displayed are related to the persona only. The services display on home page is hence, required to be dynamic. However, flexibility is required		



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S.no	Requirement Description	Compliance (Yes/No)	
	to be built in the system to include other services.		
13.	The platform will be accessible through the devices installed at the ICP only.		
14.	System should have registration facility for the staff member of LPAI (Atari) along with their vehicle(s) and Transport carriage vehicle along with crew Registration for generating Access ID		
15.	All authorised personnel should be registered through the access control application.		
16.	System should allow all authorised personnel to use following type of GOVT ID for registration along with Face Image: PAN Card, Aadhaar, Driving License, Voter ID, Passport, Student ID etc.		
17.	System should allow the user to edit the ID if he / she chooses post registration		
18.	System should allow the system admin or designated user to edit or update the access ID related details at the registration desk		



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S.no	Requirement Description	Compliance (Yes/No)	
19.	The system should give a warning if user with similar details already exists		
20.	System should have functionality to generate new admin ID only after proper approvals from the competent authority		
21.	System should allow Foundation Admins to perform Identity Lifecycle and management activities stated in the scope of work		
22.	System should allow LPAI Admins to use dashboards and generate reports as per the scope of the work		
23.	System should have ability to provide limited access to Admin users as per the hierarchy and their roles		
24.	System should have ability of double verification when an admin takes actions which would update or edit the existing data		
25.	System should create a secure timed session for admin users with auto log out in case of any inactivity by user		
26.	The system should allow for receiving the requests for creation of Access ID		



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S.no	Requirement Description	Compliance (Yes/No)	
27.	The system should capture the details like Face Image, License Plate Number, Name and Govt Issued ID details through the Access Control Application		

3.22.12 Perimeter Protection Analytics License

S. No.	Description	Compliance (Yes/No)	Remark
1	The Perimeter Protection Analytics Should be fully integrated analytic function with VMS software for analysing live or previously recorded video content stored in the internal video database.		
2	The Perimeter Protection Analytics Should Have Below Mentioned Filters to Avoid the False Alarms Object entering a surveillance zone can be distinguished by size, direction, distance and speed filtering.		
3	The Analytics should have High precision and reliability of the system through the reduction of weather effects such as snow or rain.		
4	The Analytics should have Permanently retrievable alarm messages through storage in the video database		
5	The Analytics should have High flexibility due to the possibility of setting any number of monitoring zones.		
6	The Analytics should have Size and distance recognition capabilities by using 3D scene modelling.		
7	The Analytics Should have Unlimited zone Based Events and alerts capability		
8	The Events of Perimeter Protection should be Visible in VMS software Client in Live Video		



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3.22.13 CAT 6 Cable

S. No.	Parameter	Specification	Compliance (Yes/No)	Remarks
Make : Model:				
1	Type	CAT6 U/UTP, 23 AWG solid bard copper, Unshielded Twisted 4 Pair, Category 6, confirming to ANSI-TIA 568.2-D for Category 6 & ISO/IEC 11801 for Class E.		
2	Conductors	Solid bare copper 23 AWG		
3	Pair Separator	+ Shape Spline		
4	Packing	Box of 305 meters		
5	Cable Outer Diameter	6.0 ± 0.2 mm		
6	Delay Skew	< 45 ns		
7	Conductor Resistance	≤ 93.8 Ω/km		
8	Pulling Force	25 lb		
9	Nom. Velocity of Propagation	69%		
10	Temperature Range Storage	-20 °C to +70 °C		
11	Flame Properties	Flammability Test : IEC 60332-1		
		Acid Gas Emission Test : IEC 60754-1		
		Smoke Density Test : ASTM 2843		
10	Regulatory Compliances	Should be ETL channel performance verified on a 04-Connector channel or more, tested upto 350Mhz or more with an MTPL Plug as per ANSI/TIA-568.2-D (Part Code to be mentioned in report and should be submitted along with bid) and UL Listed (Relevant Document to be shared)		
		Compliant as per RoHS Directive 2011/65/EU and (EU) 2015/863		



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		OEM should be an ISO9001, ISO 14001 and ISO 45001 should have its Manufacturing units, Components and Finished Goods Warehouse & R&D labs in India. All Related documents to be submitted.		
11	Test Reports	OEM factory test reports must be provided.		

3.22.14 24 Ports POE Aggregator Switch

Make :			
Model:			
S. No.	Specification	Compliance	Remark
1	Should have minimum 24 x GE SFP based ports		
2	Should have minimum 4 nos. SFP+ based 10 GE ports.		
3	Should have at least 64 Gbps full duplex line rate traffic.		
4	Should have support for 802.3x flow control.		
5	Should support 802.1D spanning tree control/RSTP support and MSTP support.		
6	Should support management features viz. Web-based GUI/SSH, SNMP, TFTP Client System Log.		
7	Should support Auto MDI-II/MDI-X uplink for all the twisted pair ports.		
8	Should support 802.1Q VLAN, 802.1p Priority queues.		
9	Should support port mirroring, jumbo frame & should have at least 16K MAC address		
10	Should support console port and telnet-based management.		
11	Should have AC power supply arrangement as given below in chassis without any external adaptors with redundant power supply (RPS): AC		



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	power supply 100 to 240 V AC with 50 to 60 Hz.		
12	Should support Port-based VLAN, 802.1Q Tagged VLAN along with Management VLAN.		
13	Should support ITU-T G.8032 Ethernet Ring protection for Loop Protection and fast convergence time (Sub 50 ms) in ring topologies/ IEEE 802.1W RSTP for Sub Second failover. Industry Standard IEEE 802.1W RSTP is standard for Ring /STP topology.		
14	Switch should support Surge Protection on power input and on Ethernet ports as per EN61000-4-5 standard and as per requirement at Indian Railway Station.		
15	Should support Quality of Service (QoS) features viz. Priority Queue, Class of Service (CoS), Rate Limiting (Bandwidth Control), Strict Priority Queue (SPQ), Weighted Round Robin (WRR) or better, DOS attack prevention.		
16	IPv6 feature should be ready from day 1.		
17	Minimum Operating Temperature 0 to 50 degree.		
18	It should have safety certificates as per UL/IEC/EN 60950 The switch should have EMC certification as per EN/CE/FCC standards.		
19	Switch shall be with Rack Mountable clamps for standard 19-inch rack mountable.		
20	The Switch shall be designed for continuous operations.		
21	Should support port Trunking of at least 2 Nos. GE/10GE ports.		
22	Switch should support LLDP or similar functionality.		



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23	Should support following security features viz.: i) SSL (HTTPS)/SSH, ii) Broadcast/Multicast/Unicast Storm Control, iii) DoS Attack Prevention/ DAI		
24	Switch should support following SNMP traps or syslog i) Interface UP & Down ii) Optical Power SFP threshold alarms iii) STP Topology Changes and New root bridge iv) LLDP table changes		

3.22.15 8 Port Poe switch with SFP module

Make: Model:			
S. No.	Field Switches (8 Ports)	Compliance (Yes/No)	Remark
1	Switch Should Support 8 10/100 BASE-T PoE and 2 SFP 1000 Mbps Uplink ports		
2	Switch Should Support Min. 20 Gbps Switching Capacity and Maximum 64 Byte Packet Forwarding Rate is 14.88 MPPS.		
	Switch Should Support 4K VLAN ID's,		
	Min 256 static VLAN and Voice & Video VLAN		
3	Switch Should Support IEEE 802.3af & at compliance (for PoE ports) and minimum 120W Power Budget.		
4	Switch should support surge protection of 2kV as per IEC/EN 61000-4-5		
5	Switch should support IGMP Snooping v1, v2 and MLD snooping v1/v2		



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6	Switch shall support IEEE 802.1AB Link Layer Discovery Protocol (LLDP) or LLDP- MED.		
7	Switch should support Port Mirroring One to one/Many to One		
8	Switch should support Quality of Service (QoS), 802.1p, Strict, Weighted Round Robin (WRR)/ Shaped Round Robin (SRR) scheduling.		

3.22.16 Video wall

S No	Parameter	Technical Descriptions.	Compliance (Yes/No)
1	Technology	HD LED	
2	Display Unit	minimum 49" with 1080p or better Resolution	
3	Size of Videowall	6x3	
4	Total Resolution	4K or better resolution of total videowall	
5	Brightness	Screen Brightness 500 NITS or better	
6	Wall Uptime	24 x 7	
7	Inputs	Input of HDMI in controller	
8	Screen to Screen Gap	Max 1 mm Gap	
9	Contrast ratio	Contrast ratio - 1000:1 or higher	
10	Viewing Angle	Min. Viewing angle - 160x160 or better	
11	Videowall Life	Lifetime – 50,000 hours	



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S No	Parameter	Technical Descriptions.	Compliance (Yes/No)
12	Videowall controller & Software	Controller and video switcher should be compatible for above videowall and should be able to display Minimum 6 input or more on videowall/ screen. Software shall have provision to manage multiple templates as per site requirement.	
13	Operating System	Windows 10 or higher - 64 bit	
14	RAM	16GB or higher	
15	HDD	1 TB HDD or higher	
16	RAID	Should support RAID 0,1,5	
17	Chip	Intel Xeon or better	
18	Power Supply	Dual Redundant Power Supply	
19	Outputs	min. 12 outputs to the cubes	
20	Inputs	6	
21	Chassis	19" rack mount industrial chassis	



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3.22.17 1 KVa UPS

S.No.	Parameter	Minimum Specification	Compliance (Yes / No)	
Product details-				
Please mention Make Model No. or Part Code				
1	UPS Rating / Technology	1KVA/800 W - IGBT (Rectifier & Inverter both); ECO Mode		
2	Wave form	Pure Sine wave		
3	Display	LCD		
4	Input power factor correction	0.99		
5	Input configuration	1Ph, L-N+PE (160 to 280Vac on full load & shall support up-to 110Vac for 60% load)		
6	Output Power factor	0.8		
7	frequency (Input)	40 to 70Hz frequency		
8	frequency (output)	50Hz/60Hz frequency		
9	Output Voltage	220/230/240Vac shall be available with +/-1% regulation in battery mode		
10	V threshold	3% max full linear load, 5% max on Non-linear load		
12	Crest factor	3.0 or better		
13	AC-AC Efficiency	88% or better		
14	Transfer time Main-Battery	0		



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S.No.	Parameter	Minimum Specification	Compliance (Yes / No)	
15	Transfer time Inverter-Bypass	4 msec		
16	Output Connection	Minimum 15A x2 Nos - Indian Socket inbuilt to the UPS back. Two nos of the O/p Socket shall be Programmable to increase the backup time for critical load.		
17	Monitoring software for UPS	Shall be provided for monitoring of UPS from remote along with SNMP Card		
18	Communication	SNMP V1/V2		
19	Port	USB, RS 232		
20	Battery Type	Lithium/SMF VRLA/Vented Battery		
21	Charger	The charger capacity shall be minimum 10% of the Battery Bank capacity.		
22	Battery backup	on full load @ 0.8 PF		
	Environmental Parameter			
23	operating temperature range	-5 to +60 deg C		
24	Other	Indication required -> Over Temperature, Load on Battery, Battery on Charge, Battery low, Mains on Fan Speed control (as per load & room temp) shall be possible		
25	Humidity	0% to 95% non-condensing		
26	Noise Level	in the range of 48 dBA - 52 Dba		
27	Mounting	Tower type only (Rack Mount type not acceptable)		



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S.No.	Parameter	Minimum Specification	Compliance (Yes / No)	
28	Cold Start & EPO	Shall be available		
29	Protection	IP20		
30	Safety & Performance	BIS for product		
31	Manufacturer	Manufacturer - > ISO 14001 & OHSAS 18001/ ISO45001		
	Management Software			
32	Supports	Windows® 2000/ 2003 /XP/Vista/ 2008, Windows® 7 / 8, Linux, Unix		

3.22.18 10 KVA UPS

Make :				
Model:				
SL NO	PRODUCT	TECHNICAL SPECIFICATIONS	COMPLIANCE	Remark
1	UPS Capacity	10KVA (8KW) with Inbuilt Isolation Transformer		
2	Rectifier Type	IGBT		
3	Rate Voltage	220/230/240VAC, 1phase, 2 wire+Gnd (L1-N/L1-L2+GND)		
4	Input Voltage Range	1 phase, 120VAC- to 300 VAC (Based on Load percentage)		
5	Frequency Range	46Hz-54Hz		
6	Input Power Factor	Single Phase >0.99		
7	Battery Type	Sealed Lead Acid Maintenance Free		
8	DC Voltage	192/240		
9	Backups	2 hours		



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10	Battery Type	Sealed Lead Acid Maintenance Free		
11	Battery Capacity & Numbers	100AH* 20 nos SMF Batteries (Quanta/Exide Make)		
12	Rated Power	10KVA/8KW		
13	Rated Voltage	Single Phase, 220VAC, 230VAC		
14	Output Voltage THD	<3% for linear load, <5% nonlinear Load		
15	Load Crest Factor	3:1(Complied (EC-62040-3)		
16	Step Load Performance	100%		
17	Overload capacity	125% for 10 min, 130% for 1 min,		
18	Form Factor	Tower Mountable		
19	Conversion type	Online Double conversion		
20	Display	LCD		
21	Systems Efficiency	>90%		
22	Eco mode			
23	Certificate	BIS		
24	Safety	EN 62040-1		
25	Performance	IEC/EN62040-3		

3.22.19 Technical specification Flap Barrier

Make :			
Model:			
S.No	Parameter	Minimum Specification	Compliance Yes/No
3	Type of access	Single lane and bi-directional	
4	Opening time	≤1 Second	
5	Protection	IP22 - All OEM should provide IP 22 protection certification from third party aggregated lab with GOI.	
6	Power supply	230 VAC, 50 Hz	



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Make : Model:			
S.No	Parameter	Minimum Specification	Compliance Yes/No
7	Passage width	≥ 500 mm	
8	Capacity/minute	≥ 20	
9	Number of door wings	Two	
10	Overall width available at site for installation	1500 mm	
11	Mode of operation	Normally closed	
12	In the event of power failure	Panel remains open (fail safe mode)	
13	Compatibility and adaptability of access control system cards	The system shall be compatible and adaptable to all standard technologies and mechanism	
14	Features required	▶ Retractable panel shall inhibit the closing of the panel while the person is in the area of these panels ▶ Red/green indicator light in the top of the unit ▶ Adaptations for integration of access control system ▶ Status indication e.g., green for normal standby mode and ready to use, neutral for authorized use, red for door wings are closing or unauthorized use is detected ▶ Door wings shall fully retract to create free passageway in case of power failure or in case of emergency ▶ The system should provide head count of number of persons entered and number of person exit	
15	Material of Housing	Stainless steel 304 grade	



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Make : Model:			
S.No	Parameter	Minimum Specification	Compliance Yes/No
16	Material of Retractable flap barrier	Polycarbonate / Acrylic / Rubberized	
17	Number of operations of door wings	At least five years of operations	

3.22.20 Face Recognition Device for Flap Barrier.

Make: Model:			
S.No.	Description	Compliance	Remark
1.	Real time live face detection		
2.	Human face tracking under low external lighting conditions		
3.	Unique live face recognition algorithm to accurately recognize faces		
4.	Face recognition time is less than 0.5s		
5.	3D noise reduction and fog-passing technology makes the monitoring picture under low illumination clearer and more delicate.		
6.	Support face intelligent exposure		
7.	Face smart enhancement settings		
8.	Automatic gain control and automatic white balance		
9.	Support video area partial blocking & support ROI coding		
10.	Large sized appealing 8 inches IPS HD Display		
11.	Built in Linux operating system for better stability		
12.	Non-volatile memory to store 30000 Face templates and		



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	500000-time stamped transaction		
13.	Weigand output port for connecting device as reader to any access control panel		
14.	Weigand input port for connecting external card reader		
15.	Rich interface protocol support - TCP/IP, UDP, RTP, RTSP, RTCP, HTTP, DNS, DDNS, DHCP, MQTT protocol		
16.	Rich hardware interface (I/O, WG26, WG34, RJ45, USB, RS485)		
17.	Recognition height-1.2 - 2.2 meters		
18.	Angle adjustable		
19.	Recognition distance 0.5 - 1.5 meters		
20.	Recognition time-Less than 0.5 seconds		
21.	Live detection		
22.	Mask detection		
23.	Infra-red-light source		
24.	IP66 rated waterproof housing		
25.	Inbuilt speaker -voice playback		
26.	500,000-time stamped events storage capacity		
27.	Processor details-Quad Core@ 1.5 GHz		
28.	Memory		
29.	False Acceptance Rate= <0.001%		
30.	False Rejection Rate= <0.01%		
31.	0~90% relative humidity ,non-condensing		

3.22.21 Technical Specifications and Compliance of K4 Bollard

S No	Parameter	Technical Descriptions.	Compliance (Yes or No)	Remarks
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Make :				
Model:				
1.1	Drive:	Self-Contained Hydraulic Drives per bollard (No external pump/motor).		
1.2	Installation:	Outdoor, Rising type		
1.3	Blocking Height	800 mm above ground		
1.4	Diameter	275mm with LED lighting		
1.5	Thickness	min 7-10 mm		
1.6	Power Supply:	230V AC 50 Hz Single Phase		
1.7	Crash rating:	K4 or PAS68:2013 certified on SINGLE Bollard with reputed International 3rd Party		
1.8	Operations	Individually or in set of 2,3 or 4 thru hydraulic unit		
1.9	Installation depth	1300 mm Max		
2.0	Rising/ Lowering time:	Under 5 seconds		
2.1	Finish:	Galvanised steel ,Cataphoresis and coating RAL7031 standard OR optional AISI304		
2.2	Safety devices:	Induction loop		
2.3	Warning Signals:	LED lighting and acoustic warning		
2.4	Operating temperature	-20 to 60 degrees C		
2.5	MTBF Rating:	3,000,000 cycles		
2.6	Max. Operations Per Day	Up to 2000 operations per day		
2.7	Mechanical Override	With a mechanical key		
2.8	Obstacle Detection	Obstacle sensing, configurable (with/without movement inversion)		
2.9	In Case of Power Loss	Bollards UP or DOWN (as required).		
3.0	Remote Control Operation	Should have built in remote receiver		
3.1	CE Certified.	Yes		
3.2	Protection	IP 67		

3.22.22 Any Other Equipment

Sr No	Specification	Compliance(Yes/No)	Remark
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1	To be defined by the Bidders: If bidder deems fit that he required any other hardware or software to successfully run and manage the proposed solution. He is free to bring the same however LPAI shall not be bound to pay any extra cost for the same.		
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3.23 Annexure 22: Bidder's format to be submitted on letter head for country of Origin

I, _____ S/o, D/O, W/O , _____ ,
Resident of _____ do hereby solemnly affirm and
declare as signing authority on behalf of _____
<name of bidder>, registered office at _____ that we
agree to abide by the terms and conditions of **<Name of Nodal Ministry / Department >** of
Government of India, issued vide Notification No: _____ dated

That the information furnished hereinafter is correct to best of my knowledge and belief
and I undertake to produce relevant records before the procuring entity or any other
authority so nominated by the **<Name of Nodal Ministry / Department >** , Government of
India, for the purpose of assessing the Local Content (LC).

That the LC for all inputs which constitute the said Product/Services/Works has been
verified by me and we are responsible for the correctness of the claims made therein.

S.No.	Description	Percentage of LC	Country of Origin	Manufacturer details of Processor/ SOC
1.				
2.				
3.				
4.				
5.				



**3.24 Annexure 23 Format for affidavit for claiming benefit under Make in India Policy
(both OEM and Bidder) On letter head**

Date:

I, _____ S/o, D/O, W/O , _____ ,
Resident of _____ do hereby solemnly affirm and
declare as signing authority on behalf of _____
<name of OEM>, registered office at _____ that we
agree to abide by the terms and conditions of **<Name of Nodal Ministry / Department >** of
Government of India, issued vide Notification No: _____ dated

That the information furnished hereinafter is correct to best of my knowledge and belief
and I undertake to produce relevant records before the procuring entity or any other
authority so nominated by the **<Name of Nodal Ministry / Department >** , Government of
India, for the purpose of assessing the Local Content (LC).

That the LC for all inputs which constitute the said Product/Services/Works has been
verified by me and we are responsible for the correctness of the claims made therein. The
computation for LC does not include manpower, implementation and commissioning, and
AMC.

That in the event of the LC of the Product/Services/Works mentioned herein is found to be
incorrect and not meeting the prescribed LC norms, based on the assessment of an
authority so nominated by the **<Name of Nodal Ministry / Department >** , Government of
India and we will be liable as under clause 9 (I) of Public Procurement (Preference to Make
in India) Order 2017 and subsequent orders/additions/revisions.

We agree to maintain all information regarding my claim for LC in the Company's record for
a period of 2 years from the date of bidding and shall make this available for verification to
any statutory authorities.

- I. Name and details of the Local supplier (Registered Office, Manufacturing unit location, nature of legal entity)
- II. Date on which this certificate is issued.
- III. Product/Services/Works for which the certificate is produced.
- IV. Procuring agency to whom the certificate is furnished.
- V. Percentage of LC claimed.
- VI. Name and contact details of the unit of the manufacturer.
- VII. Factory Price of the product
- VIII. Freight, insurance, and handling
- IX. Total Bill of Material



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- X.** List and total cost value of inputs used for manufacture of the Product/Services/Works
- XI.** List and total cost of inputs which are locally sourced. Please attach LC certificates from local suppliers. if the input is not in-house.
- XII.** List and cost of inputs which are imported, directly or indirectly.
- XIII.** Country of Origin
- XIV.** Country of Manufacturing
- XV.** Country of Sourcing
- XVI.** Processors and SOC (System on Chip) Details (Sourcing with complete chip OEM Details)

I confirm that our company or firm < **Name of the Company/Firm**>, are aware regarding restrictions on procurement from a country which shares a land border with India and the rule 144(xi) under General Financial Rules (GFR) 2017; I hereby certify that the Product/Services/Works and its components (including chips, firmware, etc.) proposed in this Tender are not manufactured in such a country and is eligible to be considered.

I hereby certify and confirm that the Product/Services/Works and its components proposed in this Tender are being Produced at < **Name and address of facility**>

For and on behalf of _____ (Name of firm/entity)

Authorized signatory (To be duly authorized by the Board of Directors)

<Insert Name, Designation and Contact No. and date>

Identified by me

Before Me

Advocate

<Name with Signature & Seal>

Date:

Place:

Seal>

Public Notary

<Name with Signature &

Date:

Place:

Note:

1. Affidavit should be on non-judicial stamp paper of Rs.100/-
2. Please fill up the details as per the documents you are annexing.
3. Affidavit should be attested by Notary Public



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3.25 Annexure 24: Format of affidavit for the rule 144(xi) under General Financial Rules (GFR) 2017 (On OEM and Bidders) Letter head

To

The Chairman, Land Port Authority of India
1st floor, Lok Nayak Bhawan, Khan Market
New Delhi-110511

Ref: Supply, Installation, Testing & Commissioning of Integrated CCTV surveillance system at Land Port Petrapole with DLP of One Years and 4 Years of Comprehensive Annual Maintenance Contract after completion of DLP Period

Sub: Rule 144(xi) under General Financial Rules (GFR) 2017 (regarding restrictions on procurement from a country which shares a land border with India)

I confirm that our company or firm < **Name of the Company/Firm**>, are aware regarding restrictions on procurement from a country which shares a land border with India and the rule 144(xi) under General Financial Rules (GFR) 2017; I hereby certify that the Product/Services/Works and its components (including chips, firmware, etc.) proposed in this Tender are not manufactured in such a country and is eligible to be considered.

Yours faithfully,

Authorised Signatory

Designation

OEM's company name

Email ID

Contact Number:



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3.26 Annexure 25 Self-Certification Under Preference to Make in India order Certificate

In line with Government Public Procurement Order No. P-45021/2/2017-PP (BE-II) dated 04.06.2020 and its amendments, we hereby certify that we M/S Modern Informatics Private Limited are local supplier meeting the requirement of minimum local content i.e., <Specify Local Content % > (Class I or Class II) as defined in above orders for the material against IPR Enquiry/Tender No GEM/2022/B/ dated

We also understand, false declarations will be in breach of the code of integrity under rule 175(1)(i)(h) of the General Financial Rules for which a bidder or its successors can be debarred for up to two years as per Rule 151(iii) of the General Financial Rules along with such other actions as may be permissible under law.

Thanking You

Signature with date

Name

Designation

Authorised Signatory



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Supply, Installation, Testing & Commissioning of Integrated CCTV surveillance system at 8 Land Ports across India with DLP of 1 Years and 4 Years of Comprehensive Annual Maintenance Contract after completion of DLP Period

3.27 Annexure 26: Checklist of RFP Response

S.No.	Checklist	Included (Yes / No)	Reference in the bid (Section, Page)
1.	Acknowledge receipt of the online payment of the Tender Fee		
2.	Annexure 1: Earnest Money Deposit		
3.	Annexure 2: Bid Submission Letter		
4.	Annexure 3: Non-Disclosure Agreement		
5.	Annexure 4: Integrity Pact		
6.	Annexure 5: Blacklisting Certificate		
7.	Annexure 6: Notarized Power of Attorney executed by the bidder in favor of the duly Authorized Representative, certifying him as an authorized signatory for the purpose of this RFP.		
8.	Annexure 7: Bidder Profile		
9.	Annexure 8: Response to Pre-Qualification Criteria		
10.	Annexure 9: Letter of Declaration-Cum-Undertaking		
11.	Annexure 10: Financial Information of the Bidder		
12.	Annexure 11: Financial Bid Submission Letter		
13.	Annexure 12: Relevant Credentials		
14.	Annexure 12 Project Details		
15.	Annexure 14: Technical Bid Submission Letter		
16.	Annexure 15: Financial Bid Formats		



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S.No.	Checklist	Included (Yes / No)	Reference in the bid (Section, Page)
17.	Annexure 16 A: Unpriced BOQ with Make and Model		
18.	Annexure 17: Nil Deviation Certificate		
19.	Annexure 18: Manufacturing Authorization Form		
20.	Annexure 19: Performance Bank Guarantee		
21.	Annexure 20: Change Control Notice (CCN) Format		
22.	Annexure 21: Compliance to Technical Specification		
23.	Annexure 22: Bidder's format to be submitted on letter head for country of Origin		
24.	Annexure 23: Format for affidavit for claiming benefit under Make in India Policy (both OEM and Bidder Letter head)		
25.	Annexure: 24: Format for affidavit the rule 144(xi) under General Financial Rules (GFR) 2017) (On OEM and Bidders Letter head)		
26.	Annexure: 25 Self-Certification Under Preference to Make in India order Certificate		



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Supply, Installation, Testing & Commissioning of Integrated CCTV surveillance system at Land Port Petrapole with DLP of One Year and 4 Years of Comprehensive Annual Maintenance Contract after completion of DLP Period



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Glossary of Terms

Term	Full Form
ABG	Advance Bank Guarantee
ACS	Access Control System
AI	Artificial Intelligence
BOM	Bill of Materials
BoQ	Bill of Quantities
CCC	Command & Control Centre
CCN	Change Control Note
CCTV	Closed Circuit Television
CAD	Computer Aided Dispatch
DC	Data Centre
DG	Diesel Generator
EMS	Enterprise Management System
GCC	General Condition of the Contract
IP	Internet Protocol
LOI	Letter of Intent
LOA	Letter of Award
MPLS	Multi-Protocol Level Switching
MSA	Master Service Agreement
NDA	Non-Disclosure Agreement
NFPA	National Fire Protection Association
OEM	Original Equipment Manufacturer
PBG	Performance Bank Guarantee
PTZ	Pan Tilt Zoom
RFP	Request for Proposal
SCC	Special Conditions of the Contract
SLA	Service Level Agreement
SOR	Schedule of Rate
TEC	Technical Evaluation Committee
TS	Technical Score
UPS	Uninterrupted Power Supply
VMS	Video Management System



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1. About the RFP

This RFP is meant to invite proposals from interested firms capable of delivering the services for CCTV System, described herein. The content of this RFP has been documented as a set of three volumes explained below.

1.1 RFP Volume I– Bidding Process and Formats

Volume I of this RFP intends to detail out all that may be needed by the potential bidders to understand the bidding process details and formats for preparing the bids.

1.2 RFP Volume II– Scope of Work

Volume II of this RFP intends to bring out all the details with respect to system and other requirements that Land Port Authority of India (LPAI) deems necessary to share with the potential bidders. The requirements and scope of work have been set out in this volume. It also includes service level metrics to be maintained for reasonable quality of service to users of the system.

1.3 RFP Volume III– Contractual and Legal Specifications

Volume III of RFP intends to provide the contractual terms and Master Service Agreement (MSA) that Land Port Authority of India (LPAI) wishes to specify at this stage.

1.4 This is Volume II of the RFP

This part of the RFP is intended to serve as a requirement set for the Bidder for CCTV Surveillance System at Land Port Petrapole for LPAI. However, the Bidder should note that the requirements as set-out in this RFP are not exhaustive and the Bidder shall be required to visit the site for a detailed study, analysis and provide a system so as to ensure all requirements catering to the business, technical, support and operations requirements that LPAI should cater to, are met.



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2. Introduction

2.1 About Land Port Authority of India

Land Port Authority of India (LPAI) is a statutory body established under Land Port Authority of India Act, 2010. The provisions of the Act came into force w.e.f., 1st March 2012. Section 11 of the Act gives powers to LPAI to develop, sanitize and manage the facilities for cross-border movement of passengers and goods at designated points along the international borders of India.

LPAI endeavours to provide safe, secure, and systematic facilities for movement of cargo as well passengers at its Land Port. Most of the services at the Land Port are free, except those meant for trade which are charged as per the prescribed rates of tariff. At present there is also no entry fee or usage fee for either passengers or trade. The Land Port will bring various services like Customs, Immigration under one roof for the first time and provide parking, warehousing, banking as well as rest room facilities, in a state-of-the-art set up, to the people.

Following are the roles and responsibilities of LPAI:

- I. To put in place systems, which address security imperatives at the integrated check posts on the border.
- II. To plan, construct and maintain roads, terminals, and ancillary buildings other than national highways, State highways and railways, at an integrated check post.
- III. To plan, procure, install, and maintain communication, security, goods handling and scanning equipment at an integrated check post.
- IV. To provide appropriate space and facilities for immigration, customs, security, taxation authorities, animal and plant quarantine, warehouses, cargo and baggage examination yards, parking zones, banks, post offices, communication facilities, tourist information centres, waiting halls, canteen, refreshment stalls, public conveniences, health services and such other services, as may be deemed necessary.
- V. To construct residential buildings for its employees as well as residential accommodation for staff deployed at integrated check posts.
- VI. To establish and maintain hotels, restaurants and restrooms.
- VII. To establish and maintain warehouses, container depots and cargo complexes for the storage or processing of goods.
- VIII. To arrange for postal, money exchange, insurance, and telephone facilities for the use of passengers and other persons at integrated check posts.
- IX. To make appropriate arrangements for the security of integrated check posts and provide for regulation and control of movement of vehicles, entry and exit of passengers and goods in accordance with the respective law concerning them.



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- X. To ensure prevention and control of fire and other hazards and other facilities as deemed necessary.
- XI. To regulate and control the movement of vehicles, and the entry and exit of passengers, transportation workers, handling agents, clearing and forwarding agents and goods at the integrated check post with due regard to the law, security and protocol of the Government of India.
- XII. To co-ordinate and facilitate the working of agencies who have been engaged to undertake various activities at the integrated check posts, in accordance with the respective law, for the time being in force.
- XIII. To develop and provide consultancy, construction, or management services, and undertake operations in India and abroad in relation to an integrated check post.
- XIV. To form one or more companies under the Companies, Act, 1956 or under any other law relating to companies for efficient discharge of the functions imposed on it by this Act.
- XV. To take all such steps as may be necessary or expedient for, or may be incidental to, the exercise of any power or the discharge of any function conferred or imposed on it by this Act: Provided that sovereign functions of the Authority shall not be assigned to any private entity.
- XVI. To set up joint ventures for the discharge of any of the functions assigned to the Authority; and
- XVII. To undertake any other activity at the integrated check post in the best commercial interests of the Authority. In the discharge of its functions the Authority may consult such Ministry or Department of the Government of India or of the State Government as it deems necessary and shall have due regard to the development of land port services and to the efficiency, economy and safety of such service.

3. Project Background

Land Port Petrapole facilitates voluminous annual transit of 1.5 lac trucks and 20 lac passengers. The safety and security of all those who use port facilities as well as the regulatory stakeholders is paramount. Considering the criticality of the port, it is pertinent to have state of the art security infrastructure at the land port.

In this regard, LPAI has planned to deploy a holistic and robust surveillance system at the land port adept with analytical features to ensure a preventive and proactive security protocol at the land port.

4. Scope of Work

The selected System Integrator shall have the responsibility for Supply, Installation, Testing & Commissioning of Integrated CCTV surveillance system at Land Port Petrapole. The system is to be implemented within 6 months of award of contract followed by a DLP period of 1 year



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and 4 years of Comprehensive Annual Maintenance of the entire system after completion of DLP period.

The IP based CCTV surveillance system involves setting up of an intelligent video surveillance system comprising of IP based cameras installed across various locations of strategic importance throughout the land port premise. The system shall have the ability to monitor, detect, alert, and record any attempts of various malicious activities that may occur at the Land Port Petrapole.

IP based surveillance cameras like Fixed cameras, PTZ camera, Thermal Camera are to be installed. The System will also integrate with Facial Recognition System .

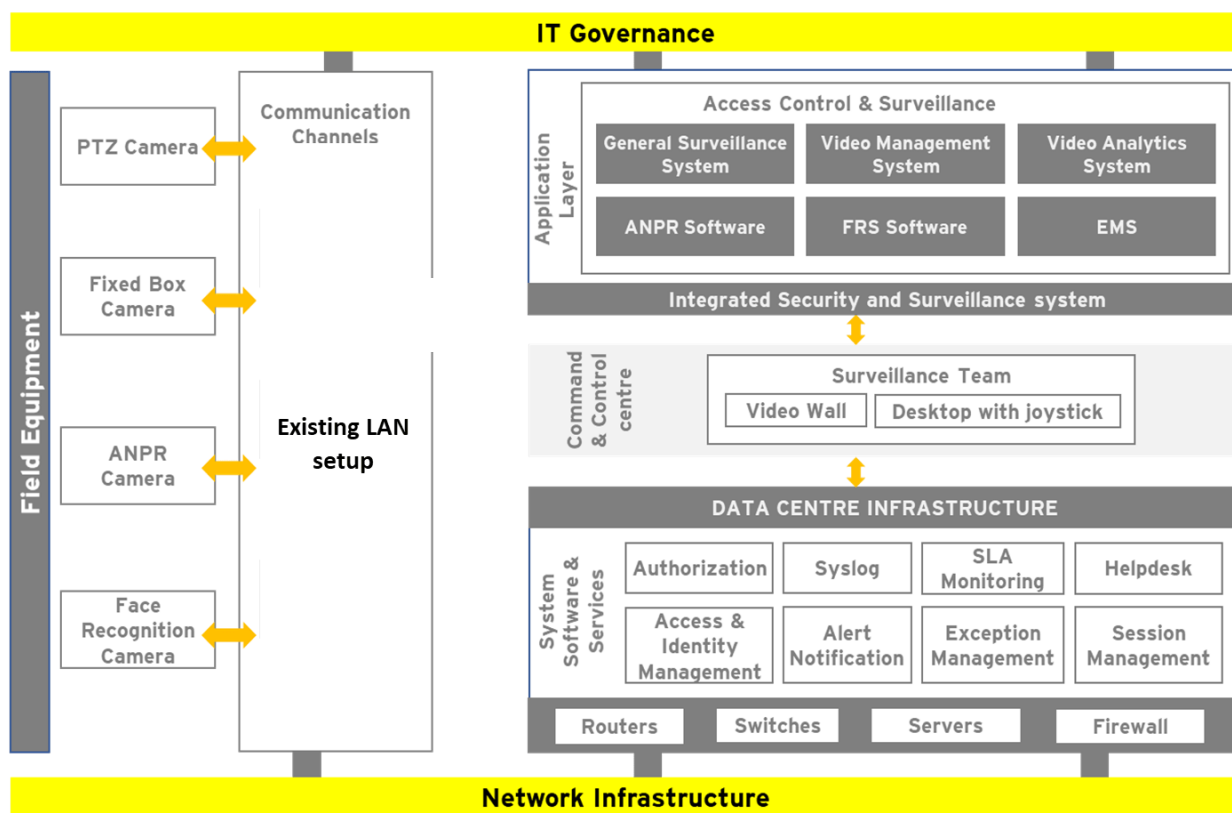
The system integrator will also deploy and maintain servers and associated systems at the port to cater to the requirements of the solution.

4.1 Deleted

Deleted

4.2 Command Centre Solution Overview

The IP based CCTV Surveillance system, which is to be deployed by the system integrator has been classified into the below mentioned components.



Indicative Solution overview



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- i. All installed CCTV Cameras at Land Port Petrapole will be connected to server and storage. The servers will further be connected over internet to provide uplink feed on real time basis to Central location of LPAI if required.
- ii. 8/16 port switch and 24 port Ports Switch in Land Port Petrapole to connect CCTV Cameras, Server, Storage etc. with provision to add more cameras in future.
- iii. 42U Modular Rack in each Land Port to install Server, Storage, Switch, Patch Panel etc.
- iv. Video wall in Land Port Petrapole to provide local view of the Cameras installed in the Land Port.
- v. LAN/OFC cabling work and electrical work including conduiting, patch paneling and earthing to be done in each Land Port.
- vi. 10 KVA UPS to be installed in each Land Port along with Field UPS to provide uninterrupted power supply to CCTV system.
- vii. Storage of 60 days to be provisioned at Land Port Petrapole. Flagged Data will be stored in tape drive for 365 days.

4.2.1 Setup of the proposed System

The CCTV System shall have Centralized Video management System.

- 1) The video management system, analytics system, FRS system shall be available on servers with n+1 redundancy. The final design of failover/Redundant system shall be decided during site survey by the successful Bidder.
- 2) All the required Software and Hardware for monitoring, recording, play back, management of cameras at all locations mentioned above shall be provided. Controls of Play back of Video, Selection of minimum 16 Cameras (with HD resolution) at a time for Viewing should also be available with required Software & Hardware at these locations.
- 3) All CCTV Cameras shall be supplied with required mounting structure & harness as per the site requirement.
- 4) The required anti-virus package for CCTV System shall also be part of the system.

4.2.2 Access Control System

The Access Control System will consist of FRS cameras, ANPR cameras, access gates for pedestrian entry and boom barriers for truck entry to be installed at the main entry gate of ICP Petrapole. The system will be primarily used for the entry of the ICP Official/staff and workers working at the ICP and the transporters(driver) coming in the private Vehicle. The FRS cameras, ANPR cameras, Access Gates & Boom barriers will be integrated with Access Control application, whenever any ICP official/staff or worker reaches the ICP entry gate, they will verify themselves through Facial Recognition Module in flap barrier and post successful verification the access gates will be opened to allow them to enter the ICP premises. In case of entry of vehicle and the driver the FRS camera will capture the image of the driver and the ANPR camera will capture the vehicle registration number, post successful capturing the details the boom barriers will get opened to allow them to enter the ICP premises. The Access Control application will have the following features to be envisaged for the use at ICP Petrapole:

- To blacklist or block any person from entering the ICP premises.



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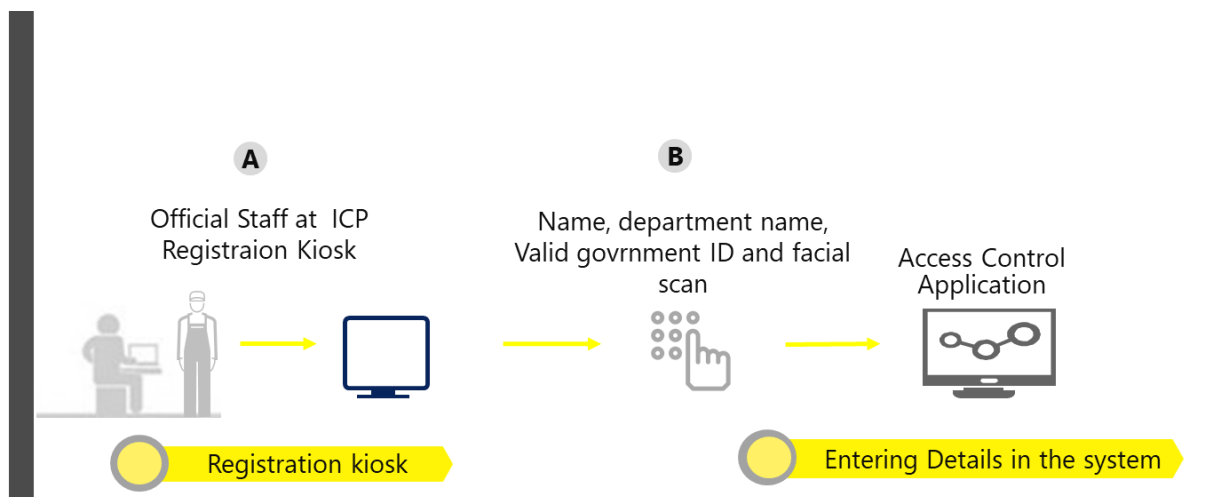
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- Real-time alerts will be generated if any blacklisted or unauthorized person tries to enter the ICP premises.
- The system will allow the administrator to have a consolidated and centralized database will be there with movement details of all the authorized people entering at the ICP
- Seamless data transfer with external systems and the following standards shall be implemented
 - XML messages using SOAP over HTTPS
 - XML Web Services
- After Land Port Management System of LPAI is implemented, the system should have the capability to verify the vehicle registration no. listed in LPMS application with the actual vehicle registration number.
- Land Port Management System of LPAI shall be able to access the information desired from the Access Control and surveillance system.

The whole process of the Access Control System will be divided into two processes by which a person or truck will be allowed to enter the ICP. The two processes are Registration and Verification at the ICP.

The below diagram depicts all the processes in detail explaining and every step of both processes of the Access Control System.

1. Registration of ICP official/staff & Labors



- The ICP officials/ staff and labors will register themselves at the registration desk located at the main entry gate of the ICP, where the infrastructure consisting of a desktop, facial Scanner and the document scanner will capture all the details in the system.

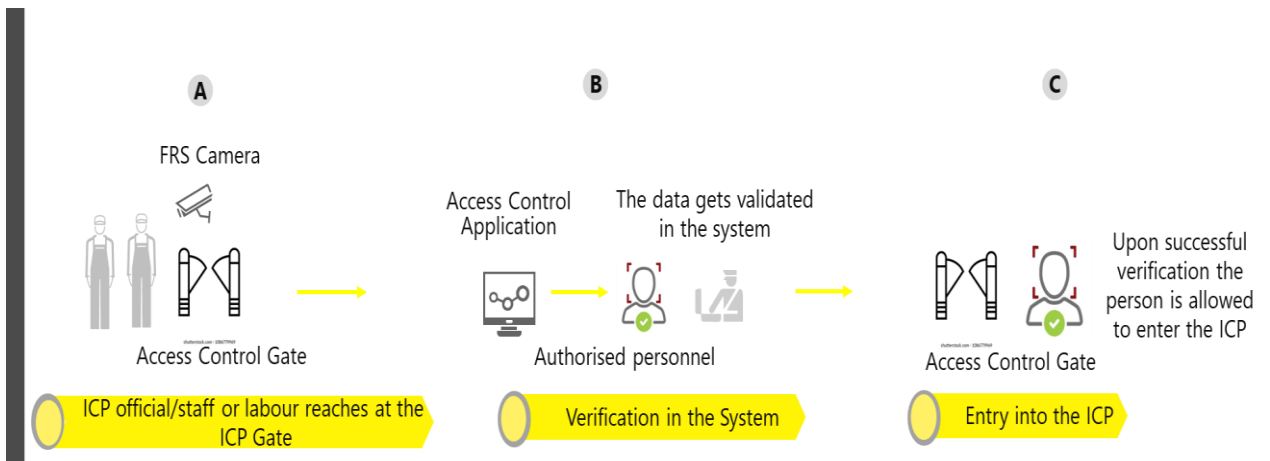


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- The name, employee ID, department name, Valid government ID, facial scan would be entered into the system by the authorized personnel.
- The authorized personnel will validate all the information in the system application and accordingly the confirmation would be given to the registered candidate.
- In case of any discrepancy, the authorized personnel system will check the same in the system, post which it will be verified at the registration desk.
- In case of any person visiting the ICP premises the first time, then he/she she must register themselves at the registration desk located at the entry gate of the ICP Attari.
- The service provider will have to setup the registration desk at the main entry gate of the ICP Attari, the purchaser party will provide the space to set up the registration desk, where the Border guarding force along with the operator will be there at the registration desk.

2. Verification of ICP official/staff and labors at ICP Petrapole



- Upon reaching at the ICP gate, the pedestrian (ICP official, staff & labors) will stand in front of the FRS camera mounted towards them for the screening of their facial scan
- Upon successful verification the Access Control gates will be opened, and their name and photo will be flashed on the screen located just above the pedestrian access control gate to enter the ICP.
- In case of any error, the system will notify the authorized personnel, who will check the same in the system.
- If the person entering the ICP is not authorized or blacklisted in the system, an alert will be generated to restrict the person from entering the ICP.



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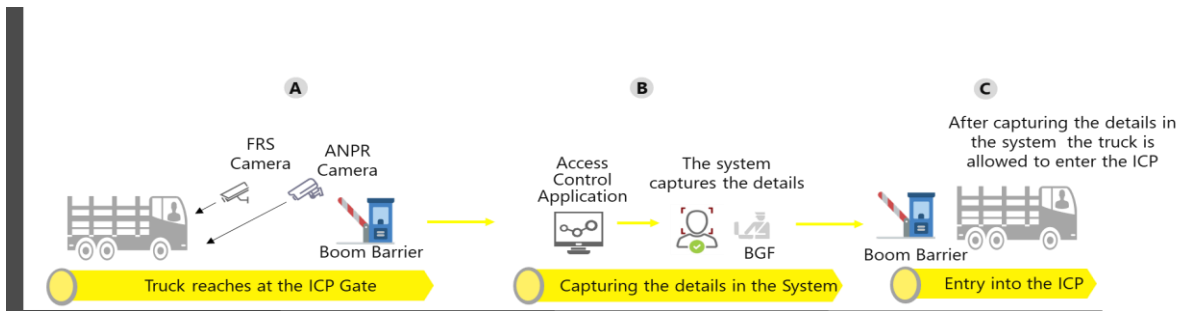
- For the ICP official/staff coming at the ICP with their two/ four-wheeler at the ICP, the FRS camera installed at the vehicle entry gate will be used to verify their details in the system.
- **There would the case of Exceptional Handling:** In case the access gates do not work, the entry of the ICP official/Staff/labours will be through manual gate at ICP.



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3. Verification of Vehicles and Driver at ICP Petrapole



- Upon truck reaching at the ICP gate the FRS Cameras will be placed towards the truck driver for facial scan and the ANPR cameras will be placed towards the number plate of the truck
- Upon entering the ICP, the FRS cameras will capture the facial scan of the truck driver and the ANPR camera will capture the no. plate of the truck in the system.
- After capturing the details of the truck and its crew, the boom barriers will be automatically opened for entry.
- If the truck or the driver entering the ICP are not authorized or blacklisted from entering in the ICP, the alert will be generated to restrict the truck from entering the ICP.
- **There would the case of Exceptional Handling:** In case the boom barriers do not work, the entry of the truck and the driver will be done manually.

Along with registration desk at the entry gate, a monitoring desk will also be there to monitor the entry of vehicle and pedestrian through Access Control application. The space and the place to setup the monitoring desk and registration desk will be finalized after discussion with the LPAI officials.

4.3 Key Components of CCTV Surveillance System

The CCTV system should comprise of but not limited to the following equipment, components, and accessories, etc. to perform required surveillance operations:

- a) High-Definition IP CCTV Cameras (PTZ & Fixed Varifocal) capable to work out-doors and indoors on 24X7 basis with appropriate environmental protection and supports.
- b) Automatic Switching / controlling for sequential switching of connected cameras to Video monitors.
- c) Video Management Systems with necessary hardware and software at Central Station, data storage units.
- d) Camera should perform smart features listed in specifications.
- e) Video Recording System along with required software and continuous recording facility for minimum 60 days at 2 MP at 50 fps recording. Option should be provided with motion-



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- based recording with up to 2 min pre and post recording. Calculation for usable storage capacity according to each platform to be provided.
- f) Provision for addition of cameras to be considered for future expansion i.e. storage, software licenses & server capacity for each platform.
 - g) Video Wall with mounting arrangement as per site requirement.
 - h) Keyboards with joysticks.
 - i) Option to select 1, 4, 9, 16 display of Camera Pictures on each screen including workstation monitor with HD resolution.
 - j) Camera mounting structures, support hooks for ladders if necessary, mounting brackets, accessories, CAT6 Cables, FO Cables, armored Power & control cables, patch chords, switches, Router, MCTs, FRP cable trays, clamps, connectors, junction boxes, power distribution boxes etc. as per site requirements.
 - k) Required Software and Software licenses for all the software provided for the operation, monitoring & diagnosis of the CCTV System.
 - l) The offered integrated camera Housings, CCTV related software should preferably be from OEM of CCTV Camera and CCTV cameras shall be from Single OEM.
 - m) Layer-3 switches connecting various Cameras and other devices; along with suitable Racks (Standalone/Wall mounted)
 - n) Any other item/equipment not mentioned above but considered essential for safe and reliable operation of the system shall be provided.

4.4 Application Layers for Command & Control Centre.

AI based analytics, Dashboards and EMS, etc. enable administrators to get a holistic view of ICP conditions and make informed decisions. The database of various infrastructure such as access control, surveillance camera, etc. coupled with data from alerts / analytics engine etc., gets routed from this layer.

4.4.1 Incident Management System

An application that works seamlessly with the Platform and provides a rich GUI based Web Console through the Operators can monitor and operate the various ICP services intelligently and efficiently.

- The Platform interfaces with Industry Standard Video Management Systems, Video Analytics and Unified Communication System.
- The operator client software enables ICP operations to be carried out and covers visualisation of the various alarms, create incident and execute Standard Operating Procedure (SOP).
- Alarm Management System to provide the details about each alarm received from the various sub-systems integrated. This alarm will be notified to the operator as visual pop-up with audio.



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- Alarms will be grouped into categories for ease of use and visualization based on the alarm source.
- Alarm management screen will provide the operator details regarding the source of the alarm, type of alarm, generated time, priority and elapsed time to take the appropriate action.
- The system provides advanced map & video visualization for situation awareness. Based on the situation, operator can create the Incident or abandon the alarm by providing comments.
- The module provides an easy use GUI that is simple to operate. Operator can view various types of alerts in a single place and validate the alerts for further processing.
- The incident management sub-system integrates all the alarms and provides an easy-to-use GUI interface (web & client server) for Control Station operators to get complete situational awareness of all the data & video relating to the alarms, create Incidents, execute.
- SOP Execution - Based on the incident type system will open up the activities need to be carried out for the incident. Mainly the SOP will provide the actions like notification, correlate, investigate and close incident. This activity defined in the administrator system for each type of incident.

4.4.2 Access Control System

The Access Control software should be robust system which functions smoothly in inflow of people at the ICP. The system must alert and not allow all the unauthorized entry into the ICP. It will record all the data of all the people entering into the ICP and also the number of people who were not allowed to enter into the ICP. The system to also have the feature to blacklist the any person to not allow to enter into the premises.

4.4.3 AI based Video Analytics

There are many cameras to be installed for Access Control and Surveillance that are being installed but cannot be closely monitored throughout the day. Since events are more likely to occur while the operator is not watching, many significant events go undetected, even when they are recorded. Operators can't be expected to trace through hours of video footage, especially if they're not sure what they're looking for. To address that, the solution shall have an AI based video analytics system, coupled with alert engine, which will utilize deep learning algorithms to provide the necessary analytics and proactive alerts to the stakeholders. The system will also have a continuous learning capability which helps in updating the existing data models and creations of new data models for use in video analytics/event detection.

The requirement AI techniques is very much essential for predictive analytics to address any crime is commenced by offenders. A key component in creating, launching, and implementing an analytics process is adopting a systemic approach to AI deployment. AI works on the given data sets and machine learning or deep learning technique.



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4.4.4 SMS/ WhatsApp gateway:

The Solution should have the capability to alert the users either through SMS/ WhatsApp notification to the relevant stakeholders in case of Severity Level 1 and 2 in real time. SMS/WhatsApp gateway will be provided by the service provider. The Service Provide shall arrange all the subscription/ Licenses required

4.4.5 Machine Learning

The Machine Learning technique in Artificial Intelligence is rapidly advancing in the field of data science, it brings the capabilities to identify any structure in the streaming video based on use case / given data sets. The self-learning algorithms use data sets to understand how to identify suspicious people/objects based on their behaviour. The below listed features describes the advantages of deep learning.

- The solution should be implemented for crowd controlling, head/face detection, face recognition and verification, real-time anonymization, gender and age estimation, person re-identification, and tracking. For example: in case the crowd gathering/physical assault or too many vehicles gather at one place at the premises then cameras installed should have the capability to identify and generate the alarm at the Command & Control Station
- The solution should be implemented to identify if any blacklisted person tries to enter into the ICP premises then the cameras installed at the ICP should have the capability to identify and generate the alarm at the Command & Control Centre.
- The solution should be implemented where the ANPR Camera can accurately identify the standard English number plates of the trucks. Furthermore, the ANPR cameras should be enabled to capture the photo of number plates in different languages such as Hindi, Urdu, Punjabi, etc.
- The solution should be implemented to identify the unnecessary movement near the godown area in the night in ICP premises.
- Apart from the above listed tentative scenario-based cases, the service provider should finalize all the scenario-based cases required for alert-based monitoring in discussion with the ICP manager and border guarding force.
- The type and number of analytics to be used per camera installed at various location across the ICP will be finalized after discussion with the LPAI officials and Border guarding force at ICP Attari.
- All the above listed use cases feed shall be divided into three severity incidents level as per requirement of LPAI officials and Border Guarding Force located at ICP Attari, the level of severity levels is given in the below table:

Severity Level	Description	Real time feed escalation	Real time Alert escalation Via SMS/WhatsApp



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1	A critical incident with very high impact	ICP manager and Command & Control Centre	LPAI headquarters, ICP manager and Command & Control Centre
2	A major incident with significant impact	ICP manager and Command & Control Centre	ICP manager and Command & Control Centre
3	A minor incident with low impact	Command & Control Centre	Command & Control Centre

4.4.6 Video Management System

The Video Management System is the heart of the entire video surveillance solutions, accepting video from cameras, storing the video, and managing distribution of video to viewers. The software solution shall highly scalable and flexible video systems that are easily managed and monitored. Video Management Application addresses head-on the challenges of ICP video surveillance & security. VMS shall provide unmatched camera portability and flexibility with intuitive intelligence.

With the help of VMS, Operators won't have to spend valuable time searching through hours of unnecessary recordings looking for a particular incident, the video images are stored in the system and referenced in the VMS database, from where they can be quickly located and viewed using advanced search capabilities. Viewing of feeds shall primarily be on remote PC viewing at Command & Control Centre.

4.4.7 Health Monitoring System (HMS)

The Health Management System (EMS) is an important requirement of this Project. Various key components of the HMS are:

- SLA & Contract management System
- Network Monitoring System
- Server Monitoring System

Proposed HMS Solution shall be based on industry standard best practice framework such as ITIL etc. Furthermore, all ICT and non-ICT components shall be compliant and integrated with the HMS.

4.4.8 SLA and Contract Management System

The SLA & Contract Management solution should enable LPAI to capture all the System based SLAs defined in this tender and then calculate quarterly (or for any duration) penalty automatically. Measuring service performance requires incorporation of a wide variety of



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data sources of the Surveillance project. The SLA solution should support the collection data from various sources in order to calculate Uptime / Performance / Security SLAs.

4.4.9 Server Management System

The proposed tool must provide information about availability and performance for target server nodes. The tool should be able to monitor various operating system parameters such as processors, memory, files, processes, file systems, etc. where applicable. The solution should provide a unified web-based console and system shall integrate with SLA & Contract Management system in order to supply KPI metrics like availability, utilisation, and performance in order to measure central SLA's and calculate penalties.

4.4.10 Video Synopsis/summarization Tool

In Surveillance project, surveillance personnel have to pore over hours of video footage, to track down the movements of an individual (of interest) or the motion of an object (of interest) during a target period. And, as the number of cameras in the surveillance network increases; so, does, exponentially, the time spent by the surveillance personnel reviewing the footage.

Viewing and analysis of recorded surveillance video are still time-consuming and labour-intensive tasks, despite the adoption of video analytics practices and tools in video surveillance networks. A video analytics tool can raise an alert against a set of defined, and potentially illegal, activities; but, once flagged off, reviewing the progress of the individual/object that set off the alert, through the recorded footage, is a manual and tiresome process.

4.5 Fire Alarm System For Warehouses

- i. The scope of work under this heading shall include designing supplying and installing of Analogue Addressable Fire Detection and Alarm System. The work under this system shall consist of furnishing all materials, equipment, appliances and labour necessary to install the complete Fire Detection and Alarm System, complete with Main Fire Alarm Control Panel, Sensors, Sounders, Strobes, Manual Call Stations, Relays etc. for interfacing with other systems.
- ii. It shall include laying of cabling duct, conduits and power supply etc., necessary for installation of the system with supply of sensors and devices as appropriate and as indicated in the Specification and Bill of Quantities. Any openings/chasing in the wall/ceiling required for the installation shall be made good in appropriate manner.
- iii. The Bidder shall also undertake to control and monitor the ventilation and other systems from the Fire Alarm Panel through the use of Addressable Output / Input Modules



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4.5.1 Fire Alarm Panel (FACP)

This refers to the microprocessor-based panel that shall be connected to the various sensors/devices by means of 2 wire loops. The FACP shall be able to supervise individual detectors for proper performance as well as to give pinpoint location of Fire or Fault Alarm and initiate Alarms as well as facility for cutting off of AHU's and Electrical Power is also to be included. The panel shall also have the provision through volt-free contact to activate an Auto-Dialer to dial selected phone numbers in case of fire.

4.5.2 Loop

A loop shall mean a 2-wire circuit connecting 198 Addressable Devices, which shall include 99 Sensors and 99 Modules. The loop card shall have built-in short circuit isolators to accommodate Class A wiring.

4.5.3 Addressable Devices

This term indicates the complete group of addressable devices such as Sensors or Detectors, Manual Call Stations, Addressable Output / Input Modules etc.

4.5.4 Sensors and Detectors

The Sensors or Detectors shall be Analogue Addressable type. The chamber should be easily removable for the purpose of easy maintenance. The address programming shall be done through the decade switch in the Detector. The Detectors shall have a common base to allow easy interchange of various types of Detectors. Address setting by DIL Switch shall not be acceptable or through Hand Held Programmer

4.5.5 Manual Call Station

The Manual Call Station shall be addressable type with Input Modules to define the address for each station. The function shall be similar to that of conventional Manual Call Point and should be resetable without replacing the glass.

4.5.6 Out Put Module

Output module shall mean Addressable points from the FACP with potential free contacts for tripping of AHUs, power supply etc. as required. Any module shall operate two relay outputs powered from the loop and preferably consuming single address on the loop. The system shall also be able to handle separate modules to interface the speakers of the Public Address System.

4.5.7 Input Module

The input modules shall be of dual/single channel type. The dual channel module shall be selectable for Normally Open or Normally Close by a 2 bit DIL switch.

4.5.8 Fault Isolator

This unit shall be placed on the loop preferably after every 20–30 devices and shall be able to isolate electrical short circuit in the wiring. All the other detectors shall remain functional because of the Class A wiring of the loop. The isolator shall not utilize an address and shall be built into the detector base wherever required.



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4.5.9 Sounders/Hooters

Each sounder shall be of addressable type. The sounders shall derive power either from Loop itself. It shall be capable of being directly mounted on the wall/ceiling or along with the detector. The sounder shall have an output of at least 90db at 1 mtr. The sounder shall be programmed to activate in event of an alarm from a single detector/device or a group of detectors/ devices

4.5.10 Fire Alarm System

- i. The Fire Alarm System shall confirm to EN54, BS: 5839 or NFPA 71/72 in respect of design and installation, and it shall give Audio/Visual Alarm Signals when there is rise in temperature in case of Heat Detector or while measuring Smoke Density in case of Smoke Detector, while it exceeds the pre-set limit. The system shall give pinpoint location of fire with warning system and voice communication for commands and instruction if required.
- ii. The system shall have a microprocessor-based control and monitoring facility. The basic function of the system shall be able to achieve pinpoint location of alarm indication.
- iii. It shall be possible to program each loop with up to 99 Detectors & 99 Modules in a circuit.
- iv. Annunciation facility shall also be inbuilt into the FACP, the panel being able to initiate alarm signal for any particular zone.
- v. The system shall be fully supervised for all fault conditions with distinctive alarm operated for fault and fire conditions. Test buttons and software features shall be provided to test the electronic circuits and Detector health
- vi. The FACP shall be so programmed that when a particular Detector or group of detectors gives a fire signal the FACP should be able to trip an individual AHU automatically. In case of Fire in an area handled by an AHU the FACP shall be able to trigger a Relay that shall shut off the AHU through an additional contact provided in the AHU panel by the AC contractor.
- vii. The FACP shall have facility to connect addressable Input / Output Devices in the peripheral RS 485 bus. These may be 8 way input card, 4 way relay card, 4 way sounder card, passive/active repeater panels and mimic driver cards
- viii. The system shall be based on an "Open Protocol" to ensure flexibility of using Sensors / Detectors of an alternate manufacturer, in case the user requires such an option at a later date.

4.5.11 Fire Alarm Control Panel (FACP)

- i. The Fire Alarm Control Panel shall be micro processor based fully Analogue Addressable, Analogue Control Unit which shall control all Analogue Addressable Detectors, Manual Call Stations and Switching Systems (for disconnecting AHU and power supply) connected to it.
- ii. All addressable units shall be connected to the FACP through the Loop Cards and shall be addressed through individual numbers. The FACP shall be able to obtain analogue



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value for all detectors in the circuit through a pulsed digitalized current data. The FACP shall be able to analyze all analogue inputs from all addressable units, and through its own software and ambient level screening the FACP shall be able to identify fire, possible fire or fault conditions. The unit supervision shall be dynamic and continuous

- iii. The FACP shall itself have one loop card built in. The loop shall be able to address 99 addressable detectors & 99 devices. Atleast 99 FACP units may be networked to enhance system capacity as and when required. All the networked panels shall display all the events occurring anywhere in the system. Each FACP on the network shall effectively function as a repeater panel as well.
- iv. The FACP shall also give adequate warning signal whenever there is dust accumulation in detectors, and up to the point of its replacement it should be possible to change the level of ambient alarm calibration condition either by the use of software program operable by the owner or by resetting the detector
- v. Short / Open circuit units shall also be reported at the FACP In such cases, the system through the use of fault isolators shall be able to isolate that segment between the two fault isolators. The missing Detectors/Devices shall also be reported at the FACP with identification of the location.
- vi. The FACP shall have the facility to set sensitivity of each smoke sensor remotely. It shall also be possible to set the sensitivity to a global high or global low based on night or daytime.
- vii. When an alarm condition is sensed at the FACP from a smoke or heat detector, a delay time/alarm verification period shall be started. If the sensor is still in alarm after the delay time expires, an alarm condition is reported. The delay time shall be adjustable from 0 to 990 sec's.
- viii. The FACP shall have the facility to perform walk test such that an operation can be periodically checked out for all initiating devices. As each device is placed into alarm the FACP shall print the condition and automatically reset the device. Audible devices shall be initiated, if required at a preprogrammed time. If a zone is inadvertently left in walk test mode, it shall automatically reset to normal after the idle time is exceeded. During the walk test the zones other than the programmed zones shall be under continuous supervision (normal mode). In case of any alarm initiated by detector/devices the walk test shall get terminated automatically.
- ix. Programming functions shall include alarm/trouble type assignment, point descriptor assignment, alarm message assignment, etc.
- x. Programming may be carried out from the FACP keyboard or utilizing the approved PC setup software via laptop/desktop computer.
- xi. The FACP shall have a Liquid Crystal Display of Alphanumeric type to indicate immediately all conditions. The display should be high resolution, backlit 2 (lines) x 40 character. In case of testing of the system from the FACP the Display shall be able to give readouts of analogue value of all detectors being tested. The FACP shall also be able to carry out continuous self-monitoring when in normal condition.



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- xii. The FACP shall have facility for in-built or external printer coupled to the FACP, which shall log all events with time. The printout shall clearly indicate the event - Fire/Pre Alarm/Fault etc. With the unit address and time.
- xiii. The FACP shall also be able to discriminate between false alarms and fire conditions, as well as priority selection of alarm in case alarm activates in two or more remotely located units simultaneously. In such cases, the Manual Call stations shall have the highest priority.
- xiv. The FACP also is able to actuate switches automatically in case of Fire condition that of AHU's and power supply or other systems such as Gas Extinguishing Systems.
- xv. In this respect the bidder is required to take note of clause relating to cutting off of AHU's given above. The bidder shall note that the Client shall provide no additional facilities for completion of this mechanism other than that specified in RFP.
- xvi. The System shall be fail safe and adequate safe guards should be under taken that in the event of a failure of a part of the System it shall not handicap the complete System. The Loop Cards shall be of Modular Construction.
- xvii. The Bidder shall undertake the responsibility of the complete installation, commissioning, user trials, training and maintenance of the System as required. The Bidder shall take all responsibility for preparation and installation of System Software into the FACP. The Software shall be such so as to be easily operated by the Client's Personnel and secured against Software errors, ability to be upgraded so as to incorporate more features at a later date.
- xviii. The FACP shall have its own Battery Backup of a minimum of 48 hours in normal condition and then half an hour in alarm condition. The back up time calculation shall be done as per IS 2189 standards. The Battery shall be 2*12V (24V) DC and of sealed lead acid rechargeable maintenance free type, housed inside the FACP.
- xix. It shall be able to withstand temperature variations from 00 centigrade to 550 centigrade. Further, Relative Humidity (non-condensing type) up to 95% shall not hamper its performance. The voltage rating shall be from 15V DC to 32V DC, though the voltage may be change depending upon the working voltages of a proprietary FACP.
- xx. The FACP shall be totally enclosed dust and vermin proof type made of minimum 16 gauge dust inhibited sheet with even baked finish. The FACP shall be of completely solid stage design
- xxi. The system shall be designed such that it shall be possible to add atleast 20% of the Detectors for future expansion without extra cost on the panel.
- xxii. The FACP shall be capable of being networked (future expansion) with other similar FACPs located at different part of the premises through a single RS485 bus.
- xxiii. The FACP shall have provision for interfacing with the Public Address System.
- xxiv. The Panel should have a minimum of 20 zones and each zone shall have an LED to indicate independently fire and fault conditions on the panel fascia.
- xxv. The panel should have the facility to interface with an automatic two-channel programmable speech dialer for verbal reporting of fire. It shall be able to call four telephone numbers per channel. The programmable speech dialer shall have two alarm inputs and shall provide listen-in capabilities through the built-in microphone.



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The dialer shall have a built-in keypad for easy operation, programming and voice recording.

4.5.12 Manual Call Stations.

- i. The manual station shall be a press to break type. The device shall be red in color and suitable for surface or flush mounting. Manual stations shall be interfactable to an addressable input module that can be accommodated within the device. The manual station shall have normally open fire alarm and annunciator contacts and these contacts shall close on activation. Contacts shall remain closed until station is manually reset.
- ii. The Manual Call Station shall be fully addressable with its own addressable module and operated by digitized signals from the FACP. The voltage range shall be from 15V to 32V. It shall have protection as per IP33. The operating temperature range shall be from -10 degree C to 60 degree C. Relative Humidity (non condensing) range of performance parameters shall be between 10 to 93%.

4.5.13 Sounders/Hooters Cum Strobes

- i. The sounder shall be Addressable Loop Powered electronic type and shall give discontinuous/ intermittent audible alarm whenever any detector or MCP operates.
- ii. The sound output from the Hooter should not be less than 85 decibels at the source point.
- iii. The sounder/Hooter shall be powered from either 2 wire detector loop or separate power supply 24 VDC can be used or additional cable shall be used in case of external power supply.

4.5.14 Fire Alarm Testing

- i. The FACP shall be checked for basic tests such as visually checking input voltage and amperage. All zones one by one shall be de wired to check for fault signal indication in the FACP.
- ii. The Power Source shall be cut off and checked for stand by Supply from the Batteries. After six hours the FACP Source shall be switched on to check for auto switch over to the Mains mode.
- iii. Tests shall be conducted for AC fail, charger fail, DC fail, Battery Disconnect or Battery fail. In all such cases the relevant L E D should glow and the piezo sound shall also give sound output.

4.6 Descriptive Field Infrastructure

This section of the RFP covers planning & implementation of the surveillance cameras and other field equipment at identified locations. Actual place for placement of Cameras & Gates, pole & number of cameras at each location, type of cameras, fixation of height & angle for the cameras to ensure maximum coverage would be done in discussion with the LPAI.

- A detailed survey shall be conducted by the System integrator along with the team of LPAI of Land Port.



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- The survey shall finalize the location of the CCTV and other accessories as per RFP to be installed at the Land Port.
- The survey shall finalize the orientation / field of view and the position of all field equipment. Appropriate field of view snapshot shall be taken by a handheld camera for future reference at the time of survey.
- The surveyors shall also finalize the approximate location of foundation for Outdoor Enclosure and camera poles.
- The route for all the underground cable laying shall be finalized during this survey.
- Every detail finalized during the survey, shall be demarcated on an AutoCAD drawing by the System integrator and submitted to LPAI in the form of a detailed site survey report along with other details for its approval.

System should provide inter-operability of hardware, operating system, software, networking, printing, database connectivity, reporting, and communication protocols. System integrator shall prepare the detailed report for field level requirements e.g., Surveillance Cameras (types & numbers), Camera Mounting requirements, Power Requirements, Connectivity Requirements, etc. for perusal of LPAI. Indicative list of the field level hardware to be provided by System integrator is as follows:

- Cameras: Fixed, PTZ, Dome , Thermal Camera
- Managed Switches
- Pole for cameras / Mast
- Junction Box / Enclosure
- Networking and power cables and other related infrastructure

The indicative list of locations of the IP PTZ/ Fixed Cameras are given in the RFP along with minimum technical requirements of associated hardware to make a complete surveillance system. However, System integrator is to conduct a detail assessment of all locations and prepare a detail list of required components. The System integrator shall submit the assessment report and equipment list to LPAI.

4.6.1 Installation of surveillance cameras

The system integrator shall supply, installation, testing and commissioning of the surveillance cameras at the identified locations. Specifications for the cameras and poles are given in Technical Specification of this RFP.

System integrator should follow the industry best practice during the implementation w.r.t positioning and mounting the cameras. Some of the checkpoints which need to be adhered to by the system integrator while installing / commissioning cameras are as follows:

- i. Ensure surveillance objective is met while positioning the camera such that the required field of view is being captured as finalized in primary survey.



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- ii. Ensure camera is protected from the on-field challenges of weather, physical damage, and theft.
- iii. Make proper adjustments to have the best possible image / video captured.
- iv. Ensure that the pole is well placed for vibration resistance adhering to the Road safety norms.
- v. Collusion preventive barriers around the Outdoor Enclosure & pole foundation in case its installed in collision prone place.
- vi. The Facial Recognition cameras shall be placed in such a manner that the checking done by border guarding forces at the entry gate shall be in the FoV of the camera.

Sr No	Location	Dome Camera	Bullet Camera	PTZ Camera	Fisheye Camera
1	Mukhya Bhawan	0	10	0	0
2	Perimeter	0	20	0	0
3	Warehouse (Inside)	24		0	0
4	Cargo area and outdoor camera		170	25	1
Total		24	200	25	1

4.6.2 Installation of Poles/Cantilevers/Gantry

- i. The system integrator shall ensure that all the installations to be as per the requirement of the purchaser.
- ii. For installation of various types of Surveillance Cameras, the system integrator shall provide appropriate poles & cantilevers and all required supporting equipment.
- iii. The system integrator shall supply, install, configure, testing, commission and integrate the surveillance cameras at the identified locations.
- iv. System integrator shall ensure that the poles erected to mount cameras are good, both qualitatively and aesthetically
- v. System integrator shall follow the industry best practice while positioning and mounting the cameras and ensure that the pole / mast implementation is vibration resistant.
- vi. The poles shall be installed with base plate, pole door, pole distributor block and cover.
- vii. Base frames and screws shall be delivered together with poles and installed by the System integrator.
- viii. In case the cameras need to be installed besides or above the signal heads, suitable stainless-steel extensions for poles must be provided and installed by the system integrator, so that there is clear line of sight.



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- ix. The system integrator shall be responsible to perform the required structural analysis regarding the regulated load conditions and considering the respective wind velocity while installing the poles / cantilevers for surveillance cameras or related equipment.
- x. Poles and cabinet shall be so designed that all elements of the field equipment can be easily installed and removed.
- xi. The system integrator shall ensure the physical look of the installation area returns to neat & tidy conditions, after installation of the poles, cantilevers, etc. The placement shall be designed keeping in mind that the normal flow of vehicular traffic and pedestrian movement are not disturbed.

4.6.3 Installation of sample site

The system integrator shall complete the installation work at the first location after award of contract in each category (Main entry Gate, Trade Gate, rummaging area, parking area etc.) from all the aspects and then request LPAI to conduct a detailed assessment of all the quality perimeters that it expects at the site.

Following aspects shall be assessed thoroughly:

- i. Quality of concrete foundation made for erecting Poles and Outdoor Enclosure.
- ii. Quality of Poles and Outdoor Enclosure erected at site.
- iii. Quality of resurfacing of the cut roads and pavements.
- iv. Placement of relevant equipment like network switch, UPS inside the rack.
- v. Electrical Earthing of the Outdoor Enclosure and Poles.
- vi. Structured cabling standards inside the Outdoor Enclosure.
- vii. Cabling from the Outdoor Enclosure to the poles to be completely covered
- viii. Labeling of the entire infrastructure inside the rack and all the poles and cameras at the junction site for ease of maintenance.

A Site visit report shall be prepared and presented to the user covering all the observations. The same shall be vetted by LPAI or other stake holders involved in this project and changes if any suggested shall be highlighted.

The system integrator shall ensure the observations/ changes suggested by all stake holders of this project shall be incorporated for the first site and incorporated for all locations. Due verification of the same shall be done at the time of User Acceptance of the project.

4.6.4 Outdoor Cabinets / Junction Box / Enclosure

- i. Each intersection shall be fitted with outdoor cabinets dimensioned to host all equipment necessary to operate surveillance systems as defined in this RFP.
- ii. The system integrator shall reserve additional room availability in the cabinet to accommodate the future system requirements.
- iii. The size of outdoor cabinet / Enclosures shall be enough to accommodate all the system components, which might be installed. The cabinet / Enclosures shall be dustproof and



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impermeable to splash-water. It must be suitable for outdoor environmental conditions. It shall have separate lockable doors for:

- **Power cabinet:** This cabinet will house all power supply and power management equipment.
 - **Control cabinet:** This cabinet will house all data processing and network field components at that location e.g., Switch, LIU etc.
- iv. Internal cabling of cabinet shall be designed for an easy connection and disconnection of the equipment and power.
- v. The cabinets shall be of robust construction and shall include security-locking mechanisms to prevent unauthorized access to the field equipment.
- vi. Temperature and Humidity Control: All enclosure compartments shall be equipped with a natural and two exhaust fans for air circulation system via the provision of air circulation filters which shall require no maintenance, and which shall allow the free circulation of air inside the enclosures, to prevent overheating as well as the build-up and effects of humidity and heat, without permitting the entry of elements which might endanger system operation.
- vii. The system integrator shall ensure all the hardware to be placed inside the outdoor enclosures can withstand temperatures prevalent in outdoor condition.

4.6.5 Civil and Electrical Works

- i. The system integrator shall carryout all the civil work required for setting up all the field component of the system including:
- Preparation of concrete foundation for MS-Poles & cantilevers
 - Laying of HDPE/ GI pipes complete with fitting as per site conditions
 - Excavation of hard / soft soil and backfilling after cabling
 - Chambers with metal cover at every outdoor enclosure, pole and at road crossings
 - Concrete foundation from the Ground for junction box / enclosures
- ii. The system integrator shall carryout all the civil work required for setting up all the field component of the system including:
- Preparation of concrete foundation for MS-Poles & cantilevers
 - Laying of GI Pipes (B Class) complete with GI fitting.
 - Excavation of hard / soft soil and backfilling after cabling
 - Chambers with metal cover at every outdoor enclosure, pole and at road crossings
 - Concrete foundation from the Ground for junction box / enclosures
- iii. The system integrator shall carry out study and identify locations to provide UPS backup.



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- iv. The system integrator is responsible for carrying out all the electrical work required for powering all the components of the system.
- v. Electrical installation and wiring shall conform to the electrical codes of India.

4.6.6 Earthing and Lightning Protection

- i. The system integrator shall comply with the technical specifications, considering lightning-proof and anti-interference measures for system structure, equipment type selection, equipment earthing, power and signal cable laying. System integrator shall describe the planned lightning-proof and anti-interference measures in the bidding documents.
- ii. Corresponding lightning arrester shall be erected for the entrance cables of power line, video line, data transmission cables, etc.
- iii. All interface board and function board, interfaces of equipment shall adopt high speed photoelectric isolation to reduce the damage to Low Voltage devices due to the surge suppression.
- iv. Install the earthing devices for the equipment, including lightning earthing, protection earthing and shielded earthing. All earthing shall meet the industry standards.
- v. The earthing cable shall be installed in a secure manner to prevent theft and it shall be rust proof. The earthing down lead and the earthing electrode shall be galvanized, and the earthing value shall meet the requirements. Earthing test report shall be produced by the system integrator.

4.6.7 Miscellaneous Points

- i. The system integrator shall provide all material required for mounting of components such as cameras and other field equipment. All mounting accessories such as brackets for installation of surveillance cameras to enable pan and tilt capabilities, shall be included in the costs of the respective component. The same concerns crossheads and cross arms, mounting brackets, stainless steel bands, screws, and other accessories.
- ii. Excavation, earthing, filling, and ensuring to make the site to its original state will be the responsibility of the system integrator including supply and installation of poles, housing & any additional fixtures.
- iii. Preventive maintenance shall be carried out once in a quarter along with corrective maintenance and when calls are placed by designated official of LPAI.
- iv. The system integrator shall offer maintenance of the various equipment, components, and installations to a high level of operational integrity for a defined period following the issuance of the Go-Live from client.



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- v. In addition to maintenance during the defined period, the system integrator shall be fully responsible for all maintenance activities for the period between installation of equipment and roll-out of the system.
- vi. During implementation, if observed that any camera / field equipment requires change or realignment in the field of view / orientation, it should be done by system integrator without any extra cost.
- vii. In case of any trivial thing missing in the BoQ but required to ensure the functional requirement of any system/ sub-system/ element shall be considered by the system integrator and the rates quoted should be complete and comprehensive to deliver the functional requirements as per scheduled technical specifications.

4.7 Maintenance of the site operations

The Bidder shall consider all the items mentioned in the section of site preparation always in working conditions. It is the sole responsibility of the Bidder to install, implement, maintain, operate all the required equipment's, items, inventories till the duration of the project.

5. Training Program

Training to LPAI personnel (for 3 days in 2 batches) at Land Port providing knowledge about the configuration, Hardware/Software familiarization, day-to-day operations, and maintenance of the system.

6. DLP (Defect Liability Period) & Comprehensive Annual Maintenance Contract

The Successful Bidder should quote for total contract will be of 5 years: 1 year of DLP (Defect Liability Period) and 4 Year Comprehensive Annual Maintenance.

6.1 DLP (Defect Liability Period)

- a) Any defects in the system identified by the LPAI and/ or the LPAI's nominated representative and provided to the System Integrator in the form of a written notice during the Final Acceptance shall be rectified during the Defects Liability Period. The above defects list shall also include any defects that surface during the DLP which shall also be rectified by the System integrator during the defined DLP itself.
- b) Suitable tests for confirming the rectification of defects shall be performed by the System integrator to the satisfaction of the LPAI.
- c) The DLP shall be in force for a period equal to the contract/concession period under the main Contract Agreement succeeding the notice of Final Acceptance.

7. Project Implementation

7.1 Project Milestone Plan

The project is divided into following two phases:



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- i. **Phase I – Implementation:** This phase would start from project initiation and would be completed once the system has been implemented. The various activities would include freezing of specifications for various components of envisaged system, application software development, testing, demo of functionality, procurement & installation of hardware and required system software, network creation, deployment of support staff and go live.
- ii. **Phase II – One Year DLP (Defect Liability Period) & Four Year Annual Comprehensive Maintenance Period):** This phase would continue till the termination of the contract. The bidder would be responsible for the functioning of the system for a period of 3 years and would also maintain the entire system for the same duration.

Sr No	Project Phase	Timelines (Months)	Milestone
1.	Project Kick Off Meeting	T+ 1 day	NA
2.	Inception Report & Project Plan	T+ 5 day	Acceptance of Inception Report & Project Plan
3.	Design	T+ 10 days	Design Document (Hardware, Software, Electrical, Civil)
4.	Procurement & Delivery at Site	T+ 3 months	Delivery Challans for Materials
5.	I&C	T+ 4 months	Implementation Report
6.	Testing And Acceptance	T+ 4.5 Months	Test Successful Report and Customer Acceptance Report
7.	System Stabilization and Go-Live	T(G)=T + 5 Months	Go Live Certificate
8.	DLP	T(G) + 12 Months=T(D)	DLP Report on Quarterly Basis
9.	CAMC	T(D)+48 months	CAMC Report Quarterly Basis



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Glossary of Terms

S.no.	Term	Full Form
1.	ABG	Advance Bank Guarantee
2.	ACS	Access Control System
3.	AI	Artificial Intelligence
4.	BOM	Bill of Materials
5.	BoQ	Bill of Quantities
6.	CCC	Command & Control Centre
7.	CCN	Change Control Note
8.	CCTV	Closed Circuit Television
9.	CAD	Computer Aided Dispatch



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10.	DC	Data Centre
11.	DG	Diesel Generator
12.	EMS	Enterprise Management
13.	FRS	Facial Recognition System
14.	GCC	General Condition of the
15.	IP	Internet Protocol
16.	LOI	Letter of Intent
17.	LOA	Letter of Award
18.	MPLS	Multi-Protocol Level Switching
19.	MSA	Master Service Agreement
20.	NDA	Non-Disclosure Agreement
21.	NFPA	National Fire Protection
22.	OEM	Original Equipment
23.	PBG	Performance Bank Guarantee
24.	PTZ	Pan Tilt Zoom
25.	RF	Radio Frequency
26.	RFP	Request for Proposal
27.	SCC	Special Conditions of the
28.	SLA	Service Level Agreement
29.	SOR	Schedule of Rate
30.	TEC	Technical Evaluation
31.	TS	Technical Score
32.	UPS	Uninterrupted Power Supply
33.	VMS	Video Management System



1. Interpretation

In this document, unless otherwise specified:

- i. References to Clauses, Sub-Clauses, Paragraphs, Schedules, and Annexures are to clauses, sub-clauses, paragraphs, schedules, and annexures to this document.
- ii. Use of any gender includes the other genders.
- iii. References to a 'company' shall be construed so as to include any company, corporation, or other body corporate, wherever and however incorporated or established.
- iv. References to a 'person' shall be construed so as to include any individual, firm company, government, state or agency of a state, local or municipal authority or government body or partnership (whether or not having separate legal personality);
- v. A reference to any statute or statutory provision shall be construed as a reference to the same as it may have been, or may from time to time be, amended, modified or re-enacted.
- vi. Any reference to a 'day' (including within the phrase 'business day') shall mean a period of 24 hours running from midnight to midnight.
- vii. References to times are to Indian Standard Time.
- viii. A reference to any other document referred to in this document is a reference to that other document as amended, varied, novated, or supplemented at any time; and
- ix. All headings and titles are inserted for convenience only. They are to be ignored in the interpretation of this document.
- x. Has been used for the same entity i.e., bidder selected for the project.

1.1 Definitions and Interpretations

Terms and expressions used in this document shall have the meanings set out in in this section. Other terms used in this document are defined where they are used and have the meanings there indicated. Unless otherwise specifically defined, those terms, acronyms and phrases in this document that are utilized in the information technology services industry or other pertinent business context shall be interpreted in accordance with their generally understood meaning in such industry or business context.

Terms	Definitions
Adverse	means material adverse effect on (a) the ability of the bidder/System Integrator to exercise any of its rights or perform/discharge any of its duties/obligations under and in accordance with the provisions of the Contract Agreement and/or (b) the legal validity, binding nature or enforceability of the Contract Agreement;



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Terms	Definitions
Acceptance of the System	The system shall be deemed to have been accepted by the LPAI, subsequent to its installation, testing and commissioning, when all the activities as defined in Scope of Work have been successfully executed and completed to the satisfaction of LPAI.
Agreement	means this Master Services Agreement, Service Level Agreement and Non-Disclosure Agreement together with all Articles, Annexures, Schedules and the contents and specifications of the RFP;
Applicable Law(s)	Means any statute, law, ordinance, notification, rule, regulation, judgment, order, decree, bye-law, approval, directive, guideline, policy, requirement or other governmental restriction or any similar form of decision applicable to the relevant party and as may be in effect on the date of the execution of the Contract Agreement and during the subsistence thereof, applicable to the Project;
Assets	Means entire hardware and software, network or any other information technology infrastructure components used for the Project and other facilities leased / owned / operated by the System Integrator/ bidder
Software	Means the software designed, developed / customized, tested and deployed by the System Integrator for the purposes of the Project and includes the source code (in case of Bespoke development) along with associated documentation, which is the work product of the development efforts involved in the Project and the improvements and enhancements effected during the term of the Project, but does not includes the third party software products (including the COTS products used for the product), proprietary software components and tools deployed by the System Integrator;
Bespoke Development	Bespoke development means development of custom-built software for some specific organization.
Business Day	a 'Business Day' shall be construed as a reference to a day (other than Sunday and other gazette holidays) on which LPAI or its nominated agencies/ partners is generally open for business at their respective locations.
Business Hours	Shall mean the working time for Land Ports, Petrapole users .It is desired that IT maintenance, other batch processes (like backup)



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Terms	Definitions
	etc. should be planned so that such backend activities have minimum effect on the performance;
Bidder	Means organization submitting the proposal in response to this RFP, bidder also refers to single bidder in case of single bidder and lead bidder and consortium partner in case of Consortium
BOQ	"BOQ" refers to Bill of Quantity.
Confidential Information	Means all information including LPAI Data (whether in written, oral, electronic or other format) which relates to the technical, financial and business affairs, dealers, System Integrators, products, developments, operations, processes, data, trade secrets, design rights, know-how, plans, budgets and personnel of each Party and its affiliates which is disclosed to or otherwise learned by the other Party in the course of or in connection with the Contract Agreement (including without limitation such information received during negotiations, location visits and meetings in connection with the Contract Agreement); All such information in whatever form or mode of transmission, which is disclosed by a Party (the "Disclosing Party") to any other Party (the "Recipient") in connection with the Project during its implementation and which has been explicitly marked as "confidential", or when disclosed orally, has been identified as confidential at the time of disclosure and has been confirmed and designated in writing within 15 days from oral disclosure at the latest as confidential information by the Disclosing Party, is "Confidential Information".
Contract	"The Contract" means the agreement signed between the Purchaser and the System Integrator as per the terms and conditions contained in the Works Order / Purchase Order.
Contract Price	"The Contract Price" means the price payable to the System Integrator under the Works Order / Purchase Order for the full and proper performance of its contractual obligations.
Control	means, in relation to any business entity, the power of a person to secure (i) by means of the holding of shares or the possession of voting power in or in relation to that or any other business entity, or



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Terms	Definitions
	(ii) by virtue of any powers conferred by the articles of association or other document regulating that or any other business entity, that the affairs of the first mentioned business entity are conducted in accordance with that person's wishes and in relation to a partnership, means the right to a share of more than one half of the assets, or of more than one half of the income, of the partnership;
Deliverables	means the products, infrastructure and services agreed to be delivered by the System Integratorbidder/System Integrator in pursuance of the agreement as defined more elaborately in the RFP, Implementation and the Maintenance phases and includes all documents related to the user manual, technical manual, design, process and operating manuals, service mechanisms, policies and guidelines , inter alia payment and/or process related etc., source code and all its modifications.
EMD	"EMD" refers to the Earnest Money Deposit to be submitted by the bidder.
Effective Date	means the date on which this Contract is signed and executed by the parties hereto. If this Contract is executed in parts, then the date on which the last of such Contracts is executed shall be construed to be the Effective Date.
LPAI Data	means all proprietary data of the department or its nominated agencies generated out of operations and transactions, documents all taxpayers data and related information including but not restricted to user data which the System Integrator obtains, possesses or processes in the context of providing the Services to the users pursuant to the Contract Agreement;
Force Majeure	means the occurrence of any act, event or cause (other than lack of funds), which is beyond the reasonable control of the affected Party including but not limited to: i. act of God, war, sabotage, terrorism, riot, civil disorder, revolution, national or state emergency, martial law, fire, lightning, flood, cyclone, earthquake, landslide, storm or other adverse or exceptionally severe weather conditions, explosion, power shortage, strike or boycotts for a continuous period of 20 days (not involving employees of the



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Terms	Definitions
	affected Party)), epidemic, quarantine, radiation or radioactive contamination; or ii. Any act of government or other competent authority (including any Court of competent jurisdiction), such as expropriation, restraint, prohibition, intervention, requisition, requirement, direction or embargo by legislation, decree or other legally enforceable order.
Intellectual Property Rights	Means all rights in written designs and copyrights, moral rights, rights in databases and Bespoke Software / Pre-existing work including its upgradation systems and compilation rights (whether or not any of these are registered and including application for registration);
System Integrator	Means the bidder selected for supply, installation, testing & commissioning of the project through the evaluation process of the RFP.
Material Breach	means a breach by either Party (LPAI or System Integrator) of any of its obligations under the Contract Agreement which has or is likely to have an Adverse Effect on the Project which such Party shall have failed to cure;
NIT	“NIT” refers to Notice Inviting Tender.
Non-responsive Bid	“Non-responsive Bid” means a bid, which is not submitted as per the instructions to the bidders or Earnest Money Deposit has not been attached, or the required data has not been provided with the Bid or intentional errors have been committed in the Bid.
OEM	“OEM” refers to the Original Equipment
Parties	Means LPAI and System Integrator for the purposes of the Contract Agreement and “Party” shall be interpreted accordingly;
Performance Guarantee	Means the guarantee provided by a Nationalized/ Scheduled Bank and payable to LPAI. The amount of Performance Security shall be 3% of the Contract Value. This performance security shall be valid till six months after the completion of the project i.e. ---- years from the date of signing of contract or for such time as is required under the Contract Agreement;
Planned System Maintenance	means the unavailability of the system due to maintenance activities wherein prior intimation (at least two working days in advance) of such planned outage shall be given and approval sought from the LPAI as applicable;



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Terms	Definitions
Purchase Order / Supply Order	"The Purchase Order / Supply Order" means the order placed for the supply of items by the Purchaser on the System Integrator signed by the Purchaser including all attachments and appendices thereto and all documents incorporated by reference therein.
Project Implementation	means Project Implementation as per the testing standards and acceptance criteria prescribed by LPAI or its nominated agencies;
Project Implementation Unit (PIU)	shall be constituted by LPAI to monitor the activities, deliverables and progress of the Project. PIU will comprise of the staff members of the LPAI, other officials from concerned department and external experts (as defined in the RFP);
Replacement Implementation Agency	means any third party that LPAI or its nominated agencies appoint to replace System Integrator upon expiry of the Term or termination of the Contract Agreement to undertake the Services or part thereof;
Required Consents	means the consents, waivers, clearances and licenses to use LPAI Intellectual Property Rights, rights and other authorizations as may be required to be obtained for the software and other items that LPAI or their nominated agencies are required to make available to System Integrator pursuant to the Contract Agreement;
Services	means the services delivered to the Stakeholders of LPAI or its nominated agencies, employees of LPAI or its nominated agencies, and to professionals, using the tangible and intangible assets created, procured, installed, managed and operated by the System Integrator including the tools of information and communications technology and includes but is not limited to the list of services
Service Level	means the level of service and other performance criteria which will apply to the Services delivered by the System Integrator;
SLA	means the Performance and Maintenance SLA executed as part of this Master Service Agreement;
Stakeholders	means the students, Franchisee's, Investors, Citizens, LPAI or its nominated agencies, employees and the Departments of Central Government;
Third Party Systems	means systems (or any part thereof) in which the Intellectual Property Rights are not owned by the LPAI or System Integrator and to which System Integrator has been granted a license to use and which are used in the provision of Services;



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Terms	Definitions
	System Integrator
Application	means the software application supplied as a part of scope of work
System Downtime	means the time for which user/s is not able to operate/access the system and its application. However, in calculating downtime, planned/scheduled downtime (for example, system backup, configuration/firmware upgrade) would not be considered;
DLP / CAMC Period	shall be 1-year DLP and 4 years CAMC after completion of DLP.
Work Order	"The Works Order" means the order placed for the supply, installation, testing & commissioning of systems / works by the Purchaser on the System Integrator signed by the Purchaser including all attachments and appendices thereto and all documents incorporated by reference therein.

1.2 Measurements and Arithmetic Conventions

All measurements and calculations shall be in the metric system and calculations done to two decimal places, with the third digit of five or above being rounded up and below five being rounded down except in money calculations where such amounts shall be rounded off to the nearest INR.

1.3 Ambiguities within Agreement

In case of ambiguities or discrepancies within the Contract Agreement, the following principles shall apply:

- As between two Clauses of the Contract Agreement, the provisions of a specific clause relevant to the issue under consideration shall prevail over those in a general clause;
- As between the provisions of the Contract Agreement and the Schedules/Annexures, the Agreement shall prevail, save and except as expressly provided otherwise in the Agreement or the Schedules/Annexures; and
- As between any value written in numerals and that in words, the value in words shall prevail.

1.4 Priority of documents

This document, including its Schedules and Annexures, represents the entire agreement between the Parties as noted in this clause. If in the event of a dispute as to the interpretation or meaning of the Contract Agreement it should be necessary for the Parties to refer to



documents forming part of the bidding process leading to the Contract Agreement, then such documents shall be relied upon and interpreted in the following descending order of priority:

- a. Contract Agreement along with
- b. the SLA agreement,
- c. NDA agreement,
- d. Schedules and Annexures.
- e. the RFP along with subsequently issued corrigendum
- f. Technical and financial proposal submitted by the successful bidder, to the extent they along with subsequently issued clarifications furnished by the System Integrator in response to the RFP, to the extent they are not inconsistent with any terms of the RFP.

For the avoidance of doubt, it is expressly clarified that in the event of a conflict between the Agreement, Annexures / Schedules or the contents of the RFP, the terms of Contract Agreement shall prevail over the Annexures / Schedules and Annexures / Schedules shall prevail over the contents and specifications of the RFP.

2. Conditions Precedent

- i. Provisions to take effect upon fulfilment of Conditions Precedent. Subject to express terms to the contrary, the rights and obligations under this document shall take effect only upon fulfilment of all the Conditions Precedent set out below. However, Purchaser or its nominated agencies may at any time at its sole discretion waive fully or partially any of the Conditions Precedent for the System Integrator.

For the avoidance of doubt, it is expressly clarified that the obligations of the Parties (or its nominated agencies) under this document shall commence from the fulfilment of the Conditions Precedent as set forth below.

- ii. Conditions Precedent of the System Integrator.
 - a) System Integrator shall be required to provide a Performance Security/Guarantee and other guarantees within 30 (Thirty) days of the receipt of notification of award from the purchaser.
- iii. Conditions Precedent of the System Integrator. System Integrator shall be required to fulfil the Conditions Precedent in which is as following
- iv. Conditions Precedent of the Authority/Purchaser

The Authority/Purchaser shall be required to fulfil the Conditions Precedents which are as follows:

- a) Necessary clearances associated with the execution of the project, unless specified to be performed by the System Integrator.
- b) Approval of the Project by a Competent Authority, etc.



3. Obligations under SLA

1. The SLA shall be a separate contract in respect of this document as per Schedule VI and shall be entered into concurrently with the Contract Agreement between LPAI and System Integrator;
2. In relation to any future SLA entered into between the Parties; each of the Parties shall observe and perform the obligations set out herein.

3.1 Change of Control

- a. In the event of a change of control of the System Integrator during the Term, the System Integrator shall promptly notify LPAI and/or its nominated agencies of the same in the format set out as Schedule I –format for CCN of this document.
- b. In the event that the net worth of the surviving entity is less than that of System Integrator prior to the change of control, the LPAI or its nominated agencies may within 30 days of becoming aware of such change in control, require a replacement of existing Performance Guarantee furnished by the System Integrator from a guarantor acceptable to the LPAI or its nominated agencies (which shall not be System Integrator or any of its associated entities).
- c. If such a guarantee is not furnished within 30 days of LPAI or its nominated agencies requiring the replacement, the LPAI may exercise its right to terminate the SLA and/ or the Contract Agreement within a further 30 days by written notice, to become effective as specified in such notice.
- d. Pursuant to termination, the effects of termination as set out in Clause 13 of this document shall follow.

For the avoidance of doubt, it is expressly clarified that the internal reorganization of the System Integrator shall not be deemed an event of a change of control for purposes of this clause unless the surviving entity is of less net worth than the predecessor entity.

3.2 Final Testing and certifications

The Project shall be governed by the mechanism of final acceptance testing and certification to be put into place by the LPAI and System Integrator as under:

- a. Final testing and certification criteria will lay down a set of guidelines following internationally accepted norms and standards for testing and certification for all aspects of project development and implementation covering software, hardware and networking including the processes relating to the design of solution architecture, design of systems and sub- systems, coding, testing, business process description, documentation, version control, change management, security, service oriented architecture, performance in relation to compliance with SLA metrics, interoperability, scalability, availability and compliance with all the technical and functional requirements of the RFP and this document;



- b. Final testing and certification criteria will be finalized from the development stage to ensure that the guidelines are being followed and to avoid large scale modifications pursuant to testing done after the application is fully developed.
- c. Final testing and certification criteria will consider conducting specific tests on the software, hardware, networking, security and all other aspects;
- d. Final testing and certification criteria will establish appropriate processes for notifying the System Integrator of any deviations from the norms, standards or guidelines at the earliest instance after taking cognizance of the same to enable the System Integrator to take corrective action; etc.

3.3 The Parties shall each ensure that the range of the Services under the SLA shall not be varied, reduced or increased except with the prior written agreement between the LPAI and System Integrator in accordance with the Change Control Schedule set out in Schedule I of this document. Save for the express terms of the Terms of Payment Schedule set out as Schedule V of this document, LPAI or its nominated agencies and its users may purchase any particular category of Services that may become necessary as per the Change Control Schedule set out in Schedule I of this document, without the need to go for a separate procurement process.

4. Representations and Warranties

4.1 Representations and warranties of the System Integrator

The System Integrator represents and warrants to the LPAI or its nominated agencies that:

- i. It is duly organized and validly existing under the laws of India and has full power and authority to execute and perform its obligations under this document and other agreements and to carry out the transactions contemplated hereby.
- ii. It is a competent provider of a variety of information technology and business process management services.
- iii. It has taken all necessary corporate and other actions under laws applicable to its business to authorize the execution and delivery of the Contract Agreement and to validly exercise its rights and perform its obligations under the Contract Agreement.
- iv. From the Effective Date, it will have the financial standing and capacity to undertake the Project in accordance with the terms of the Contract Agreement.
- v. In providing the Services, it shall use reasonable endeavours not to cause any unnecessary disruption to LPAI business operations
- vi. This document has been duly executed by it and constitutes a legal, valid and binding obligation, enforceable against it in accordance with the terms hereof, and its obligations under the Contract Agreement shall be legally valid, binding and enforceable against it in accordance with the terms hereof;
- vii. The information furnished in the System Integrator's response to the RFP and any subsequent clarification pertaining to the evaluation process, furnished on or before the date of the



Contract Agreement is to the best of its knowledge and belief true and accurate in all material respects as at the date of the Contract Agreement;

- viii. The execution, delivery and performance of the Contract Agreement shall not conflict with, result in the breach of, constitute a default by any of the terms of its Memorandum and Articles of Association or any Applicable Laws or any covenant, contract, agreement, arrangement, understanding, decree or order to which it is a party or by which it or any of its properties or assets is bound or affected; there are no material actions, suits, proceedings, or investigations pending or, to its knowledge, threatened against it at law or in equity before any court or before any other judicial, quasi-judicial or other authority, the outcome of which may result in the breach of the Contract Agreement or which individually or in the aggregate may result in any material impairment of its ability to perform any of its material obligations under the Contract Agreement;
 - ix. It has no knowledge of any violation or default with respect to any order, writ, injunction or decree of any court or any legally binding order of any Government Instrumentality which may result in any Adverse Effect on its ability to perform its obligations under the Contract Agreement and no fact or circumstance exists which may give rise to such proceedings that would adversely affect the performance of its obligations under the Contract Agreement;
 - x. It has complied with Applicable Laws in all material respects and has not been subject to any fines, penalties, injunctive relief or any other civil or criminal liabilities which in the aggregate have or may have an Adverse Effect on its ability to perform its obligations under the Contract Agreement;
 - xi. No representation or warranty by it contained herein or in any other document furnished by it to LPAI or its nominated agencies in relation to the Required Consents contains or shall contain any untrue or misleading statement of material fact or omits or shall omit to state a material fact necessary to make such representation or warranty not misleading; and
 - xii. No sums, in cash or kind, have been paid or shall be paid, by it or on its behalf, to any person by way of fees, commission or otherwise for entering into the Contract Agreement or for influencing or attempting to influence any officer or employee of LPAI or its nominated agencies in connection therewith.
1. Representations and warranties of the LPAI or its nominated agencies LPAI or its nominated agencies represent and warrant to the System Integrator that:
- i. It has full power and authority to execute, deliver and perform its obligations under the Contract Agreement and to carry out the transactions contemplated herein and that it has taken all actions necessary to execute the Contract Agreement, exercise its rights and perform its obligations, under the Contract Agreement and carry out the transactions contemplated hereby;
 - ii. It has taken all necessary actions under Applicable Laws to authorize the execution, delivery and performance of the Contract Agreement and to validly exercise its rights and perform its obligations under the Contract Agreement;



- iii. It has the financial standing and capacity to perform its obligations under the Agreement;
- iv. It is subject to the laws of India, and hereby expressly and irrevocably waives any immunity in any jurisdiction in respect of the Contract Agreement or matters arising thereunder including any obligation, liability or responsibility hereunder;
- v. This document has been duly executed by it and constitutes a legal, valid and binding obligation enforceable against it in accordance with the terms hereof and its obligations under the Contract Agreement shall be legally valid, binding and enforceable against it in accordance with the terms thereof;
- vi. The execution, delivery and performance of the Contract Agreement shall not conflict with, result in the breach of, constitute a default under, or accelerate performance required by any of the Applicable Laws or any covenant, contract, agreement, arrangement, understanding, decree, or order to which it is a party or by which it or any of its properties or assets is bound or affected;
- vii. There are no actions, suits or proceedings pending or, to its knowledge, threatened against it at law or in equity before any court or before any other judicial, quasi-judicial or other authority, the outcome of which may result in the default or breach of the Contract Agreement or which individually or in the aggregate may result in any material impairment of its ability to perform its material (including any payment) obligations under the Contract Agreement;
- viii. It has no knowledge of any violation or default with respect to any order, writ, injunction or any decree of any court or any legally binding order of any Government Instrumentality which may result in any Adverse Effect on the LPAI or its nominated agencies ability to perform its obligations under the Contract Agreement and no fact or circumstance exists which may give rise to such proceedings that would adversely affect the performance of its obligations under the Contract Agreement;
- ix. It has complied with Applicable Laws in all material respects;
- x. All information provided by it in the RFP in connection with the Project is, to the best of its knowledge and belief, true and accurate in all material respects; and
- xi. Upon the System Integrator performing the covenants herein, it shall not at any time during the term hereof, interfere with peaceful exercise of the rights and discharge of the obligations by the System Integrator, in accordance with the Contract Agreement.

5. Obligations of LPAI

Without prejudice to any other undertakings or obligations of the LPAI or its nominated agencies shall perform the following:

- i. Provide any support through personnel to test the system during the Term;
- ii. Provide any support through personnel and/or test data during development, rollout, steady state operation, as well as, for any changes/enhancements in the system whenever required due to scope change that may arise due to business, delivery or statutory/regulatory reasons;



- iii. Facilitate required permission to System Integrator for implementation of project System Integrator.

6. Obligations of the System Integrator

1. It shall provide to the LPAI or its nominated agencies, the work as set out in Volume 2: Scope of work of the RFP.
2. It shall perform the Services as set out in Volume 2: Scope of work the RFP and in a good and workman like manner commensurate with industry and technical standards which are generally in effect for international projects and innovations pursuant thereon similar to those contemplated by the Contract Agreement, and so as to comply with the applicable Service Levels set out with this document.
3. It shall ensure that the Services are being provided as per the Project Timelines set out in the RFP.

7. Approvals and Required Consents

1. The Parties shall cooperate to procure, maintain, and observe all relevant and regulatory and governmental licenses, clearances and applicable approvals (hereinafter the “Required Consents”) necessary for the System Integrator to provide the Services. The costs of such Approvals shall be borne by the Party normally responsible for such costs according to local custom and practice in the locations where the Services are to be provided.
2. The LPAI or its nominated agencies shall use reasonable endeavours to assist System Integrator to obtain the Required Consents. In the event that any Required Consent is not obtained, the System Integrator and the LPAI or its nominated agencies will co-operate with each other in achieving a reasonable alternative arrangement as soon as reasonably practicable for the LPAI or its nominated agencies to continue to process its work with as minimal interruption to its business operations as is commercially reasonable until such Required Consent is obtained, provided that the System Integrator shall not be relieved of its obligations to provide the Services and to achieve the Service Levels until the Required Consents are obtained if and to the extent that the System Integrator’s obligations are not dependent upon such Required Consents.

8. Use of assets by the System Integrator

During the Term the System Integrator shall:

- i. Take all reasonable and proper care of the entire hardware and software, network or any other information technology infrastructure components used for the Project and other facilities leased / owned / operated by the System Integrator exclusively in terms of ensuring their usability for the delivery of the Services as per the Contract Agreement (hereinafter the “Assets”) in proportion to their use and control of such Assets; and



- ii. Keep all the tangible assets in as good and serviceable condition (reasonable wear and tear excepted) as at the date the System Integrator takes control of and/or first uses the Assets and during the entire Term of the Agreement.
- iii. Ensure that any instructions or manuals supplied by the manufacturer of the Assets for use of the Assets, and which are provided to the System Integrator will be followed by the System Integrator and any person who will be responsible for the use of the Assets;
- iv. Take such steps as may be properly recommended by the manufacturer of the Assets and notified to the System Integrator or as may, in the reasonable opinion of the System Integrator, be necessary to use the Assets in a safe manner;
- v. Ensure that the Assets that are under the control of the System Integrator, are kept suitably housed and in conformity with Applicable Law;
- vi. Procure permission from the LPAI or its nominated agencies and any persons duly authorized by them to enter any land or premises on which the Assets are for the time being sited so as to inspect the same, subject to any reasonable third-party requirements;
- vii. Not knowingly or negligently use or permit any of the Assets to be used in contravention of any statutory provisions or regulation or in any way contrary to Applicable Law.

9. Access to the LPAI or Its Nominated Agencies Locations

For so long as the System Integrator provides services to the LPAI or its nominated agencies location, as the case may be, on a non-permanent basis and to the extent necessary, the LPAI as the case may be or its nominated agencies shall, subject to compliance by the System Integrator with any safety and security guidelines which may be provided by the LPAI as the case may be or its nominated agencies and notified to the System Integrator in writing, provide the System Integrator with:

- i. Reasonable access, in the same manner granted to the LPAI or its nominated agencies employees, to the LPAI as the case may be location twenty-four hours a day, seven days a week;
- ii. Reasonable workspace, access to office equipment as mutually agreed and other related support services in such location and at such other the LPAI as the case may be location, if any, as may be reasonably necessary for the System Integrator to perform its obligations hereunder and under the SLA.

10. Management Phase

10.1 Governance

The review and management process of the Contract Agreement shall be carried out in accordance with the Governance Schedule set out in Schedule IV of this document and shall cover all the management aspects of the Project.



10.2 Use of services

- i. The LPAI as the case may be or its nominated agencies, will undertake and use the Services in accordance with any instructions or procedures as per the acceptance criteria as set out in out in the SLA or the Contract Agreement or any agreement that may be entered into between the Parties from time to time;
- ii. The LPAI as the case may be or its nominated agencies shall be responsible for the operation and use of the Deliverables resulting from the Services.

10.3 Changes

- i. Unless expressly dealt with elsewhere in this document, any changes under or to this document or under or to the SLA shall be dealt with in accordance with the Change Control Schedule set out in Schedule I of this document.

10.4 Security and Safety

- i. Each Party to the SLA/Agreement shall also comply with LPAI or the Government of India, and the respective State's security standards and policies in force from time to time at each location of which LPAI or its nominated agencies make the System Integrator aware in writing insofar as the same apply to the provision of the Services.
- ii. The Parties to the SLA/Agreement shall use reasonable endeavours to report forthwith in writing to each other all identified attempts (whether successful or not) by unauthorized persons (including unauthorized persons who are employees of any Party) either to gain access to or interfere with the LPAI as the case may be or any of their nominees data, facilities or Confidential Information.
- iii. The System Integrator shall upon reasonable request by the LPAI as the case may be or their nominee(s) participate in regular meetings when safety and information technology security matters are reviewed.
- iv. As per the provisions of the SLA or the Contract Agreement, the System Integrator shall promptly report in writing to the LPAI or its nominated agencies, any act or omission which they are aware that could have an adverse effect on the proper conduct of safety and information technology security at the facilities of LPAI as the case may be.

10.5 Cooperation

Except as otherwise provided elsewhere in this document or the SLA, each Party ("Providing Party") to this document or to the SLA undertakes promptly to provide the other Party ("Receiving Party") with all such information and co-operation which the Receiving Party reasonably requests, provided that such information and co-operation:

- i. does not require material expenditure by the Providing Party to provide the same;
- ii. is reasonably required by the Receiving Party in order for it to comply with its obligations under this document or the SLA;
- iii. cannot be construed to be Confidential Information; and



iv. is capable of being provided by the Providing Party.

Further, each Party agrees to co-operate with the System Integrators and subSystem Integrators of the other Party as reasonably requested in order to accomplish the purposes of the Contract Agreement.

11. Financial Matters

11.1 Terms of Payment

- i. In consideration of the Services and subject to the provisions of the Contract Agreement and of the SLA, the LPAI shall pay the System Integrator for the Services rendered in pursuance of the Contract Agreement, in accordance with the Terms of Payment Schedule set out as Schedule V of this document.
- ii. Payments shall be subject to the application of liquidated damages (for period prior to “Go Live”) or SLA penalties and its adjustments/corrections (for post “Go-Live”) as may be provided for in the Agreement and the SLA from the relevant milestone(s).
- iii. Save and except as otherwise provided for herein or as agreed between the Parties in writing, the LPAI shall not be required to make any payments in respect of the Services (or, without limitation to the foregoing, in respect of the System Integrator performance of any obligations under the Contract Agreement or the SLA) other than those covered in Schedule V of this document. For the avoidance of doubt, it is expressly clarified that the payments shall be deemed to include all ancillary and incidental costs and charges arising in the course of delivery of the Services including consultancy charges, infrastructure costs, project costs, implementation and management charges and all other related costs including taxes which are addressed in this clause.

11.2 Invoicing and Settlement

- i. Subject to the specific terms of the Agreement and the SLA, the System Integrator shall submit its invoices in accordance with the following principles:
 - a) The LPAI shall be invoiced by the System Integrator for the Services. Generally, and unless otherwise agreed in writing between the Parties or expressly set out in the SLA, the System Integrator shall raise an invoice as per Schedule V of this document; and
 - b) Any invoice presented in accordance with this clause shall be in a form agreed with the LPAI.
- ii. The System Integrator alone shall invoice all payments after receiving due approval of completion of payment milestone from the competent authority. Such invoices shall be accurate with all adjustments or changes in the terms of payment as stated in Schedule V of this document. The System Integrator shall waive any charge for a Service that is not invoiced within six months after the end of the month in which the change relating to such Service is (a) authorized or (b) incurred, whichever is later.



- iii. The LPAI shall be entitled to delay or withhold payment of any invoice or part of it delivered by the System Integrator under Schedule V of this document where the LPAI disputes/withholds such invoice or part of it provided that such dispute is Bonafede. The withheld amount shall be limited to that which is in dispute. The disputed / withheld amount shall be settled in accordance with the escalation procedure as set out in Schedule V of this document. Any exercise by the LPAI under this clause shall not entitle the System Integrator to delay or withhold provision of the Services.
- iv. The System Integrator shall be solely responsible to make payment to its subSystem Integrators.

11.3 Tax

- i. The LPAI or its nominated agencies shall be responsible for withholding taxes from the amounts due and payable to the System Integrator wherever applicable. The System Integrator shall pay for all other taxes in connection with the Contract Agreement, SLA, scope of work and any other engagement required to be undertaken as a part of the Contract Agreement, including, but not limited to, property, sales, use, excise, value-added, goods and services, consumption and other similar taxes or duties.
- ii. The LPAI or its nominated agencies shall provide System Integrator with the original tax receipt of any withholding taxes paid by LPAI or its nominated agencies on payments under the Contract Agreement. The System Integrator agrees to reimburse and hold the LPAI or its nominated agencies harmless from any deficiency including penalties and interest relating to taxes that are its responsibility under this paragraph. For purposes of the Contract Agreement, taxes shall include taxes incurred on transactions between and among the LPAI or its nominated agencies, the System Integrator and third-party subSystem Integrators.
- iii. If, after the date of the Contract Agreement, there is any change of rate of levy under the existing applicable laws of India with respect to taxes and duties, which are directly payable by the LPAI for providing the goods and services i.e. service tax or any such other applicable tax from time to time, which increase or decreases the cost incurred by the System Integrator in performing the Services, then the remuneration and reimbursable expense otherwise payable to the System Integrator under the Contract Agreement shall be increased or decreased accordingly by correspondence between the Parties hereto, and corresponding adjustments shall be made to the ceiling amounts specified in Schedule V. However, in case of any new or fresh tax or levy imposed after submission of the proposal the System Integrator shall be entitled to reimbursement on submission of proof of payment of such tax or levy.
- iv. The Parties shall cooperate to enable each Party to accurately determine its own tax liability and to minimize such liability to the extent legally permissible. In connection therewith, the Parties shall provide each other with the following:
 - a) any resale certificates;



- b) any relevant information regarding out-of-state or use of materials, equipment or services; and
- c) any direct pay permits, exemption certificates or information reasonably requested by the other Party.
- v. Any foreign entity participating in the bid would be liable to comply with the applicable laws under taxation, with LPAI not being liable on any claims within or outside India.

12. Responsibility of Bidder

It is the sole responsibility of the Bidder to:

- i. Examine, understand and conduct its own investigations and analysis; examine the accuracy, reliability and completeness of the information provided in this RFP and all the annexures/appendices and to verify their completeness of all other matters that might affect the selected Bidder/Vendor's performance under the terms of this RFP/definitive agreement and all the annexures/appendices including all risks, costs, liabilities and contingencies associated with this RFP, the Scope of Work, Payment terms, etc.,
- ii. The Bidder shall make all relevant investigations in relation to the performance of its obligations and in the event that, there are any page or document missing or erroneously inserted in the documents supplied, or there is any concern implied, or related to, but not specifically mentioned, the Bidder shall promptly inform Land Ports Authority of India to have such discrepancy rectified well before the RFP Due Date.
- iii. The Bidder shall at its own costs be responsible for obtaining and maintaining permits, and also for complying with all the laws, Orders, regulations, or other instructions issued by any statutory or regulatory authorities in India.

13. Termination

13.1 For Material Breach

- i. In the event that either Party believes that the other Party is in Material Breach of its Contract Agreement for the RFP for its obligations under the Contract Agreement, such aggrieved Party may terminate the Contract Agreement upon giving a one month's notice for curing the Material Breach to the other Party. In case the Material Breach continues, after the notice period, the Land Ports Authority of India or Technology System Integrator, as the case may be, will have the option to terminate the Agreement. Any notice served pursuant to this clause shall give reasonable details of the Material Breach, which could include the following events and the termination will become effective:
 - a) If the System Integrator is not able to deliver the services as per the requirements mentioned under Liquidated Damages and SLAs in this RFP which translates into Material Breach, then the Land Ports Authority of India may serve 30 days written notice for curing this Material Breach. In case the Material Breach continues, after the expiry



of such notice period, the Land Ports Authority of India will have the option to terminate the Contract Agreement. Further, the Land Ports Authority of India may offer a reasonable opportunity to the System Integrator to explain the circumstances leading to such a breach.

- ii. The Land Ports Authority of India may by giving a one month's written notice, terminate the Contract Agreement if a change of control of the System Integrator has taken place.
- iii. In the event that System Integrator undergoes such a change of control, Land Ports Authority of India may, as an alternative to termination, require a full Performance Guarantee for the obligations of System Integrator by a guarantor acceptable to Land Ports Authority of India or its nominated agencies. If such a guarantee is not furnished within 30 days of Land Ports Authority of India's demand, the Land Ports Authority of India may exercise its right to terminate the Contract Agreement in accordance with this Clause by giving 15 days further written notice to the System Integrator.
- iv. The termination provisions set out in this Clause shall apply mutatis mutandis to the SLA

13.2 Termination for Convenience

- i. The Land Ports Authority of India may at any time terminate the Contract for any reason by giving the System Integrator a upon giving one month notice of termination that refers to this clause.
- ii. Upon receipt of the notice of termination under this clause, the System Integrator shall either as soon as reasonably practical or upon the date specified in the notice of termination:
 - a) Cease all further work, except for such work as the Land Ports Authority of India may specify in the notice of termination for the sole purpose of protecting that part of the System already executed, or any work required to leave the site in a clean and safe condition;
 - b) Terminate all subcontracts, except those to be assigned to the Land Ports Authority of India pursuant to Clause (d) below of 13.2(ii);
 - c) Remove all System Integrator's Equipment from the site, repatriate the System Integrator's and System Integrators' personnel from the site, remove from the site any wreckage, rubbish, and debris of any kind;
 - d) In addition, the System Integrator shall:
 - (i) deliver to the Land Ports Authority of India the parts of the System executed by the System Integrator up to the date of termination;
 - (ii) to the extent legally possible, assign to the Land Ports Authority of India all right, title, and benefit of the System Integrator to the System, or Subsystem, as at the date of termination, and, as may be required by the Land Ports Authority of India
 - (iii) deliver to the Land Ports Authority of India all non-proprietary drawings, specifications, and other documents prepared by the System Integrator as of the date of termination in connection with the System.



13.3 Termination for Default & Risk Purchase

1. LPAI may, without prejudice to any other remedy for breach of contract, by written notice of default, sent to the System Integrator, terminate this Contract in whole or in part in any of the following events.
2. If the System Integrator fails to deliver any or all of the services within the time period(s) specified in the Contract or any extension thereof granted by LPAI.
3. If the System Integrator fails to perform any other obligation(s) under Contract.
4. If the System Integrator, in either of the above circumstances, does not remedy his failure within a period of 30 days (or such longer period as LPAI may authorize in writing) after receipt of the default notice from LPAI.
5. As a penalty to the System Integrator, LPAI shall encash the Contract Performance Bank Guarantee. LPAI in such case shall pay for the assessed value of the executed work that can be used. No payment shall be made for the efforts put in by the System Integrator in case the same are of no value to LPAI. The balance unfinished work of the project will be got done by fresh tendering on System Integrator's risk and that extra expenditure will be recovered.

13.4 Effects of Termination

- i. In the event that Land Ports Authority of India terminates the Contract Agreement pursuant to failure on the part of the System Integrator to comply with the conditions as contained in this Clause and depending on the event of default, Performance Guarantee furnished by System Integrator may be forfeited.
- ii. Upon termination of the Contract Agreement, the Parties will comply with the Exit Management Schedule set out as Schedule III of this document.
- iii. In the event that Land Ports Authority of India or the System Integrator terminates the Contract Agreement, the compensation will be decided in accordance with the Terms of Payment Schedule set out as Schedule V of this document.
- iv. Land Ports Authority of India agrees to pay System Integrator for:
 - a) all charges for Services System Integrator provide and any Deliverables and/or system (or part thereof) System Integrator delivers through termination and any charges at the tendered rate, for extension period beyond termination as decided by the Nodal Agency as per Schedule 2
 - b) reimbursable expenses System Integrator incurs through termination.
- v. If Land Ports Authority of India terminates without cause, Land Ports Authority of India also agrees to pay any applicable adjustment expenses to System Integrator incurs as a result of such termination (which System Integrator will take reasonable steps to mitigate).
- vi. In the event of termination of the Contract under 13.2, the Land Ports Authority of India shall pay to the System Integrator the following amounts:



- a) The Contract Price, properly attributable to the parts of the System executed by the System Integrator as of the date of termination;
 - b) The costs reasonably incurred by the System Integrator in the removal of the System Integrator's Equipment from the site and in the repatriation of the System Integrator's personnel;
 - c) Costs incurred by the System Integrator in protecting the System and leaving the site in a clean and safe condition pursuant to Clause 13.2; and
 - d) the cost of satisfying all other obligations, commitments, and claims that the System Integrator may in good faith have undertaken with third parties in connection with the Contract and that are not covered by Clauses 13.3 (iv) above.
 - e) If deductions on account of penalties & liquidated damages exceeds more than 10% of the total contract price.
- vii. LPAI shall issue a written notice period of 30 days to the System Integrator prior to date of termination, and that shall be binding on the System Integrator.

13.5 Termination of this Agreement due to bankruptcy of System Integrator

The Land Ports Authority of India may serve written notice on System Integrator at any time to terminate the Contract Agreement with immediate effect in the event that the System Integrator reporting an apprehension of bankruptcy to the Land Ports Authority of India or its nominated agencies.

14. Indemnification & Limitation of Liability

1. Subject to Clause 14.4 below, System Integrator (the "Indemnifying Party") undertakes to indemnify, hold harmless the Land Ports Authority of India (the "Indemnified Party") from and against all claims, liabilities, losses, expenses (including reasonable attorneys' fees), fines, penalties, taxes or damages (Collectively "Loss") on account of bodily injury, death or damage to tangible personal property arising in favour of any person, corporation or other entity (including the Indemnified Party) attributable to the Indemnifying Party's negligence or wilful default in performance or non-performance under the Contract Agreement.
2. If the Indemnified Party promptly notifies Indemnifying Party in writing of a third-party claim against Indemnified Party that any Service provided by the Indemnifying Party infringes a copyright, trade secret or patents incorporated in India of any third party, Indemnifying Party will defend such claim at its expense and will pay any costs or damages, that may be finally awarded against Indemnified Party
3. Indemnifying Party will not indemnify the Indemnified Party, however, if the claim of infringement is caused by:
 - i. Indemnified Party's misuse or modification of the Service;
 - ii. Indemnified Party's failure to use corrections or enhancements made available by the Indemnifying Party;



- iii. Indemnified Party's use of the Service in combination with any product or information not owned or developed by Indemnifying Party;

However, if any service, information, direction, specification, or materials provided by Indemnified Party or any third party contracted to it, is or likely to be held to be infringing, Indemnifying Party shall at its expense and option either.

- i. Procure the right for Indemnified Party to continue using it
- ii. Replace it with a non-infringing equivalent
- iii. Modify it to make it non-infringing.

The foregoing remedies constitute Indemnified Party's sole and exclusive remedies and Indemnifying Party's entire liability with respect to infringement

- 4. The indemnities set out in Clause 14 shall be subject to the following conditions:
 - i. The Indemnified Party as promptly as practicable informs the Indemnifying Party in writing of the claim or proceedings and provides all relevant evidence, documentary or otherwise;
 - ii. The Indemnified Party shall, at the cost of the Indemnifying Party, give the Indemnifying Party all reasonable assistance in the Defence of such claim including reasonable access to all relevant information, documentation, and personnel provided that the Indemnified Party may, at its sole cost and expense, reasonably participate, through its attorneys or otherwise, in such Defence;
 - iii. If the Indemnifying Party does not assume full control over the Defence of a claim as provided in this Article, the Indemnifying Party may participate in such Defence at its sole cost and expense, and the Indemnified Party will have the right to defend the claim in such manner as it may deem appropriate, and the cost and expense of the Indemnified Party will be included in Losses;
 - iv. The Indemnified Party shall not prejudice, pay or accept any proceedings or claim, or compromise any proceedings or claim, without the written consent of the Indemnifying Party;
 - v. All settlements of claims subject to indemnification under this Clause will
 - a) be entered into only with the consent of the Indemnified Party, which consent will not be unreasonably withheld and include an unconditional release to the Indemnified Party from the claimant or plaintiff for all liability in respect of such claim; and
 - b) include any appropriate confidentiality agreement prohibiting disclosure of the terms of such settlement;
 - vi. The Indemnified Party shall account to the Indemnifying Party for all awards, settlements, damages and costs (if any) finally awarded in favour of the Indemnified Party which are to be paid to it in connection with any such claim or proceedings;



- vii. The Indemnified Party shall take steps that the Indemnifying Party may reasonably require to mitigate or reduce its loss as a result of such a claim or proceedings;
- viii. In the event that the Indemnifying Party is obligated to indemnify an Indemnified Party pursuant to this Article, the Indemnifying Party will, upon payment of such indemnity in full, be subrogated to all rights and defences of the Indemnified Party with respect to the claims to which such indemnification relates; and
- ix. if a Party makes a claim under the indemnity set out under Clause 14.1 above in respect of any particular Loss or Losses, then that Party shall not be entitled to make any further claim in respect of that Loss or Losses (including any claim for damages)
- 5. The liability of either Party (whether in contract, tort, negligence, strict liability in tort, by statute or otherwise) for any claim in any manner related to the Contract Agreement, including the work, deliverables or Services covered by this document, shall be the payment of direct damages only which shall in no event exceed one time the total contract value payable under the Contract Agreement. The liability cap given under this Clause shall not be applicable to the indemnification obligations set out in Clause 14 and breach of Clause 10.4 and 17.
- 6. In no event shall either party be liable for any consequential, incidental, indirect, special or punitive damage, loss or expenses (including but not limited to business interruption, lost business, lost profits, or lost savings) nor for any third party claims (other than those set-forth in Clause 14.1) even if it has been advised of their possible existence.
- 7. The allocations of liability in this Clause 14 represent the agreed and bargained-for understanding of the parties and compensation for the Services reflects such allocations. Each Party has a duty to mitigate the damages and any amounts payable under an indemnity that would otherwise be recoverable from the other Party pursuant to the Contract Agreement by taking appropriate and commercially reasonable actions to reduce or limit the amount of such damages or amounts.

15. Force Majeure

15.1 Definitions of Force Majeure

“Force Majeure” shall mean any event beyond the reasonable control of the Land Ports Authority of India or of the System Integrator, as the case may be, and which is unavoidable notwithstanding the reasonable care of the party affected.

15.2 Force Majeure Events

A Force Majeure shall include, without limitation, the following:

- a) war, hostilities, or warlike operations (whether a state of war be declared or not), invasion, act of foreign enemy, and civil war;
- b) strike, sabotage, lockout, embargo, import restriction, port congestion, lack of usual means of public transportation and communication, industrial dispute, shipwreck, shortage or restriction of power supply, epidemics, pandemics, quarantine, and plague;



- c) earthquake, landslide, volcanic activity, fire, flood or inundation, tidal wave, typhoon or cyclone, hurricane, storm, lightning, or other inclement weather condition, nuclear and pressure waves, or other natural or physical disaster;
- i. If either party is prevented, hindered, or delayed from or in performing any of its obligations under the Contract by an event of Force Majeure, then it shall notify the other in writing of the occurrence of such event and the circumstances of the event of Force Majeure within fourteen (14) days after the occurrence of such event.
- ii. The party who has given such notice shall be excused from the performance or punctual performance of its obligations under the Contract for so long as the relevant event of Force Majeure continues and to the extent that such party's performance is prevented, hindered, or delayed. The time for achieving Final Acceptance shall be extended.
- iii. The party or parties affected by the event of Force Majeure shall use reasonable efforts to mitigate the effect of the event of Force Majeure upon its or their performance of the Contract and to fulfil its or their obligations under the Contract, but without prejudice to either party's right to terminate the Contract under Clause 15.
- iv. No delay or non-performance by either party to this Contract caused by the occurrence of any event of Force Majeure shall:
- a) constitute a default or breach of the Contract;
 - b) give rise to any claim for damages or additional cost or expense occasioned by the delay or non-performance.
- v. If, and to the extent that, such delay or non-performance is caused by the occurrence of an event of Force Majeure.
- vi. If the performance of the Contract is substantially prevented, hindered, or delayed for a single period of more than sixty (60) days on account of one or more events of Force Majeure during the time period covered by the Contract, the parties will attempt to develop a mutually satisfactory solution, failing which, either party may terminate the Contract by giving a notice to the other.
- vii. In the event of termination pursuant to Clause 15, the rights and obligations of the Land Ports Authority of India and the Implementing agency shall be as specified in the clause titled Termination.
- viii. Notwithstanding Clause 15.2.(iv), above, Force Majeure shall not apply to any obligation of the Land Ports Authority of India to make payments to the System Integrator under this Contract.
- ix. For the avoidance of doubt, it is expressly clarified that the failure on the part of the System Integrator under the Contract Agreement or the SLA to implement any disaster contingency planning and back-up and other data safeguards in accordance with the terms of the Contract Agreement or the SLA against natural disaster, fire, sabotage or other similar occurrence shall not be deemed to be a Force Majeure event. For the avoidance of doubt, it is further clarified that any negligence in performance of Services which directly causes



any breach of security like hacking aren't the forces of nature and hence wouldn't be qualified under the definition of "Force Majeure". In so far as applicable to the performance of Services, System Integrator will be solely responsible to complete the risk assessment and ensure implementation of adequate security hygiene, best practices, processes and technology to prevent any breach of security and any resulting liability therefrom (wherever applicable).

16. Excused Performance

If either Party is wholly or partially unable to perform its obligations hereunder because of a Force Majeure event, that Party will be excused from whatever performance is affected by the Force Majeure event, to the extent so affected, provided that the affected Party gives the other Party written notice of the occurrence of the Force Majeure Event as soon as practicable and in any event within seven (14) days after the occurrence of the Force Majeure event, giving full particulars of such occurrence, including an estimation of its expected duration, impact on the performance of such Party's obligations hereunder.

Provided that:

- a) suspension of performance shall be of no greater scope and of no longer duration than is reasonably required by reason of the Force Majeure event; and
- b) the affected Party shall exercise all reasonable efforts to mitigate or limit damages to the other Party.
- c) the financial inability to make payments under the Contract Agreement shall not be a Force Majeure event.

17. Confidentiality

- 1. The Land Ports Authority of India or its nominated agencies shall allow the System Integrator to review and utilize highly confidential public records and the System Integrator shall maintain the highest level of secrecy, confidentiality and privacy with regard thereto.
- 2. Additionally, the System Integrator shall keep confidential all the details and information with regard to the Project, including systems, facilities, operations, management and maintenance of the systems/facilities.
- 3. The Land Ports Authority of India or its nominated agencies shall retain all rights to prevent, stop and if required take the necessary punitive action against the System Integrator regarding any forbidden disclosure.
- 4. The System Integrator shall ensure that all its employees, agents and sub-System Integrators involved in the project, execute individual non-disclosure agreements, which have been duly approved by the Land Ports Authority of India with respect to this Project. The implementing agency may submit a declaration that it has obtained the NDA from its employees. However, if the project is critical in nature, System



Integrator may get NDAs signed from every resource involved in the project and submit it to Land Ports Authority of India (Optional).

5. For the avoidance of doubt, it is expressly clarified that the aforesaid provisions shall not apply to the following information:
 - i. information already available in the public domain;
 - ii. information which has been developed independently by the System Integrator;
 - iii. information which has been received from a third party who had the right to disclose the aforesaid information;
 - iv. Information which has been disclosed to the public pursuant to a court order.
6. To the extent the System Integrator shares its confidential or proprietary information with the Land Ports Authority of India for effective performance of the Services, the provisions of the Clause 17.1 to 17.3 shall apply mutatis mutandis on the Land Ports Authority of India or its nominated agencies.
7. Any handover of the confidential information needs to be maintained in a list, both by Land Ports Authority of India & System Integrator, containing at the very minimum, the name of provider, recipient, date of generation of the data, date of handing over of data, mode of information, purpose and signatures of both parties.
8. Notwithstanding anything to the contrary mentioned hereinabove, the System Integrator shall have the right to share the Letter of Intent / work order provided to it by the Land Ports Authority of India in relation to the Contract Agreement, with its prospective Land Ports Authority of India's solely for the purpose of and with the intent to evidence and support its work experience under the Contract Agreement.

18. Audit, Access, and Reporting

The System Integrator shall allow access to the Land Ports Authority of India or its nominated agencies to all information which is in the possession or control of the System Integrator and which relates to the provision of the Services as set out in the Audit, Access and Reporting Schedule and which is reasonably required by the Land Ports Authority of India to comply with the terms of the Audit, Access and Reporting Schedule set out as Schedule III of this document.

19. Intellectual Property Rights

19.1 Products and fixes

All products and related solutions and fixes provided pursuant to the Contract Agreement shall be licensed according to the terms of the license agreement packaged with or otherwise applicable to such product, the ownership of which shall continue to vest with the product owner. System Integrator would be responsible for arranging any licenses associated with products.

“Product” means any computer code, web-based services, or materials comprising commercially released, pre-release or beta products (whether licensed for a fee or no



charge) and any derivatives of the foregoing which are made available to Land Ports Authority of India for license which is published by product owner or its affiliates, or a third party. "Fixes" means product fixes that are either released generally (such as commercial product service packs) or that are provided to you when performing services (such as workarounds, patches, bug fixes, beta fixes and beta builds) and any derivatives of the foregoing.

19.2 Bespoke development

Subject to the provisions of Clause 19.3 and 19.4 below, upon payment, the IPR rights for any bespoke development done during the implementation of the project will lie exclusively with the Land Ports Authority of India.

19.3 Pre-existing work

All IPR including the source code and materials developed or otherwise obtained independently of the efforts of a Party under the Contract Agreement ("pre-existing work") including any enhancement or modification thereto shall remain the sole property of that Party. During the performance of the services for this agreement, each party grants to the other party (and their sub-System Integrators as necessary) a non-exclusive license to use, reproduce and modify any of its pre-existing work provided to the other party solely for the performance of such services for duration of the Term of the Contract Agreement. Except as may be otherwise explicitly agreed to in a statement of services, upon payment in full, the System Integrator should grant Land Ports Authority of India a non-exclusive, perpetual, fully paid-up license to use the pre-existing work in the form delivered to Land Ports Authority of India as part of the service or deliverables only for its internal business operations. Under such license, either of parties will have no right to sell the pre-existing work of the other party to a Third Party. Land Ports Authority of India's license to pre-existing work is conditioned upon its compliance with the terms of the Contract Agreement and the perpetual license applies solely to the pre-existing work that bidder leaves with Land Ports Authority of India at the conclusion of performance of the services.

19.4 Residuals

In no event shall System Integrator be precluded from independently developing for itself, or for others, anything, whether in tangible or non-tangible form, which is competitive with, or similar to, the deliverables, set-out in this document or Annexure. In addition, subject to the confidentiality obligations, System Integrator shall be free to use its general knowledge, skills and experience, and any ideas, concepts, know-how, and techniques that are acquired or used in the course of providing the Services.

20. Warranty & Maintenance

1. The System Integrator warrants that the Project, including all the system(s), materials and goods supplied pursuant to the Agreement, shall be free from any



defect or deficiency in the material, design, engineering, and workmanship that prevent the system and/or any of its systems(s) from fulfilling the technical requirements or that limit in a material fashion the performance, reliability, or extensibility of the system and/or any of its sub-system(s). Commercial warranty provisions of products supplied under the Agreement shall apply to the extent they do not conflict with the provisions of the Contract Agreement.

- i. The System Integrator also warrants that the products, materials and other goods supplied under the Agreement are new, unused and incorporate all recent improvements in design that materially affect the systems or subsystem's ability to fulfil the technical requirements specified in the RFP.
- ii. In addition, the System Integrator warrants that: all Goods components to be incorporated into the System form part of the System Integrator and/or SubSystem Integrator's current product lines.
- iii. The warranty period shall commence from the date of Go Live of the project or of any major component or subsystem for which phased Go-Live is provided for in the Agreement and shall extend for as follow:

Component	Period
<COTS Software>	<Till the end of the agreement OR <6 months> post completion of the agreement>
<Bespoke Software>	<Till the end of the agreement OR <6 months> post completion of the agreement>

Land Ports Authority of India/Government department should approve signoff within 30 days from the submission of deliverables for Go-Live/Phased Go-live (as relevant, depending on project requirement) by the implementing agency. In case the Land Ports Authority of India/Government department fails to respond and provide feedback on the above stated submission, the deliverables will be deemed accepted for the commencement of warranty for the project. However, in case the Land Ports Authority of India confirms to System Integrator an alternative date, then the date would stand revised for deemed acceptance. Such revisions may be limited to 2 (two).

- iv. If during the warranty period any defect or deficiency is found in the material, design and performance/workmanship of the Project and other Services provided by the System Integrator, the System Integrator shall promptly, in consultation and agreement with Land Ports Authority of India, and at the System Integrator's sole cost repair, replace, or otherwise make good (as the System Integrator shall, at its discretion,



determine) such default, defect or deficiency as well as any damage to the system caused by such default, defect or deficiency. Any defective component, excluding hard disks, that has been replaced by the System Integrator shall remain the property of the System Integrator.

- v. The System Integrator may, with the consent of the Land Ports Authority of India, remove from the site any product and other goods that are defective, if the nature of the defect, and/or any damage to the System caused by the defect, is such that repairs cannot be expeditiously carried out at the site. If the repair, replacement, or making good is of such a character that it may affect the efficiency of the System, the Land Ports Authority of India may give the System Integrator notice requiring that tests of the defective part be made by the System Integrator immediately upon completion of such remedial work, whereupon the System Integrator shall carry out such tests. If such part fails the tests, the System Integrator shall carry out further repair, replacement, or making good (as the case may be) until that part of the System passes such tests. The tests shall be agreed upon by the Land Ports Authority of India and the System Integrator.
- vi. If the System Integrator fails to commence the work necessary to remedy such defect or any damage to the System caused by such defect within a reasonable time period, the Land Ports Authority of India may, following notice to the System Integrator, proceed to do such work or contract a third party (or parties) to do such work, and the reasonable costs incurred by the Land Ports Authority of India in connection with such work shall be paid to the Land Ports Authority of India by the System Integrator or may be deducted by the Land Ports Authority of India from any amount due to the System Integrator
- vii. If the System or any of its sub-systems cannot be used by reason of such default, defect or deficiency and/or making good of such default, defect or deficiency, attributable to System Integrator, the warranty period for the Project shall be extended by a period equal to the period during which the Project or any of its system could not be used by the Land Ports Authority of India because of such defect and/or making good of such default, defect or deficiency. For reasons not attributable to System Integrator, the System Integrator shall not be liable.
- viii. Items substituted for defective parts of the System during the Warranty Period shall be covered by the Warranty for the remainder of the Warranty Period applicable for the part replaced or three (3) months, whichever is greater
- ix. The Implementing Agency shall have no liability in the case of breach of this warranty due to (i) use of the deliverables on any environment (hardware or software) other than the environment recommended or approved by the Implementing Agency, (ii) the combination, operation, or use of some or all of the deliverables with information, software, specifications, instructions, data, or materials not approved by the



Implementing Agency; (iii) the deliverables having been tampered with, altered or modified by Land Ports Authority of India without the written permission of the Implementing Agency, or (iv) use of the deliverables otherwise than in terms of the relevant documentation.

20.1 Implied Warranty:

The warranties provided herein are in lieu of all other warranties, both express and implied, and all other warranties, including without limitation that of merchantability or fitness for intended purpose is specifically disclaimed.

21. Liquidated Damages

Time is the essence of the Agreement, and the delivery dates are binding on the System Integrator. In the event of delay or any gross negligence in implementation of the project before Go-Live, for causes solely attributable to the System Integrator, in meeting the deliverables, In addition to and without limiting any remedies in law or in equity that may be available to Land Ports Authority of India including, but not limited to, injunctive and other equitable relief, LPAI may levy a penalty of 1% per week of the total contract value as liquidated damages for delay in completion (go live) beyond the agreed time line up to a maximum of ten percent (10%) of the Total Contract Value beyond which LPAI has the right to invoke appropriate termination clause as per the provisions of this RFP. Parties agree that the Liquidated Damages herein are a fair estimation of the damages likely to result from such delay and shall not be construed as the final costs, penalty and expenses of any kind.

22. Performance Bank Guarantee (PBG)

- i. The successful Bidder shall furnish Performance Security of 3% of the Contract Value which shall be in the form of a Guarantee Bond from a Nationalized / Scheduled Bank in the Proforma given at Bid formats (Volume 1) which would be valid up to a period of six months after the contract period.
- ii. The Successful Bidder shall keep and maintain the Performance Bank Guarantee valid and in full force and effect at all times during the term of this Contract (through periodic renewals, if any required, at least one month prior to the expiry of the subsisting Performance Bank Guarantee)
- iii. Bidder fails to provide the renewed/ extended. Performance Bank Guarantee at least 1 (one) month prior to the expiry of the subsisting bank guarantee, so as to maintain the Performance Bank Guarantee valid for the applicable periods, the Land Ports Authority of India shall have the right to forfeit and appropriate the subsisting Performance Bank Guarantee. Failure of the successful Bidder to maintain the Performance Bank Guarantee in full force and effect throughout the term, in accordance with the provisions hereof, shall constitute Bidder's Event of default in terms hereof.



- iv. The decision of Land Ports Authority of India as to any breach/ delay having been committed, liability accrued or loss or damage caused or suffered shall be conclusive, absolute and binding on the successful Bidder specifically confirms and agrees that no proof of any amount of liability accrued or loss or damages caused or suffered by the Land Ports Authority of India under this Contract is required to be provided in connection with any demand made by the Land Ports Authority of India to recover such compensation through invoking and encashment of the Performance Bank Guarantee under this Contract.
- v. In the event of encashment of the Performance Bank Guarantee by the Land Ports Authority of India, in full or part, successful Bidder shall within 30 (thirty) days of receipt of the encashment notice from the Land Ports Authority of India provide a fresh Performance Bank Guarantee or replenish (in case of partial appropriation) the existing Performance Bank Guarantee, as the case may be. The provisions of this Article shall apply mutatis mutandis to such fresh Performance Bank Guarantee. Successful Bidder's failure to comply with this provision shall constitute successful Bidder's Event of Default which shall entitle the Land Ports Authority of India to terminate this Contract in accordance with the provisions of Clauses 13 of this Contract.

23. Assignment

1. Any assignment of any rights hereunder, in any manner, by operation of law or otherwise, without the prior written consent of Land Ports Authority of India, shall be void. Any such consent shall not relieve the Bidder from its obligations under the RFP.
2. The Bidder shall not give, bargain, sell, assign or sublet or otherwise dispose-off the Proposal or any part thereof, or the benefit or advantage of being the selected Bidder/Vendor or any part thereof, to any third party.

24. Law and Jurisdiction

1. The Proposal shall be considered, governed by and interpreted in accordance with the laws of Republic of India. The jurisdiction for the purposes of the RFP shall be the courts located at Delhi only.

25. Alteration, Variation or Repeat Order

The Bidder agrees that, quantities given in the bidding documents are minimum requirements, and are in no way exhaustive and guaranteed by Land Ports Authority of India. It shall be the responsibility of the Bidder to meet all the requirements contained in the RFP documents and any upward revisions, and of the quantities to the extent of five percent (5%) shall be carried-out without any time and cost effect to Land Ports Authority of India. Land Ports Authority of India reserves the right to place repeat order for the same items at the contracted rate, up to the extent of one hundred percent (100%) of the final order



quantity within one (1) year of placing the last order, if required by Land Ports Authority of India.

26. Conflict of Interest

1. The Bidder shall hold Land Ports Authority of India's interest paramount, without any consideration for future work, and strictly avoid conflict with other assignment or its own corporate interest which is detrimental to Land Ports Authority of India.
 - i. The Bidder should not be engaged in any such business (excluding any work assigned to it by Land Ports Authority of India), which has conflict of interest with the Project for which, the bid is being submitted.
 - ii. Participation by the Bidder with a conflict-of-interest situation, would be examined by Land Ports Authority of India, and appropriate decision would be taken, which may also include disqualification of the bids in which, it is involved.
 - iii. Land Ports Authority of India considers a conflict of interest to be a situation in which, a party has interests that could improperly influence that party's performance of official duties or responsibilities, contractual obligations, or compliance with applicable laws and regulations, and that such conflict of interest may contribute to or constitute a prohibited corrupt practice. A Bidder/Vendor may be considered to be in a conflict of interest with one or more parties in this Bidding process if, including but not limited to (a) receive or have received any direct or indirect subsidy from any of them; or (b) have common controlling shareholders; or (c) have the same legal representative for purposes of this bid; or (d) have a relationship with each other, directly or through common third parties, that puts them in a position to have access to information about or influence on the bid of another Bidder, or influence the decisions of Land Ports Authority of India regarding this Bidding process. Land Ports Authority of India requires that a Bidder participating in this RFP/bidding, procurement process shall not have a conflict of interest. Any Bidder / Vendor found to have a conflict of interest in any manner shall be ineligible for award of the contract.

27. Insurance Cover

27.1 Obligation to maintain insurance.

In connection with the provision of the Services, the System Integrator must have and maintain:

- a. for the Agreement Period, valid and enforceable insurance coverage for:
 - i. public liability;
 - ii. either professional indemnity or errors and omissions;
 - iii. product liability;
 - iv. workers' compensation as required by law; and
 - v. any additional types specified in Schedule I; and



- b. for one year following the expiry or termination of the Agreement, valid and enforceable insurance policies (if relevant),
- c. in the amount not less than the Insurance Cover specified in Schedule I.

27.2 Certificates of currency

The System Integrator must, on request by the Land Ports Authority of India, provide current relevant confirmation of insurance documentation from its insurance brokers certifying that it has insurance as required by this Clause 29. The System Integrator agrees to replace any coverage prior to the date of expiry/cancellation.

27.3 Non-compliance

Land Ports Authority of India or its nominated agencies may, at its election, terminate the Contract Agreement as per clause 13, upon the failure of System Integrator or notification of such failure, to maintain the required insurance coverage. Inadequate insurance coverage for any reason shall not relieve System Integrator of its obligations under the Contract Agreement

28. Miscellaneous

28.1 Personnel

- i. The personnel assigned by System Integrator to perform the Services shall be employees of System Integrator or its System Integrator(s), and under no circumstances shall such personnel be considered employees of Land Ports Authority of India or its nominated agencies. The System Integrator shall have the sole responsibility for the supervision and control of the personnel deployed in the Project and for payment of such personnel's compensation, including salary, withholding of income taxes and social security taxes, worker's compensation, employee and disability benefits and the like and shall be responsible for all obligations of an employer subject to Applicable Law.
- ii. The System Integrator shall use its best efforts to ensure that sufficient Implementation. Agency personnel are assigned to perform the Services and that such personnel have appropriate qualifications to perform the Services. After discussion with System Integrator, Land Ports Authority of India or its nominated agencies shall have the right to require the removal or replacement of any System Integrator personnel performing work under the Contract Agreement based on Bonafede reasons. In the event that Land Ports Authority of India or its nominated agencies requests that any System Integrator personnel be replaced, the substitution of such personnel shall be accomplished pursuant to a mutually agreed upon schedule.
- iii. In the event that the Land Ports Authority of India and System Integrator identify any personnel of System Integrator as "Key Personnel", then the System Integrator shall not remove such personnel from the Project without the prior written consent of Land Ports Authority of India or its nominated agencies unless such removal is the result of an



unavoidable circumstance including but not limited to resignation, termination, medical leave, etc.

- iv. Except as stated in this Clause, nothing in the Contract Agreement or the SLA will limit the ability of System Integrator to freely assign or reassign its employees; provided that System Integrator shall be responsible, at its expense, for transferring all appropriate knowledge from personnel being replaced to their replacements. Land Ports Authority of India or its nominated agencies shall have the right to review and approve System Integrator's plan for any such knowledge transfer. System Integrator shall maintain the same or higher standards for skills and professionalism among replacement personnel as in personnel being replaced.
- v. Each Party shall be responsible for the performance of all its obligations under the Contract Agreement or the SLA as the case may be and shall be liable for the acts and omissions of its employees and agents in connection therewith.
- vi. Neither Party will solicit for employment or knowingly hire an employee of the other Party with whom such Party has contact pursuant to project engagements under the Contract Agreement. This restriction shall not apply to employees of either Party responding to advertisements in job fairs or news media circulated to the general public.

28.2 Independent System Integrator

Nothing in the Contract Agreement or the SLA shall be construed as establishing or implying any partnership or joint venture between the Parties to the Contract Agreement or the SLA and, except as expressly stated in the Contract Agreement or the SLA, nothing in the Contract Agreement or the SLA shall be deemed to constitute any Parties as the agent of any other Party or authorizes either Party to:

- a) incur any expenses on behalf of the other Party;
- b) enter into any engagement or make any representation or warranty on behalf of the other Party;
- c) pledge the credit of or otherwise bind or oblige the other Party; or
- d) commit the other Party in any way whatsoever without in each case obtaining the other Party's prior written consent.

<Insert Address>

Tel:

Fax:

Email:

Contact:

With a copy to:

System Integrator

Tel:



Fax:

Email:

Contact:

In relation to a notice given under the MSA / SLA, a Party shall specify the Parties' address for service of notices, any such notice to be copied to the Parties at the addresses set out in this Clause.

- a) Any such notice or other document shall be deemed to have been given to the other Party (or, if relevant, its relevant associated company) when delivered (if delivered in person) if delivered between the hours of 9.00 am and 5.00 pm at the address of the other Party set forth above or if sent by fax, provided the copy fax is accompanied by a confirmation of transmission, or on the next working day thereafter if delivered outside such hours, and 7 days from the date of posting (if by letter).
- b) Either Party to the Contract Agreement or to the SLA may change its address, telephone number, facsimile number and nominated contact for notification purposes by giving the other reasonable prior written notice of the new information and its effective date.
- c) Either Party to the Contract Agreement or to the SLA may change its address, telephone number, facsimile number and nominated contact for notification purposes by giving the other reasonable prior written notice of the new information and its effective date.

28.3 Variations and Further Assurance

- i. No amendment, variation or other change to the Contract Agreement or the SLA shall be valid unless authorised in accordance with the change control procedure as set out in the Change Control Schedule set out in Schedule I of this document. Such amendment shall be made in writing and signed by the duly authorised representatives of the Parties to the Contract Agreement or the SLA.
- ii. Each Party to the Contract Agreement or the SLA agrees to enter into or execute, without limitation, whatever other agreement, document, consent and waiver and to do all other things which shall or may be reasonably required to complete and deliver the obligations set out in the Contract Agreement or the SLA.

28.4 Severability and Waiver

Each Party to the Contract Agreement accepts that its individual conduct shall (to the extent applicable to its business like the System Integrator as an information System Integrator) at all times comply with all laws, rules and regulations of government and other bodies having jurisdiction over the area in which the Services are undertaken provided that changes in such laws, rules and regulations which result in a change to the Services shall be dealt with in accordance with the Change Control Schedule set out in Schedule I of this document.



28.5 Compliance with Applicable Law

All expenses incurred by or on behalf of each Party to the Contract Agreement and the SLA, including all fees of agents, legal advisors, accountants and actuaries employed by either of the Parties in connection with the negotiation, preparation and execution of the Contract Agreement or the SLA shall be borne solely by the Party which incurred them.

28.6 Ethics

The System Integrator represents, warrants and covenants that it has given no commitments, payments, gifts, kickbacks, lavish or expensive entertainment, or other things of value to any employee or agent of Land Ports Authority of India or its nominated agencies in connection with the contract agreement and acknowledges that the giving of any such payment, gifts, entertainment, or other things of value is strictly in violation of Land Ports Authority of India standard policies and may result in cancellation of the Contract Agreement, or the SLA.

28.7 Entire Agreement

The Contract Agreement and the SLA with all schedules & annexures appended thereto and the contents and specifications of the RFP constitute the entire agreement between the Parties with respect to their subject matter, and as to all other representations, understandings or agreements which are not fully expressed herein, provided that nothing in this Clause shall be interpreted so as to exclude any liability in respect of fraudulent misrepresentation.

28.8 Amendment

Any amendment to the Contract Agreement shall be made in accordance with the Change Control Schedule set out in Schedule I of this document by mutual written consent of all the Parties.

29. Illegal Gratification

- i. The Bidder shall not directly or indirectly (whether directly or through its Associates, agent or servant or anyone on its behalf) offer or give any bribe, commission, gift or give any advantage, promise, or offer, to any officer or employee of the Authority, or to any person on its behalf in relation to obtaining or execution of the Agreement or any other contract with the Authority.
- ii. Any bribe, commission, gift or advantage given, promised or offered by or on behalf of the bidder or its Associates, agent or servant or, anyone on its behalf, to any officer or employee of the Authority, or to any person on its behalf in relation to obtaining or execution of the Agreement or any other contract with the Authority shall, in addition to any criminal liability which the Bidder may incur, subject the Bidder to the rescission of the Agreement and all other contracts with the Authority and to the payment of any loss or damage resulting from such decision and the Authority shall be entitled to deduct the amounts so payable from any



money due to the Bidder under the Contract Agreement or any other contract with the Authority.

- iii. The Bidder shall not lend or borrow from or have or enter into any monetary dealings or transactions either directly or indirectly with any employee of the Authority and if the bidder shall do so, the Authority shall be entitled forthwith to rescind the contract and all other contracts with the Authority.
- iv. The Bidder is required to co-ordinate and follow up with the Authority's Representative and other System Integrators/bidder, except as may be expressly excused in the Agreement and no delay or failure to perform on the part of the Authority (or its vendors, other System Integrators and/or Bidders) shall excuse the bidder from the timely performance of its obligations under the Agreement.

30. Governing Law and Dispute Resolution

- 1. The Contract Agreement shall be governed by and construed in accordance with the laws of India, without giving effect to conflict of law rules. The parties expressly agree to exclude the application of the U.N. Convention on Contracts for the International Sale of Goods (1980) to the Contract Agreement and the performance of the parties contemplated under the Contract Agreement, to the extent that such convention might otherwise be applicable
- 2. Any dispute arising out of or in connection with the Contract Agreement or the SLA shall in the first instance be dealt with in accordance with the escalation procedure as set out in the Governance Schedule set out as Schedule IV of this document.
- 3. In case the escalations do not help in resolution of the problem within 3 weeks of escalation, both the parties should agree on a mediator for communication between the two parties. The process of the mediation would be as follows:
 - i. Aggrieved party should refer the dispute to the identified mediator in writing, with a copy to the other party. Such a reference should contain a description of the nature of the dispute, the quantum in dispute (if any) and the relief or remedy sought suitable.
 - ii. The mediator shall use his best endeavours to conclude the mediation within a certain number of days of his appointment.
 - iii. If no resolution can be reached through mutual discussion or mediation within 30 days, then the matter should be referred to Experts for advising on the issue.
- 4. In case the mediation does not help in resolution, and it requires expertise to understand an issue, a neutral panel of 3 experts, agreeable to both parties should be constituted. The process of the expert advisory would be as follows:
 - i. Aggrieved party should write to the other party on the failure of previous alternate dispute resolution processes within the timeframe and requesting for expert advisory. This is to be sent with a copy to the mediator



- ii. Both parties should thereafter agree on the panel of experts who are well conversant with the issue under dispute
 - iii. The expert panel shall use his best endeavours to provide a neutral position on the issue.
 - iv. If no resolution can be reached through the above means within 30 days, then the matter should be referred to Arbitration.
5. Any dispute or difference whatsoever arising between the parties to this Contract out of or relating to the construction, meaning, scope, operation or effect of this Contract or the validity of the breach thereof shall be referred to a sole Arbitrator to be appointed by mutual consent of both the parties herein. If the parties cannot agree on the appointment of the Arbitrator within a period of one month from the notification by one party to the other of existence of such dispute, then the Arbitrator shall be appointed by the High Court of Delhi, India. The provisions of the Arbitration and Conciliation Act, 1996 will be applicable and the award made there under shall be final and binding upon the parties hereto, subject to legal remedies available under the law. Such differences shall be deemed to be a submission to arbitration under the Indian Arbitration and Conciliation Act, 1996, or of any modifications, Rules or re-enactments thereof. The Arbitration proceedings will be held at Delhi, India. Any legal dispute will come under the sole jurisdiction of Delhi, India.
6. Compliance with laws: Each party will comply with all applicable export and import laws and regulations.
7. Risk of Loss: For each hardware item, System Integrator bears the risk of loss or damage up to the time it is delivered to the Implementation/Land Ports Authority of India-designated carrier for shipment to Land Ports Authority of India or Land Ports Authority of India's designated location.
8. Third party components: System Integrator will provide all third-party components solely on a pass-through basis in accordance with the relevant third-party terms and conditions.
9. Third party components: System Integrator will provide all third-party components solely on a pass-through basis in accordance with the relevant third-party terms and conditions.

IN WITNESS WHEREOF the Parties have by duly authorized

Representatives set their respective hands and seal on the date first above

Written in the presence of:

WITNESSES:

Signed by:

(Name and designation) For and on behalf of Land Ports Authority of India

(FIRST PARTY)



Request for Proposal: Volume 3

Supply, Installation, Testing & Commissioning of Integrated CCTV surveillance system at Land Port Petrapole with DLP of One Years and 4 Years of Comprehensive Annual Maintenance Contract after completion of DLP Period

Signed by:

(Name and designation)

SYSTEM INTEGRATOR

(SECOND PARTY)

(Name and designation) For and on behalf of System Integrator

Signed by:



Request for Proposal: Volume 3

Supply, Installation, Testing & Commissioning of Integrated CCTV surveillance system at Land Port Petrapole with DLP of One Years and 4 Years of Comprehensive Annual Maintenance Contract after completion of DLP Period



SCHEDULE I – CHANGE CONTROL SCHEDULE

1. Introducing a Change

1. The Land Ports Authority of India shall have the right to propose, and subsequently require, the Project Manager to order the System Integrator from time to time during the performance of the Contract to make any change, modification, addition, or deletion to, in, or from the System (interchangeably called Change), provided that such Change falls within the general scope of the System, does not constitute unrelated work, and is technically practicable, taking into account both the state of advancement of the System and the technical compatibility of the Change envisaged with the nature of the System as originally specified in the Contract. A Change may involve, but is not restricted to, the substitution of updated Information Technologies and related Services in accordance with system/product Upgrades.
2. The System Integrator may from time to time during its performance of the Contract propose to the Land Ports Authority of India (with a copy to the Project Manager) any Change that the System Integrator considers necessary or desirable to improve the quality or efficiency of the System. The Land Ports Authority of India may at its discretion approve or reject any Change proposed by the System Integrator.
3. Notwithstanding Clauses 1.1 and 1.2 of Schedule I of this document, no change made necessary because of any default of the System Integrator in the performance of its obligations under the Contract shall be deemed to be a Change, and such change shall not result in any extra cost or Time for Achieving Operational Acceptance.
4. The procedure on how to proceed with and execute Changes is specified below.
5. Moreover, the Land Ports Authority of India and System Integrator will agree, during development of the Project Plan, to a date prior to the scheduled date for Operational Acceptance, after which the Technical Requirements for the System shall be frozen. Any major Change initiated after this time will be dealt with after Operational Acceptance.
6. Any changes to this agreement proposed in Clauses 1.1 and 1.2 of Schedule I of this document may be considered, subject to mutual consent between the parties involved. Modifications shall be limited to a maximum of 25% deviation from the original terms and conditions outlined in this agreement.

2. Changes originating from the Land Ports Authority of India

1. If the Land Ports Authority of India proposes a Change pursuant to Clause 1.1 above, it shall send to the System Integrator a request for Change Proposal, requiring the System Integrator to prepare and furnish to the Project Manager as soon as reasonably practicable a Change Proposal, which shall include the following:
 - a) brief description of the Change;
 - b) impact on the Time for Achieving Operational Acceptance;
 - c) detailed estimated cost of the Change;



- d) effect on Functional Guarantees (if any);
 - e) Effect on any other provisions of the Contract.
- 2. Prior to preparing and submitting the Change Proposal, the System Integrator shall submit to the Project Manager a Change Estimate Proposal, which shall be an estimate of the cost of preparing the Change Proposal, plus a first approximation of the suggested approach and cost for implementing the changes. Upon receipt of the System Integrator's Change Estimate Proposal, the Land Ports Authority of India shall do one of the following:
 - i. Accept the System Integrator's estimate with instructions to the System Integrator to proceed with the preparation of the Change Proposal;
 - ii. Advise the System Integrator of any part of its Change Estimate Proposal that is unacceptable and request the System Integrator to review its estimate;
 - iii. Advise the System Integrator that the Land Ports Authority of India does not intend to proceed with the Change.
 - iv. Upon receipt of the Land Ports Authority of India 's instruction to proceed under Clause 2.2 (i), the System Integrator shall, with proper expedition, proceed with the preparation of the Change Proposal, in accordance with Clause 2.1. The System Integrator, at its discretion, may specify a validity period for the Change Proposal, after which if the Land Ports Authority of India and System Integrator has not reached agreement in accordance with Clause 2.5, then Clause 2.6 shall apply.
- 3. The pricing of any Change shall, as far as practicable, be calculated in accordance with the rates and prices included in the Contract. If the nature of the Change is such that the Contract rates and prices are inequitable, the parties to the Contract shall agree on other specific rates to be used for valuing the Change.
- 4. Upon receipt of the Change Proposal, the Land Ports Authority of India and the System Integrator shall mutually agree upon all matters contained in the Change Proposal. Within fourteen (14) days after such agreement, the Land Ports Authority of India shall, if it intends to proceed with the Change, issue the System Integrator a Change Order. If the Land Ports Authority of India is unable to reach a decision within fourteen (14) days, it shall notify the System Integrator with details of when the System Integrator can expect a decision. If the Land Ports Authority of India decides not to proceed with the Change for whatever reason, it shall, within the said period of fourteen (14) days, notify the System Integrator accordingly. Under such circumstances, the System Integrator shall not be entitled to reimbursement of any costs incurred by it in the preparation of the Change Proposal.
- 5. If the Land Ports Authority of India and the System Integrator cannot reach agreement on the price for the Change, an equitable adjustment to the Time for Achieving Operational Acceptance, or any other matters identified in the Change Proposal, the Change will not be implemented.



3. Changes originating from System Integrator

3.1 If the System Integrator proposes a Change pursuant to Clause 1.2, the System Integrator shall submit to the Project Manager a written Application for Change Proposal, giving reasons for the proposed Change and including the information specified in Clause 2.1. Upon receipt of the Application for Change Proposal, the parties shall follow the procedures outlined in Clauses 2.5 and 2.6. However, should the Land Ports Authority of India choose not to proceed or the Land Ports Authority of India and the System Integrator cannot come to agreement on the change during any validity period that the System Integrator may specify in its Application for Change Proposal, the System Integrator shall not be entitled to recover the costs of preparing the Application for Change Proposal, unless subject to an agreement between the Land Ports Authority of India and the System Integrator to the contrary.

The System Integrator needs to make any changes in software and hardware suggested by the Land Ports Authority of India or the System Integrator in accordance with clause 1 above. It is expected that any minor changes shall be carried out by the System Integrator without any extra cost. In case of substantial change requests, extra cost estimated for the change shall be paid by the Land Ports Authority of India separately.

Change Control Notice (CCN) Format

Change Control Note	CCN Number
Part A: Initiation	
Title:	
Originator:	
Sponsor:	
Date of Initiation:	
Details of Proposed Change	
(To include reason for change and appropriate details/specifications. Identify any attachments as A1, A2, and A3 etc.)	
Authorized by:	Date:
Name:	
Signature:	Date:
Received by the IP	
Name:	
Signature:	
Change Control Note	CCN Number:



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Part B: Evaluation	
(Identify any attachments as B1, B2, and B3 etc.) Changes to Services, charging structure, payment profile, documentation, training, service levels and component working arrangements and any other contractual issue.	
Brief Description of Solution:	
Impact:	
Deliverables:	
Timetable:	
Charges for Implementation: (including a schedule of payments)	
Other Relevant Information: (including value-added and acceptance criteria)	
Authorized by the Implementation Partner	Date:
Name:	
Signature:	

SCHEDULE II – EXIT MANAGEMENT SCHEDULE

1. Purpose

- 1.1** This Schedule sets out the provisions, which will apply on expiry or termination of the MSA, the Project Implementation, Operation and Management SLA.
- 1.2** In the case of termination of the Project Implementation and/or Operation and Management, the Parties shall agree at that time whether, and if so during what period, the provisions of this Schedule shall apply.
- 1.3** The Parties shall ensure that their respective associated entities carry out their respective obligations set out in this Exit Management Schedule.

2. Transfer of assets

1. Land Ports Authority of India shall be entitled to serve notice in writing on the System Integrator at any time during the exit management period as detailed hereinabove requiring the System Integrator and/or its sub-System Integrators to provide the Land Ports Authority of India with a complete and up to date list of the Assets within 30 days of such notice. Land Ports Authority of India shall then be entitled to serve notice in writing on the System Integrator at any time prior to the date that is 30 days prior to the end of the exit management period requiring the



System Integrator to sell the Assets, if any, to be transferred to Land Ports Authority of India or its nominated agencies at book value as determined as of the date of such notice in accordance with the provisions of relevant laws.

2. In case of contract being terminated by Land Ports Authority of India, Land Ports Authority of India reserves the right to ask System Integrator to continue running the project operations for a period of 6 months after termination orders are issued.
3. Upon service of a notice under this Article the following provisions shall apply:
 - i. In the event, if the Assets to be transferred are mortgaged to any financial institutions by the System Integrator, the System Integrator shall ensure that all such liens and liabilities have been cleared beyond doubt, prior to such transfer. All documents regarding the discharge of such lien and liabilities shall be furnished to the Land Ports Authority of India.
 - ii. All risk in and title to the Assets to be transferred / to be purchased by the Land Ports Authority of India pursuant to this Article shall be transferred to Land Ports Authority of India, on the last day of the exit management period.
 - iii. Land Ports Authority of India shall pay to the System Integrator on the last day of the exit management period such sum representing the Net Block (procurement price less depreciation as per provisions Of Companies Act) of the Assets to be transferred as stated in the Terms of Payment Schedule.
 - iv. Payment to the outgoing System Integrator shall be made to the tune of last set of completed services / deliverables, subject to SLA requirements.
 - v. The outgoing System Integrator will pass on to Land Ports Authority of India and/or to the Replacement System Integrator, the subsisting rights in any leased properties/ licensed products on terms not less favourable to Land Ports Authority of India/ Replacement System Integrator, than that enjoyed by the outgoing System Integrator.

3. Cooperation and provision of information

3.1 During the exit management period:

- i. The System Integrator will allow the Land Ports Authority of India or its nominated agency access to information reasonably required to define the then current mode of operation associated with the provision of the services to enable the Land Ports Authority of India to assess the existing services being delivered;
- ii. Promptly on reasonable request by the Land Ports Authority of India, the System Integrator shall provide access to and copies of all information held or controlled by them which they have prepared or maintained in accordance with the contract agreement relating to any material aspect of the services (whether provided by the System Integrator or sub-System Integrators appointed by the System Integrator). The Land Ports Authority of India shall be entitled to copy of all such information. Such information shall include details pertaining to the services rendered and other



performance data/source code. The System Integrator shall permit the Land Ports Authority of India or its nominated agencies to have reasonable access to its employees and facilities as reasonably required by the Chairman, PIU to understand the methods of delivery of the services employed by the System Integrator and to assist appropriate knowledge transfer.

4. Confidential information, security, and data

1. The System Integrator will promptly on the commencement of the exit management period supply to the Land Ports Authority of India or its nominated agency the following:
 - i. information relating to the current services rendered and customer and performance data relating to the performance of sub-System Integrators in relation to the services;
 - ii. documentation relating to Computerization Project's Intellectual Property Rights;
 - iii. documentation relating to sub-System Integrators;
 - iv. all current and updated data as is reasonably required for purposes of Land Ports Authority of India or its nominated agencies transitioning the services to its replacement System Integrator in a readily available format nominated by the Land Ports Authority of India, its nominated agency;
 - v. all other information (including but not limited to documents, records and agreements) relating to the services reasonably necessary to enable Land Ports Authority of India or its nominated agencies, or its replacement System Integrator to carry out due diligence in order to transition the provision of the Services to Land Ports Authority of India or its nominated agencies, or its Replacement System Integrator (as the case may be).
1. Before the expiry of the exit management period, the System Integrator shall deliver to the Land Ports Authority of India or its nominated agency all new or up-dated materials from the categories set out in Schedule above and shall not retain any copies thereof, except that the System Integrator shall be permitted to retain one copy of such materials for archival purposes only.
2. Before the expiry of the exit management period, unless otherwise provided under the MSA, the Land Ports Authority of India or its nominated agency shall deliver to the System Integrator all forms of System Integrator confidential information, which is in the possession or control of Chairperson, PIU or its users.

5. Employees

1. The promptly on reasonable request at any time during the exit management period, the System Integrator shall, subject to applicable laws, restraints and regulations (including in particular those relating to privacy) provide to the Land Ports Authority of India or its nominated agency a list of all employees (with job titles) of the System



Integrator dedicated to providing the services at the commencement of the exit management period.

2. The Promptly on reasonable request where any national, regional law or regulation relating to the mandatory or automatic transfer of the contracts of employment from the System Integrator to the Land Ports Authority of India or its nominated agency, or a Replacement System Integrator ("Transfer Regulation") applies to any or all of the employees of the System Integrator, then the Parties shall comply with their respective obligations under such Transfer Regulations.

6. Transfer of certain agreements

On request by the Land Ports Authority of India or its nominated agency the System Integrator shall effect such assignments, transfers, licences and sub-licences as the Chairperson, PIU may require in favour of the Chairperson, PIU, or its Replacement System Integrator in relation to any equipment lease, maintenance or service provision agreement between System Integrator and third party lessors, vendors, and which are related to the services and reasonably necessary for the carrying out of replacement services by the Land Ports Authority of India or its nominated agency or its Replacement System Integrator.

7. Rights of access to premises

1. At any time during the exit management period, where Assets are located at the System Integrator's premises, the System Integrator will be obliged to give reasonable rights of access to (or, in the case of Assets located on a third party's premises, procure reasonable rights of access to) the Land Ports Authority of India or its nominated agency and/or any Replacement System Integrator in order to make an inventory of the Assets.
2. At any the System Integrator shall also give the Land Ports Authority of India or its nominated agency or its nominated agencies, or any Replacement System Integrator right of reasonable access to the Implementation Partner's premises and shall procure the Land Ports Authority of India or its nominated agency or its nominated agencies and any Replacement System Integrator rights of access to relevant third party premises during the exit management period and for such period of time following termination or expiry of the MSA as is reasonably necessary to migrate the services to the Land Ports Authority of India or its nominated agency, or a Replacement System Integrator.

8. General obligations of the system integrator

1. At any the System Integrator shall provide all such information as may reasonably be necessary to effect as seamless a handover as practicable in the circumstances to the Land Ports Authority of India or its nominated agency or its Replacement System



Integrator and which the System Integrator has in its possession or control at any time during the exit management period.

2. For the purposes of this Schedule, anything in the possession or control of any System Integrator, associated entity, or sub-System Integrator is deemed to be in the possession or control of the System Integrator.
3. The System Integrator shall commit adequate resources to comply with its obligations under this Exit Management Schedule.

9. Exit management plan.

1. The System Integrator shall provide the Land Ports Authority of India or its nominated agency with a recommended exit management plan ("Exit Management Plan") which shall deal with at least the following aspects of exit management in relation to the MSA as a whole and in relation to the Project Implementation, and the Operation and Management SLA.
 - i. A detailed program of the transfer process that could be used in conjunction with a Replacement System Integrator including details of the means to be used to ensure continuing provision of the services throughout the transfer process or until the cessation of the services and of the management structure to be used during the transfer;
 - ii. Plans for the communication with such of the System Integrator's sub-System Integrators, staff, suppliers, customers and any related third party as are necessary to avoid any material detrimental impact on the Land Ports Authority of India's operations as a result of undertaking the transfer;
 - iii. (if applicable) proposed arrangements for the segregation of the System Integrator's networks from the networks employed by Land Ports Authority of India and identification of specific security tasks necessary at termination;
 - iv. Plans for provision of contingent support to Land Ports Authority of India, and Replacement System Integrator for a reasonable period after transfer.
2. The System Integrator shall re-draft the Exit Management Plan annually thereafter to ensure that it is kept relevant and up to date.
3. Each Exit Management Plan shall be presented by the System Integrator to and approved by the Land Ports Authority of India or its nominated agencies.
4. The terms of payment as stated in the Terms of Payment Schedule include the costs of the System Integrator complying with its obligations under this Schedule.
5. In the event of termination or expiry of MSA, and Project Implementation, each Party shall comply with the Exit Management Plan.
6. During the exit management period, the System Integrator shall use its best efforts to deliver the services.
7. Payments during the Exit Management period shall be made in accordance with the Terms of Payment Schedule.



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8. This Exit Management plan shall be furnished in writing to the Land Ports Authority of India or its nominated agencies within 90 days from the Effective Date of the Contract Agreement.



SCHEDULE –III AUDIT, ACCESS, AND REPORTING

1. Purpose

This Schedule details the audit, access and reporting rights and obligations of the Land Ports Authority of India or its nominated agency and the System Integrator.

2. Audit notice and timing

1. As soon as reasonably practicable after the Effective Date, the Parties shall use their best endeavours to agree to a timetable for routine audits during the Project Implementation Phase and the Operation and Management Phase. Such timetable during the Implementation Phase, the Land Ports Authority of India or its nominated agency and thereafter during the operation Phase, the Land Ports Authority of India or its nominated agency shall conduct routine audits in accordance with such agreed timetable and shall not be required to give the System Integrator any further notice of carrying out such audits. Exit Management plan shall be furnished in writing to the Land Ports Authority of India or its nominated agencies within 90 days from the Effective Date of the Contract Agreement.
2. The Land Ports Authority of India or its nominated agency may conduct non-timetabled audits at his/ her own discretion if it reasonably believes that such non-timetabled audits are necessary as a result of an act of fraud by the System Integrator, a security violation, or breach of confidentiality obligations by the System Integrator, provided that the requirement for such an audit is notified in writing to the System Integrator a reasonable period time prior to the audit (taking into account the circumstances giving rise to the reasonable belief) stating in a reasonable level of detail the reasons for the requirement and the alleged facts on which the requirement is based. If the System Integrator considers that the non-timetabled audit was not appropriate, the matter shall be referred to the escalation procedure as set out in the Governance Schedule.
3. The frequency of audits shall be a (maximum) half yearly, provided always that the Land ports Authority of India or its nominated agency shall endeavour to conduct such audits with the lowest levels of inconvenience and disturbance practicable being caused to the System Integrator. Any such audit shall be conducted by with adequate notice of 2 weeks to the System Integrator.
4. Land Ports Authority of India will ensure that any 3rd party agencies (except CAG) appointed to conduct the audit will not be the competitor of System Integrator and will be bound by confidentiality obligations.

3. Access

The System Integrator shall provide to the Land Ports Authority of India or its nominated agency reasonable access to employees, subSystem Integrators, suppliers, agents and third party facilities as detailed in the RFP, documents, records and systems reasonably required for audit and shall provide all such persons with routine assistance in connection



with the audits and inspections. The Chairperson, PIU / Steering Committee shall have the right to copy and retain copies of any relevant records. The System Integrator shall make every reasonable effort to co-operate with them.

4. Audit rights

1. The Land Ports Authority of India or its nominated agency shall have the right to audit and inspect System Integrator, agents and third party facilities (as detailed in the RFP), data centres, documents, records, procedures and systems relating to the provision of the services, but only to the extent that they relate to the provision of the services, as shall be reasonably necessary to verify:
 - i. The security, integrity and availability of all data processed, held or conveyed by the Partner on behalf of Land Ports Authority of India and documentation related thereto;
 - ii. That the actual level of performance of the services is the same as specified in the SLA;
 - iii. That the System Integrator has complied with the relevant technical standards, and has adequate internal controls in place; and
- iv. The compliance of the System Integrator with any other obligation under the MSA and SLA.
- v. Security audit and implementation audit of the system shall be done once each year, the cost of which shall be borne by the System Integrator.
- vi. For the avoidance of doubt the audit rights under this Schedule shall not include access to the System Integrator's profit margins or overheads, any confidential information relating to the System Integrator's employees, or (iii) minutes of its internal Board or
- vii. Board committee meetings including internal audit, or (iv) such other information of commercial-in-confidence nature which are not relevant to the Services associated with any obligation under the MSA.

5. Audit rights of sub-System Integrators, suppliers and agents

1. The System Integrator shall use reasonable endeavours to achieve the same audit and access provisions as defined in this Schedule with sub-System Integrators who supply labour, services in respect of the services. The System Integrator shall inform the Land Ports Authority of India or its nominated agency prior to concluding any sub-contract or supply agreement of any failure to achieve the same rights of audit or access
2. **REPORTING:** The System Integrator will provide quarterly reports to the Chairperson, PIU / Steering committee regarding any specific aspects of the Project and in context of the audit and access information as required by the Land Ports Authority of India or its nominated agency.



6. Action and review

1. Any change or amendment to the systems and procedures of the System Integrator, or subSystem Integrators, where applicable arising from the audit report shall be agreed within thirty (30) calendar days from the submission of the said report.
2. Any discrepancies identified by any audit pursuant to this Schedule shall be immediately notified to the Land Ports Authority of India or its nominated agency and the System Integrator Project Manager who shall determine what action should be taken in respect of such discrepancies in accordance with the terms of the MSA

7. Terms of payment

The Land Ports Authority of India shall bear the cost of any audits and inspections. The terms of payment are exclusive of any costs of the System Integrator and the sub-System Integrator, for all reasonable assistance and information provided under the MSA, the Project Implementation, Operation and Management SLA by the System Integrator pursuant to this Schedule.

8. Records and information

For the purposes of audit in accordance with this Schedule, the System Integrator shall maintain true and accurate records in connection with the provision of the services and the System Integrator shall handover all the relevant records and documents upon the termination or expiry of the MSA.



SCHEDULE-IV GOVERNANCE SCHEDULE

1. Purpose

The purpose of this Schedule is to:

- i. establish and maintain the formal and informal processes for managing the relationship between the Land Ports Authority of India and the System Integrator (including the outputs from other Schedules to the Contract Agreement;
- ii. define the principles that both Parties wish to follow to ensure the delivery of the Services;
- iii. ensure the continued alignment of the interests of the Parties;
- iv. ensure that the relationship is maintained at the correct level within each Party;
- v. create the flexibility to revise and maintain the relationship and the Contract Agreement during the Term;
- vi. set out the procedure for escalating disagreements; and
- vii. enable contract administration and performance management.

2. Governance structure

- i. **Project Managers:** The relationship under the Contract Agreement will be managed by the Project Managers appointed by each Party, who will provide the interface between the executive management of the respective Parties.
- ii. **Project Implementation Unit (PIU):** Within 7 days following the Effective Date, Land Ports Authority of India or its nominated agencies and the System Integrator shall each appoint a Project Manager. In the event that either Party wishes to substitute its Project Manager it will do so in manner in which the original appointment is made and notify the other Party of such substitution as soon as reasonably practicable but at the latest within 7 days of the substitution.
- iii. The Project Managers shall have responsibility for maintaining the interface and communication between the Parties.
- iv. The PIU will meet formally on a fortnightly / monthly / quarterly, as required, basis at a time and location to be agreed between them. These meetings will cover, as a minimum, the following agenda items: (i) consideration of Quarterly Performance Reports; (ii) consideration of matters arising out of the Change Control Schedule; (iii) issues escalated in accordance with the escalation procedure as set out in the Governance Schedule; (iv) matters to be brought before the PIU in accordance with the MSA and the Schedules; (v) any matter brought before the PIU by the System Integrator under this Article; and (vi) any other issue which either Party wishes to add to the agenda.
- v. In the event that there is any material factor which affects the delivery of the Services or the terms of payment as stated in the Terms of Payment Schedule, the Parties agree to discuss in the PIU any appropriate amendment to the Agreement or any Service Level Agreements or Statement of Works including any variation to the terms of payment as



stated in the Terms of Payment Schedule. Any variation so agreed shall be implemented through the change control procedure as set out in the Change Control Schedule.

- vi. The other Party ("Respondent") shall have the right to respond to the Dispute Notice within 7 days after receipt of the Dispute Notice. In the event that the parties are unable to resolve the Disputed Matter within a further period of 7 days, it shall refer the Disputed Matter to next level of the dispute resolution for action as per the process mentioned in article 9.1
- vii. All negotiations, statements and / or documentation pursuant to these Articles shall be without prejudice and confidential (unless mutually agreed otherwise).
- viii. If the Disputed Matter is having a material effect on the operation of the Services (or any of them or part of them) the Parties will use all their respective reasonable endeavours to reduce the elapsed time in reaching a resolution of the Disputed Matter.



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SCHEDULE-V TERM OF PAYMENT SCHEDULE

Sr No	Project Phase	Timelines (Months)	Milestone	Payment
1.	Project Kick Off Meeting	T+ 1 day	NA	NA
2.	Inception Report& Project Plan	T+ 5 day	Acceptance of Inception Report & Project Plan	NA
3.	Design and Detailed Survey Report	T+ 10 days	Acceptance of Design Document and Detailed survey report (Hardware, Software, Electrical, Civil)	5% of Capex value
4.	Procurement & Delivery at Site	T+ 3 months	Delivery Challans for Materials	30% of capex cost on submission on material delivery and submission of delivery challan
5.	I&C	T+ 4 months	Implementation Report	25% of the capex cost on document submission
6.	Testing And Acceptance	T+ 4.5 Months	Test Successful Report And Customer Acceptance Report	20% on signoff from LPAI
7.	System Stabilization and Go-Live	T(G) = T + 5	Go Live Certificate	20% of signoff from LPAI
8.	DLP	T(G) + 12 Months=T(D)	DLP Report on Quarterly Basis	Quarterly Invoice Value based on actual quantities
9.	CAMC	T(D) + 48 months	CAMC Report Quarterly Basis	Quarterly Invoice Value based on actual quantities
1. Detailed payment schedule will be discussed by LPAI and selected bidder post award. 3. The total cost quoted by the bidder in the supply, installation, testing and commissioning phase should not be more than 80% of the total contract value. In case the bidder quotes more than 80% of the total contract value in the supply, installation, testing and commissioning phase, then the additional cost quoted shall be paid by being equally				



distributed in quarterly payments across the entire CAMC phase. CAMC charges shall be paid after the completion of each quarter for the work done in previous quarter on production of bill, submission of satisfactory service reports duly signed by authority/purchaser. All the necessary recoveries/deductions for which firm has made themselves liable for, shall be deducted from the bills before releasing the payment. Payment shall be released within one month after the receipt of bills and other prerequisites.

SCHEDULE-VI SERVICE LEVEL AGREEMENTS

1. Comprehensive Annual Maintenance Contract and DLP Including All Spares, Consumables & Labour

The bidder has to quote separately the annual charges for a Comprehensive maintenance contract and DLP, including all spares and consumables, for a period of 5 years (1-year DLP and 4-year CAMC). The charges quoted for comprehensive Annual Maintenance Contract (CAMC) shall include all spares, consumables, and onsite maintenance service personnel as specified hereafter. The 4-year CAMC period would be reckoned after expiry of 1-year Defect Liability Period.

Any parts/components that may be found defective by the Purchaser due to manufacturing defects, faulty parts components, and workmanship, within the DLP and CAMC periods, should be replaced or repaired immediately in good working condition, free of cost, by the System Integrator. All the cost occurred during the warranty and CAMC periods like labour, material, transportation, loading, unloading, freight, taxes, including custom duty, levies, octroi, entry taxes etc. should be borne by the system integrator.

The System Integrator should carry out monthly preventive maintenance and periodic calibration of the Equipment as per standards during both DLP and CAMC Period.

The service engineer shall, in any case, be present at work site within 4 Hours of receiving fault call notice to attend to the system.

All minor complaints should be rectified within 8 Hours from reporting of the complaint and all major complaints should be rectified or defective parts should be replaced not exceeding 24 Hours after receiving the complaint call. This is applicable for all 365 days in the year. If the fault could not be rectified by the stipulated time period, necessary standby arrangement should be provided by the System Integrator. This is applicable for entire contract period. The System Integrator should maintain all the supplied Equipment successfully and satisfactorily on round the clock 24x7 basis.

The CAMC of the different equipment's are to be entrusted with the System Integrator if required to ensure the smooth functioning of the equipment/system.

The bidder should ensure 99.50% uptime for the entire system including each of the equipment supplied, which is calculated on quarterly basis during entire contract period.



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The penalty for not meeting above mentioned uptime for the system including each equipment will be calculated as per following criteria:

SLA for Uptime	
$\geq 99.5\%$	No penalty
$< 99.50\%$ and $\geq 98\%$	2% of the quarterly DLP/CAMC charges
$< 98\%$ and $\geq 96.5\%$	3% of the quarterly DLP/CAMC charges
$< 96.5\%$ and $\geq 95\%$	5% of the quarterly DLP/CAMC charges
$< 95\%$	7% of the quarterly DLP/CAMC charges

The SLA for uptime include but are not limited to the performance and uptime of the entire system and each individual component such as ANPR, VMS, analytics, command and control setup and software, surveillance cameras, etc.

The maximum net penalty to System Integrator for a year will be limited to 10% of the Quarterly payment for DLP/CAMC. Post this LPAI may take appropriate action including termination of contract.

If the supplier does not perform the duties as per the tender conditions during both DLP and CAMC period, LPAI reserves the right to get proper service by any means at the risk and cost of the System Integrator in full or part and recover the expenses by invoking the bank guarantee / security deposit submitted by the System Integrator.

After the expiry of the 4-year CAMC, LPAI may consider extending the CAMC for a further period of 1 or more years, with the same party, at a negotiated CAMC cost of not more than 5% annual increase over the CAMC cost of the previous year.

Spares: All spares, accessories and consumables required for the maintenance work shall be supplied by the firm at no extra cost to LPAI. All necessary spares shall be kept in the custody of the bidder at his own responsibility at site for easy availability and maintaining **99.50%** uptime for each Equipment.

Consumables:

All consumables, including battery used for all the UPS, shall be supplied by the firm at no extra cost to LPAI and shall be considered under the scope of DLP and CAMC. The store and spares should be available for checking by LPAI Engineer-in-Charge. The cost of consumables shall be included in the Bid Price. In addition to the above, bidder shall submit the list of all consumables of the quoted model of equipment's along with the technical bid. The prices quoted shall be all inclusive of taxes, duties etc.

Security deposit:



LPAI reserves the right to withhold the security deposit if the maintenance service is not satisfactory as per the contract.

Statutory regulations :

You are required to comply with the provision of Contract Labour (Regulation and Abolition) Act of 1970, Contract Labours (Regulation and Abolition) Central Rules 1971 and Minimum wages, Employer liability Act-1938, Workmen compensation Act & Rules thereof and other related labour laws of Central and State Governments. You are also required to observe all statutory and legal requirements of Central and State Governments and other agencies applicable to the work as well as any local regulations applying to the site. The System Integrator shall at his own expense comply with the Model rules for Labour welfare framed by the Government from time to time. Details of wages and allowances like salary & Provident Fund etc is paid to the staff posted at LPAI, should be submitted to LPAI on regular basis. LPAI would have the right to share these details with the statutory authorities if required.

Change in installation:

The firm shall not make any change in the original installation or their specifications without prior approval of Chairman, LPAI or his authorised representative.

Security regulations:

The System Integrator's maintenance staff should abide by all security regulations at the Land Port. Formalities for the entry passes for the service personnel should be met by the System Integrator. All the laws of the land should be abided by the System Integrator.

Safety Requirements:

The system integrator has to take care of all the required safety procedures related to the work.

Tools and plants:

All necessary tools and plants required for the maintenance work should be provided by the firm at no extra cost.

Logbooks & Registers:

Necessary logbooks, Maintenance registers, Snag register etc. are to be properly maintained as per the instruction of Engineer-in-charge of LPAI.

Service report:

The daily, weekly, and monthly service report shall be submitted to LPAI regularly.